

1 Thomas B. Worth (State Bar No. 73232)
2 FRIEDMAN McCUBBIN LAW GROUP LLP
3 425 California Street, 25th Floor
4 San Francisco, California 94104
5 Telephone: (415) 434-2226
6 tom@fomlaw.com

7 Attorneys for Petitioner
8 17th and Peralta, LLC

FILED
Superior Court of California
County of Alameda
10/04/2024

Clad Flake, Executive Officer / Clerk of the Court

By: Deputy
A. Brophy

9 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
10 IN AND FOR THE COUNTY OF ALAMEDA

11 In the Matter of the Estate of

12 CHARLES W. GOMPERTZ,

13 also known as CHARLES WILLIAM
14 GOMPERTZ, AND C.W. GOMPERTZ,

15 Deceased.

Case No. 123,339

PETITION BY INTERESTED PARTY TO
ESTABLISH ESTATE'S CLAIM OF
OWNERSHIP TO PROPERTY AND FOR
ORDER DIRECTING ITS TRANSFER TO
ESTATE, FOR ORDER DISTRIBUTING
PROPERTY TO TESTAMENTARY TRUST,
AND FOR ORDER DISTRIBUTING
PROPERTY FROM SUCH TRUST

(Probate Code Section 850)

Date: 11/25/2024
Time: 3:00 PM
Dept: 103

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21 Petitioner, 17th and Peralta, LLC, an interested party in the estate, states as follows:

22 1. Decedent Charles W. Gompertz died on April 8, 1953, and his estate was subject to a
23 probate proceeding in this Court. Decedent's Will and codicil were admitted to probate, and John L.
24 Gompertz and Crocker First National Bank of San Francisco were appointed as executors.

25 2. A Decree of Settlement of First and Final Account and Report of Executors, Order
26 Allocating Statutory Fees of Executors, Allowing Compensation for Extraordinary Services of
27 Executors and Allocating Such Compensation, and of Final Distribution ("Estate Decree of
28

PETITION TO ESTABLISH ESTATE'S CLAIM OF OWNERSHIP

1 Distribution”), a copy of which is attached as Exhibit 1, was issued by this court on September 22,
2 1954.

3 3. Pursuant to the Estate Decree of Distribution, all of the residuary assets of Charles’
4 estate were all distributed to Crocker First National Bank of San Francisco, as trustee of a trust under
5 Article Seventh of the decedent’s Will for the benefit of his surviving wife, Anita T. Gompertz
6 (“Trust for Anita”). As described further below, such trust was later distributed following her death
7 in 1956 to the two children of Charles and Anita, namely John L. Gompertz and Ruth Gompertz
8 Watson. At the later deaths of such two beneficiaries, their estates were in turn distributed to their
9 own descendants (as described further below), seven of whom, namely Leslie Ellen Adams, Paul
10 Taggard Adams, Lauren Watson Cesare, Linda Watson, Lisa C. Watson, Douglas C. Watson and
11 David G. Watson (the “Beneficiaries”) have now discovered that a parcel of undeveloped real
12 property in San Francisco was erroneously not inventoried as part of the estate and therefore not
13 distributed to such trust upon distribution of the estate.

14 4. The parcel that is the subject of this petition is now known as Mission Block 139,
15 Assessor’s Parcel Number 3639-036A (the “Property” or “Parcel 36A”). The legal description for
16 the Property is attached as Exhibit 2, and a map prepared by Lea & Braze Engineering, Inc. showing
17 the Property as the shaded area is attached as Exhibit 3. A declaration of Michael Thompson,
18 Professional Land Surveyor, is attached as Exhibit 4, confirming that he prepared the legal
19 description and the map.

20 5. The Beneficiaries have each entered into a Purchase and Sale Agreement for their
21 interests in the Property with petitioner 17th and Peralta, LLC, so that petitioner is an interested party
22 to the estate, and has an interest in having this court confirm that the Property is indeed an asset of the
23 estate. A copy of such agreements is attached as Exhibit 5.

24 6. Pursuant to California Probate Code section 850 (a)(2)(D), the court has the authority,
25 upon petition by an interested party, to confirm title to an asset in which a decedent had a claim.

26 **FACTS SHOWING THAT PROPERTY IS PART OF ESTATE**

27 7. The Property is identified as an asset owned by The John Center Company in a
28 Findings of Fact, Conclusions of Law and Decree (“1912 Decree”) issued by the Superior Court of

1 California for the City and County of San Francisco dated March 8, 1912, Case No. 19,851, a copy of
2 which is attached hereto as Exhibit 6.

3 8. The 1912 Decree was the result of a lawsuit by the Southern Pacific Railroad
4 Company, as plaintiff, to determine its rights to certain real property in San Francisco County,
5 including the Property which is the subject of this petition.

6 9. The 1912 Decree on page 356 references as "Parcel 28" the following land:

7 **Parcel 28:**

8 Commencing at the intersection of the Southerly line of Twenty-second
9 Street with the center line of Southern Pacific Railroad Company's
10 constructed railroad main line, and running thence Westerly and along
11 the said Southerly line of Twenty-second Street to a point distant thirty
12 (30) feet from the aforesaid center line measured radially in a
13 Northwesterly direction therefrom; thence Southwesterly parallel to and
14 uniformly distant thirty (30) feet from said center line to an intersection
15 with the Easterly line of Treat Avenue; thence Southerly and along the
16 said Easterly line of Treat Avenue, crossing the said center line, to a
17 point distant thirty (30) feet from the said center line measured radially
18 in a Southeasterly direction therefrom; thence Northwesterly parallel to
19 an uniformly distant thirty (30) feet from said center line to an
20 intersection with the Westerly line of Harrison Street; thence Northerly
21 and along the said Westerly line of Harrison Street to the Southerly line
22 of Twenty-second Street; thence Westerly and along the said Southerly
23 line of Twenty-second Street to the point of commencement, being a
24 portion of Mission Block Number One Hundred and Thirty-nine (139).

25 10. Attached as Exhibit 7 is a Declaration of Charles Whitecotton, who is a professional
26 title consultant, that he has reviewed the 1912 Decree and has concluded that the Property is indeed
27 described as part of what was then referred to as "Parcel 28" in the 1912 Decree.

28 11. The 1912 Decree expressly confirms that Parcel 28, and therefore the Property, was
owned by The John Center Company, subject to a right of way to the Southern Pacific Railroad
Company for railroad purposes, "provided that in the event the use of said land as a right of way for
said railroad should at any time be abandoned or should at any time be discontinued for a period of
six months, the title and right to possess thereof should revert to [The John Center Company]..." See
the 1912 Decree at page 356.

1 12. The Property was owned by The John Center Company, subject to the right of way to
2 Southern Pacific Railroad, until 1934, when The John Center Company transferred all its assets to the
3 decedent herein, Charles W. Gompertz, as described further below.

4 13. Petitioner has exhaustively researched the records of the San Francisco Recorder's
5 office, and determined that there were no documents recorded that transferred title for the Property
6 from The John Center Company to any other party during the period from 1912 to 1934. A
7 declaration of Joanne Parrent, a professional researcher and California licensed private investigator,
8 attached hereto as Exhibit 8 documents the review she made of such records, concluding that there
9 was no recorded transfer that includes the Property during such period. Petitioner therefore believes
10 that the Property was still owned by The John Center Company in 1934.

11 14. In an Indenture dated February 15, 1934 (the "1934 Indenture"), a copy of which is
12 attached as Exhibit 9, and which was recorded with the San Francisco Recorder's office on
13 February 28, 1934, as Document No. I-34749, The John Center Company transferred all its assets to
14 Charles W. Gompertz upon dissolution of the Company. The above-mentioned Declaration of
15 Joanne Parrent confirms that she obtained the copy of the 1934 Indenture in her review of the files of
16 the San Francisco Recorder's office.

17 15. The 1934 Indenture references thirteen specific parcels of real property as part of such
18 transfer to the decedent (none of which include the Property), and then further includes in the sale
19 "all other property, both real and personal, of every kind, nature and description belonging to The
20 John Center Company, or in which it has any interest and wheresoever situate,... together with the
21 tenements, hereditaments and appurtenances thereto belonging or appertaining, and the reversion and
22 reversions, remainder and remainders, rents, issues and profits thereof." The 1934 Indenture
23 confirms all such assets to Charles W. Gompertz, "... to have and to hold the said premises, together
24 with the appurtenances, unto [Charles W. Gompertz], and to his heirs and assigns forever."

25 16. Attached as Exhibit 10 is a Title Guarantee dated July 19, 2024 issued by Chicago
26 Title Company (the "Title Report") specifically for the Property (i.e., Parcel 36A), and listing all
27 recorded documents relating to the Property. The property description attached to The Title Report
28 as Exhibit "A" is identical to the description of the Property attached to this petition as Exhibit 2.

1 17. The Title Report, in its Schedule B, lists just eight recorded documents relating to the
2 Property. Document #3 is the 1912 Decree, and Document #4 is the 1934 Indenture. The Title
3 Report confirms that there were no recorded transfers of the Property between 1912 and 1934.

4 18. Documents #1 and #2, recorded in 1908 and 1909, respectively, predate the 1912
5 Decree and affirm ownership of the Property by court orders issued pursuant to the McEnerney Act,
6 which allowed land owners to confirm title to their land following the loss of the City's records in the
7 1906 fire. Those deeds are superseded by the 1912 Decree.

8 19. Documents #5 and #7, which both post date the acquisition of the Property by the
9 decedent, are purported transfers by George Center to the Heinzer family and to their revocable trust,
10 but such transfers are moot because the Property was not owned by George Center; it was already
11 owned by the decedent. In any case, Document #8, executed in 2023, is a quitclaim of any interest of
12 the Heinzers to 17th and Peralta, LLC, thus extinguishing any interest of the Heinzers in the Property.

13 20. In the above-mentioned Declaration of Charles Whitecotton, he confirms that he has
14 reviewed the Title Report and has concluded that the Property was owned by The John Center
15 Company in 1934 and was part of the assets transferred to Charles Gompertz pursuant to the
16 "omnibus" clause in the 1934 Indenture that includes in the transfer "all other property" of The John
17 Center Company.

18 21. Petitioner believes that the Property was not expressly listed in the 1934 Indenture
19 because the parties at that time erroneously assumed that because Southern Pacific Railroad was still
20 using the property in its business, there was not a conveyable interest to be included in the sale to
21 decedent.

22 **OWNERSHIP BY DECEDENT FOLLOWING PURCHASE**

23 22. Petitioner has researched the ownership of the Property from the time of its purchase
24 by decedent in 1934 until the decedent's death on April 8, 1953. As documented in the above
25 referenced Declaration of Joanne Parrent, she reviewed the records of the San Francisco Recorder's
26 office for that period, and found no deeds or other transfers of land that include the Property. That
27 conclusion is confirmed by the Title Report, which shows no transfer of the Property during such
28 time period.

1 23. Petitioner therefore believes that the Property was an asset owned by decedent at the
2 time of his death, and should therefore be confirmed by this Court as an asset of his estate.

3 **TERMINATION OF SOUTHERN PACIFIC RIGHT OF WAY**

4 24. Attached hereto as Exhibit 11 is a Disclaimer and Release of Interest In Real Property
5 and Withdrawal of Notice of Pending Action ("Release") executed by Southern Pacific
6 Transportation Company on October 22, 1996 and recorded on November 8, 1996, which Release is
7 listed as Document #6 in the Title Report. As explained in the Declaration of Charles A.
8 Whitecotton, he has reviewed the Release and the legal description of the property covered by the
9 Release, and has concluded that Southern Pacific thereby released all their interest in Parcel 36A. As
10 a result, their easement for a right of way terminated and reverted to the fee owner, and they no
11 longer have any interest in the Property.

12 **DISTRIBUTION TO TRUST FOR ANITA**

13 25. As set forth in the Estate Decree of Distribution, the assets of decedent's residuary
14 estate were distributed to the Trust For Anita, which is also subject to the jurisdiction of this Court in
15 the same proceeding as the decedent's estate.

16 26. The Petitioner therefore believes that decedent's interest in the Property should be
17 confirmed as an asset of the Trust For Anita, subject to the provisions of that trust.

18 27. The Trust for Anita, which was initially funded pursuant to the Estate Decree of
19 Distribution, remained in effect for the lifetime of Anita T. Gompertz. The trustee of that trust,
20 Crocker First National Bank of San Francisco, filed periodic accountings with this Court in the same
21 proceeding as for the decedent's estate. The final such accounting was the Eleventh and Final
22 Account and Report, which was filed on April 23, 1965 by the trustee following the death of Anita T.
23 Gompertz, covering the period from September 22, 1964 to March 11, 1965. In the Order Settling
24 and Approving Eleventh and Final Account and Report of Crocker-Citizens National Bank, as
25 Trustee, Allowing Trustee's Fees and Attorney's Fees, and of Final Distribution of Trust Assets
26 ("Trust Decree of Distribution"), a copy of which is attached as Exhibit 12, all the assets of the trust
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1 were distributed in equal shares outright to John L. Gompertz and Ruth Gompertz Watson, both of
2 whom were then living.

3 28. Accordingly, the Petitioner believes that decedent's interest in the Property should
4 have been distributed 50% to John L. Gompertz and 50% to Ruth Gompertz Watson from the Trust
5 for Anita, and seeks an order of this court confirming such distribution.

6 29. Both John L. Gompertz and Ruth Gompertz Watson have since died.

7 30. Ruth Gompertz Watson had two children, Janet Watson Adams and Franklin H.
8 Watson III. Janet Watson Adams died in 2021, leaving two children, namely Leslie Ellen Adams and
9 Paul Taggard Adams, who are two of the Beneficiaries. Franklin H. Watson III died in 2017, leaving
10 five children, all of whom are now living, namely Lauren Watson Cesare, Linda Watson, Lisa C.
11 Watson, Douglas C. Watson and David G. Watson, who are the remaining Beneficiaries.

12 31. Attached hereto as Exhibit 13 is a true and correct copy of the Amended Trust
13 Agreement dated March 12, 1979, for which Ruth G. Watson was Trustor, confirming that she left
14 her assets in equal shares for the benefit of her two children, Janet Watson Adams and Franklin H.
15 Watson III.

16 32. Attached hereto as Exhibit 14 is a true and correct copy of the Janet W. and Russell B.
17 Adams, Jr. Living Trust Agreement dated April 23, 1991, along with Amendment Number Two to
18 said Agreement, which together confirm that Janet Watson Adams' assets were distributed after the
19 deaths of Janet Watson Adams and her husband to their two children, Leslie Adams and Paul Adams.

20 33. Attached as Exhibit 15 is a true and correct copy of the Franklin and Marilyn Watson
21 Trust dated December 15, 1992, confirming that his assets were distributed following the deaths of
22 Franklin Watson and his wife to their five children, namely Linda Watson, Lisa Watson, Lauren
23 Watson Cesare, Douglas C. Watson and David G. Watson.

24 34. Separate actions will be filed in the proceedings for the estates of Ruth Gompertz
25 Watson, Janet Watson Adams and Franklin H. Watson III to confirm the interests of their successor
26 beneficiaries, but petitioner believes that the copies of their respective revocable trusts are sufficient
27 for this court to respect the potential interests of the Beneficiaries for purposes of allowing petitioner
28 to be an interested party and thereby proceed with this petition to determine ownership of the

1 Property. Petitioner is not asking the court to opine on the validity of the trusts for those three
2 deceased individuals, but offers the copies of the trust instruments to allow the court to make a ruling
3 as to the interests of Charles W. Gompertz and the Trust For Anita in the Property.

4 **COMMUNITY PROPERTY INTEREST OF ANITA**

5 35. In the Codicil of Charles W. Gompertz dated June 16, 1949, he confirmed that any
6 community property of his wife Anita T. Gompertz was confirmed to her as her property. Attached
7 hereto as Exhibit 16 is a copy of such Codicil.

8 36. To the extent Anita Gompertz had a community property interest in the Property, it
9 would have been subject to disposition under her own Will. Attached hereto as Exhibit 17 is a copy
10 of the Last Will and Testament of Anita T. Gompertz dated April 14, 1954, and the Codicil to such
11 Will dated February 17, 1960. Attached as Exhibit 18 is a copy of the Decree of Final Distribution
12 dated April 18, 1966.

13 37. Pursuant to the Codicil of Anita T. Gompertz, all her assets were distributed in equal
14 shares to her grandchildren Franklin H. Watson III and Janet Watson Adams. As explained in
15 paragraph 30 above, both such persons have since died, and all their assets have been distributed to
16 their own children, who are the seven Beneficiaries identified above. Thus, any community property
17 interest of Anita T. Gompertz will pass to beneficiaries who are also among the beneficiaries of the
18 Trust For Anita.

19 38. Petitioner does not in this petition seek a specific confirmation of the distribution of
20 any such community property interest. The above explanation is included to demonstrate the
21 interests of the Beneficiaries in the Property.

22 WHEREFORE, petitioner requests the court to determine as follows:

23 1. That the decedent was the true owner of the Property and to order that the Property be
24 considered an asset of the decedent's estate;

25 2. That the Property was distributed from decedent's estate, pursuant to the Estate Decree
26 of Distribution, to the trust under Article Seventh of decedent's Will for benefit of Anita T. Gompertz
27 as an asset of such trust;
28

3. That the Property, as an asset of such Trust, was distributed pursuant to the Trust Decree of Distribution in equal shares to the two residuary beneficiaries of such trust, namely John L. Gompertz, and Ruth . Gompertz Watson; and

4. For such other orders as the court may find appropriate.

Dated: 10/3, 2024

17th AND PERALTA, LLC, Petitioner

By _____

Its Managing Member

FRIEDMAN MCCUBBIN LAW GROUP LLP

By Thomas B. Worth,
Attorneys for Petitioner 17th and Peralta, LLC

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EXHIBIT 1

FILED

SEP 22 1954

ENTERED

Probate Minute Book, Vol. 147

Jack G. Blue, County Clerk

By *[Signature]* Deputy

[Signature] G. Blue County Clerk
DEPUTY

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ALAMEDA

In the Matter of the Estate of

CHARLES W. GOMPERTZ,

also known as CHARLES WILLIAM GOMPERTZ,
CHARLES GOMPERTZ, and as C. W. GOMPERTZ,

Deceased.

No. 123,339

Department No. 4

DECREE OF SETTLEMENT OF FIRST AND FINAL ACCOUNT
AND REPORT OF EXECUTORS, ORDER ALLOCATING STAT-
UTORY FEES OF EXECUTORS, ALLOWING COMPENSATION FOR
EXTRAORDINARY SERVICES OF EXECUTORS AND ALLOCATING
SUCH COMPENSATION, AND OF FINAL DISTRIBUTION

JOHN L. GOMPERTZ and CROCKER FIRST NATIONAL BANK OF SAN
FRANCISCO, a national banking association, as executors of the
last will and testament of Charles W. Gompertz, the above named
decedent, having on August 19, 1954, rendered and filed herein
their first and final account and report of their administration
of the estate of the above named decedent, together with their
petition for an order allocating the statutory fees of executors,
for compensation for extraordinary services of executors and
allocation of such compensation, and for final distribution,
having come on regularly to be heard on the 5th day of September,
1954, and having been regularly continued by the court to this
22nd day of September, 1954, and said executors having rendered
and filed herein at this hearing a supplement to their first and
final account showing certain receipts and disbursements on behalf

1 of said estate since the date of the closing of said first and
2 final account, and the court, from the proof made to the satisfac-
3 tion of the court, and from the evidence adduced at said hearing,
4 finds:

5 1. That said decedent died on April 8, 1953, and at
6 the time of his death was a resident of the County of Alameda,
7 State of California.

8 2. That notice of said first and final account and
9 report and of said petition, and of the filing thereof, and of
10 the time and place fixed for the settlement of said account
11 and report and for the hearing of said petition, has been
12 regularly given in the manner and for the time required by
13 law.

14 3. That said first and final account and report is
15 in all respects true and correct; that it is a full and veri-
16 fied account and report by said executors of their administra-
17 tion of said estate from their appointment as executors of the
18 last will and testament of said decedent up to and including
19 July 6, 1954; that said supplement to first and final account
20 is a full and verified account of all receipts and disburse-
21 ments for and on behalf of said estate from July 7, 1954, to
22 the time of this hearing; that said supplement is in all
23 respects true and correct; that said first and final account
24 and supplement thereto are supported by proper vouchers; that
25 the residue of money in the hands of said executors as of the
26 closing date of said first and final account on July 6, 1954,
27 was \$21,527.01; that as shown by said supplement thereto the
28 executors, since the date of the closing of said first and
29 final account, have received the sum of \$4,074.30, and have
30 disbursed the sum of \$3,023.50; that therefore the residue
31 of money now in the hands of said executors is \$22,577.81.

32

1 4. That notice to creditors of said decedent has been
2 duly and regularly given in the manner and for the time re-
3 quired by law.

4 5. That all inheritance taxes due the State of Cali-
5 fornia from said estate have been paid; that all Federal
6 estate taxes due the United States from said estate have been
7 paid; that under the provisions of the last will and testament
8 said executors were directed to pay out of the decedent's
9 residuary estate, before distribution thereof, all transfer,
10 inheritance, succession, estate and similar taxes levied or
11 imposed upon all or any part of decedent's estate, or against
12 any legatee or devisee on account of his or her interest in
13 the estate of said decedent.

14 6. That all income taxes due to the United States in
15 so far as the same can be ascertained have been paid; and all
16 income taxes due to the State of California in so far as the
17 same can be ascertained have been paid; that there is no
18 necessity for filing a certificate of the Franchise Tax Commis-
19 sioner of the State of California in connection with said
20 estate for the reason that the devisees and legatees under
21 the last will and testament of said decedent are residents
22 of the State of California.

23 7. That the statutory fees of said executors, which
24 fees total \$6,929.69, should be allocated as follows: the sum of
25 \$ 2307.72 to JOHN L. GOMPERTZ for the services rendered
26 by him as co-executor, and the sum of \$ 4619.72 to
27 CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a national banking
28 association, for its services rendered as co-executor.

29 8. That John L. Gompertz and Crocker First National
30 Bank of San Francisco, a national banking association, as such
31 executors, have not been paid any amount whatever as yet on
32 account of special and extraordinary services rendered by them

1 as such executors in connection with the probate of said estate;
2 that in addition to ordinary services incident to the adminis-
3 tration of said estate, said executors have rendered extra-
4 ordinary services in connection with said estate; that the sum
5 of \$ 8000.00 is a just and reasonable amount to be allowed
6 as compensation for the extraordinary services of said John L.
7 Gompertz and Crocker First National Bank of San Francisco; that
8 said compensation for extraordinary services of said executors
9 should be allocated as follows: the sum of \$ 2000.00 to
10 JOHN L. GOMPERTZ for the extraordinary services rendered by him
11 as co-executor, and the sum of \$ 6000.00 to CROCKER FIRST
12 NATIONAL BANK OF SAN FRANCISCO, a national banking association,
13 for the extraordinary services rendered by it as co-executor.

14 9. That Hagar, Crosby, Rosson & Vendt, the attorneys
15 for said executors, have waived the right to any payment on
16 account of special and extraordinary services rendered by them
17 as attorneys for said executors.

18 10. That there were included in the assets of the estate
19 of said decedent the following United States of America Treasury
20 Bonds:

21 \$5,000.00 face value 2-1/2%, due March 15, 1971;
22 \$10,000.00 face value 2-1/2%, due December 15, 1972;
23 that said executors intended to forward said bonds to the
24 Treasury Department in Washington for redemption at par, the
25 proceeds to be applied against the payment of Federal estate tax
26 due by said estate; that upon the value of said bonds increasing
27 above par, said executors sold said bonds on the open market
28 for cash above par; that said executors, exercising the power of
29 sale conferred upon them by the last will and testament of
30 said decedent, did not secure an order of the above entitled
31 court prior to effecting the sale of said bonds; that it was for
32 the best interests of the estate of said decedent and those

1 Interested therein for said bonds to be sold,

2 11. That there should be reserved from the assets of
3 the estate of said decedent the sum of \$250.00 for estimated
4 expenses in closing said estate; that said reserve does not
5 include any sum which might be required to pay additional taxes
6 which may properly be assessed; that such additional sums as may
7 be required for such taxes and for fees and expenses reasonably
8 incurred in respect thereto should be paid to the executors by
9 the trustee of the trust created under the last will and testa-
10 ment of said decedent together with any deficiency in the
11 reserve hereinabove set forth for estimated closing expenses.

12 12. That all creditors' claims filed or presented in
13 said estate have been paid; that all personal property taxes
14 due in connection with said estate have been paid; that all
15 debts of said decedent and all expenses of administration of
16 said estate, except the payment of statutory executors' fees
17 and the payment of such compensation allowed by this court
18 for the extraordinary services performed by said executors,
19 have been paid; that said estate is now in a condition to be
20 closed.

21 13. That all of the devisees and legatees named in the
22 last will and testament of said decedent survived said decedent
23 and are now alive.

24 14. That in accordance with the provisions of the will
25 of said decedent the entire estate of said decedent is dis-
26 tributable as follows:

27 To ANITA T. GOMPERTZ all of the right, title and
28 interest of the decedent in and to any and all automobiles,
29 wearing apparel, jewelry, silverware, china, glassware, bric-a-
30 brace, books, pictures, objects of art, household furniture and
31 furnishings, and personal effects owned by or in which decedent
32 had an interest at the date of his death (expressly excluding

1 herefrom any and all cash, bank accounts, stocks, bonds,
2 securities, and other such personal property);

3 To CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a
4 national banking association, as trustee, IN TRUST NEVERTHELESS,
5 all of the rest, residue and remainder of such property and
6 estate of said decedent, upon the trusts, and for the uses and
7 purposes, with the powers and duties, and upon the terms and
8 conditions, as set forth in subparagraphs (a) to (r) inclusive
9 of paragraph SEVENTH of the last will and testament of said
10 decedent and hereinafter more fully set forth.

11 15. That any and all other property not now known or
12 discovered belonging to said decedent or in which said decedent
13 or his estate may have any interest should be distributed as
14 follows:

15 To ANITA T. GOMPERTZ, any automobiles, wearing apparel,
16 jewelry, silverware, china, glassware, bric-a-brac, books,
17 pictures, objects of art, household furniture and furnishings
18 and personal effects, expressly excluding any and all cash,
19 bank accounts, stocks, bonds, securities and other such personal
20 property;

21 To CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a
22 national banking association, as trustee, IN TRUST NEVERTHELESS,
23 all of the rest, residue and remainder of such property and
24 estate of said decedent, including the balance, if any, of said
25 \$2,000 reserved for estimated closing expenses of said estate,
26 upon the trusts and for the uses and purposes, and with the
27 powers and duties, and upon the terms and conditions, all as
28 set forth in subparagraphs (a) to (r) inclusive of paragraph
29 SEVENTH of the last will and testament of said decedent and
30 hereinafter more fully set forth.

31 NOW, THEREFORE, IT IS HEREBY ORDERED, ADJUDGED AND
32 DECREED that said first and final account and report of

1 John L. Gompertz and Crocker First National Bank of San Fran-
2 cisco, a national banking association, as executors of the last
3 will and testament of Charles W. Gompertz, deceased, together
4 with the supplement to said first and final account of said
5 executors, be and the same are hereby settled, allowed and
6 approved, and all of the acts of said executors as set forth
7 therein, including the sale by said executors of the \$5,000.00
8 face value 2-1/2% United States of America Treasury Bonds due
9 March 15, 1911 and the \$10,000.00 face value 2-1/2% United
10 States of America Treasury Bonds due December 15, 1972, be,
11 and they are hereby, confirmed and approved.

12 IT IS HEREBY FURTHER ORDERED, ADJUDGED AND DECREED that
13 the statutory fees of said executors, in the sum of \$6,929.69,
14 be, and the same are hereby, allocated between said executors
15 as follows:

16 To JOHN L. GOMPERTZ, the sum of \$ 2309.96
17 To CROCKER FIRST NATIONAL BANK OF SAN
18 FRANCISCO, a national banking
association, the sum of \$ 4619.79

19 IT IS HEREBY FURTHER ORDERED, ADJUDGED AND DECREED that
20 John L. Gompertz and Crocker First National Bank of San Fran-
21 cisco, a national banking association, be, and they are hereby,
22 allowed the sum of \$ 5000.00 as compensation for their
23 extraordinary services rendered in connection with said estate,
24 said sum being allocated between said executors as follows:

25 To JOHN L. GOMPERTZ, the sum of \$ 2000.00
26 To CROCKER FIRST NATIONAL BANK OF SAN
27 FRANCISCO, a national banking
association, the sum of \$ 6000.00

28 IT IS HEREBY FURTHER ORDERED, ADJUDGED AND DECREED that
29 the entire estate of said Charles W. Gompertz, deceased, now in
30 the hands of said executors, less the statutory executors' fees
31 hereinbefore allocated between said executors and less the
32 sum hereinbefore allowed to and allocated between said executors

1 as compensation for the extraordinary services rendered by said
2 executors, be, and the same is hereby, distributed as follows:

3 To ANITA T. GOMPERTZ, the following:

4 1948 Cadillac 4-door touring sedan automobile,
5 Model 61, Engine No. 496103522

6 One lot of miscellaneous jewelry, consisting of
7 1 yellow metal man's wrist watch
8 1 white metal man's pocket watch
9 1 yellow metal ring set with one white stone

10 One lot of miscellaneous household furniture and
11 furnishings contained in residence at
12 5630 Broadway Terrace, Oakland, California

13 Certificate of membership in Claremont Country
14 Club, which membership reverts to widow by
15 survivorship in accordance with By-Laws
16 of said Claremont Country Club.

17 To CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a
18 national banking association, as trustee, IN TRUST NEVERTHELESS,
19 the following:

20 Cash \$ 7648.12

21 STOCKS

22 330 shares AMERICAN HOME PRODUCTS CORPORATION
23 capital stock, \$1.00 par value

24 300 shares THE ATCHISON, TOPEKA and SANTA FE
25 RAILWAY COMPANY common stock, \$50.00 par value

26 25 shares THE BANK OF COMMERCE, OAKLAND, CALIFORNIA,
27 common stock, \$50.00 par value

28 395 shares CITIES SERVICE COMPANY common stock,
29 \$10.00 par value

30 266 shares CROCKER FIRST NATIONAL BANK OF SAN
31 FRANCISCO common stock, \$25.00 par value

32 13-6/100 shares CRUCIBLE STEEL COMPANY OF
33 AMERICA common stock, \$25.00 par value

34 500 shares DI GIORGIO FRUIT CORPORATION, Class
35 "A" common stock, \$5.00 par value

36 125 shares DI GIORGIO FRUIT CORPORATION, Class
37 "E" common stock, \$5.00 par value

38 200 shares GENERAL FOODS CORPORATION, common
39 stock, no par value

40 1,000 shares GLADDING, McBEAN & CO. capital
41 stock, \$10.00 par value

1 721 shares THE GOODYEAR TIRE & RUBBER COMPANY
common stock, \$10.00 par value
2
3 312 shares MARCHANT CALCULATORS, INC. capital
stock, \$5.00 par value
4
5 208 shares NATIONAL CITY BANK OF NEW YORK
capital stock, \$12.50 par value
6
7 1,000 shares NORTHERN NATURAL GAS COMPANY
common stock, \$10.00 par value
8
9 1,000 shares PEACE RIVER NATURAL GAS CO., LTD.
common stock, \$1.00 par value
10
11 250 shares SCOTT PAPER COMPANY common stock,
no par value
12
13 1,102 shares STANDARD OIL COMPANY OF CALIFORNIA
capital stock, no par value
14
15 440 shares STANDARD OIL COMPANY OF OHIO
common stock, \$10.00 par value
16
17 200 shares SWIFT AND COMPANY capital stock,
\$25.00 par value
18
19 800 shares TELEVISION-ELECTRONICS FUND, INC.
common stock, \$1.00 par value
20
21 100 shares UNION PACIFIC RAILROAD COMPANY
common stock, \$50.00 par value
22
23 250 shares UNIVERSAL CONSOLIDATED OIL COMPANY
capital stock, \$10.00 par value

19 for the uses and purposes, and with the powers and duties,
20 and upon the terms and conditions, hereinafter set forth,
21 to wit:

22 (a) To receive said trust property.

23 (b) To hold, manage, handle and control,
24 invest and reinvest, partition, improve, pledge,
25 mortgage, lease without limit as to term,
26 exchange and sell the whole or any part of
27 said trust property, in whatever form it may
28 take, to continue and operate any business
29 received in this trust as long as it may deem
advisable, and to pay and discharge all
mortgages, liens and other charges against
the same, all at such times, on such terms
and in such manner as said trustee may deem
fit and proper, under and with the powers
conferred on it by the trust herein created.

1 (c) Said trustee shall collect, recover and
2 receive the income from said trust property, and
3 shall pay out of the same, without regard to the
4 source of the income, the trust's share of any
5 interest or instalment principal payments on
6 indebtedness on said trust property, and the
7 trust's share of all expenses and charges, includ-
8 ing taxes, assessments, repairs, betterments to
9 and improvements upon said trust property, and
10 all other lawful charges and expenses of every
11 kind and nature against or in connection with
12 said trust property or said trust, including
13 reasonable compensation of said trustee. In the
14 event that said income should be insufficient to
15 pay all of the foregoing, any such payment or
16 payments may be made from principal, in the
17 absolute discretion of said trustee, the prin-
18 cipal account subsequently to be reimbursed
19 therefor from income. Notwithstanding any of
20 the foregoing provisions contained in this sub-
21 paragraph, said trustee may in its absolute
22 discretion pay any or all of the following out
23 of either the principal or income of said
24 trust property: (1) the trustee's compensation
25 upon or for acceptance or distribution of the
26 principal of said trust property, attorneys'
27 fees and other costs incurred in maintaining
28 or defending any action to protect the trust
29 or the trust property or to assure the title
30 thereof; (2) costs of, or assessments for,
31 improvements to the trust property; (3) brokers'
32 commissions, title charges and other costs
(exclusive of trustee's compensation, if any)
incurred in connection with purchasing, selling
or leasing the trust property, or investing or
reinvesting the principal of the trust estate;
(4) any tax or assessment levied by any authority
upon the trust property, or any part thereof,
profit or gain resulting from any sale, exchange
or transfer of the trust property, or any part
thereof, or upon the income therefrom, or upon
any transaction affecting the same, or the trust
or any equitable interest therein or succession
thereto; (5) any estate or inheritance taxes
levied by any authority chargeable against said
trust property or trust estate, or any benefi-
ciary thereunder; (6) any payment on account of
principal indebtedness on said trust property,
or any part thereof, or owing by said trust.

26 (d) Said trustee may retain, as part of the
27 trust property, any securities, or property, or
28 business which may be received by or distributed
29 to it from my estate, whether the same are invest-
30 ments permitted by law for trust funds or not,
31 and the said trustee shall incur no liability by
32 reason of any depreciation in the value of any
such security or securities, property or busi-
ness.

31 (e) Said trustee shall have full power to
32 invest and reinvest all of said trust property
or any portion or portions thereof in such securi-

1 all properties and investments as said trustee,
2 in its absolute discretion, may determine, and
3 whether or not the same are legal for investment
4 of trust funds under the laws of the State of
5 California, or otherwise, including without
6 limiting the foregoing, common or preferred stock,
7 or common and preferred stock, of any corpora-
8 tion, all in such manner and upon such terms as
9 to said trustee may seem best.

6 (f) Said trustee shall treat all dividends
7 declared payable in stock as principal and shall
8 add them to the trust fund or estate so far as
9 permitted by law, and, in like manner, said trust-
10 tee shall credit all proceeds from the sale of
11 rights to subscribe for additional stock to
12 principal.

10 (g) Said trustee may also, in its discre-
11 tion, improve any real property subject to this
12 trust, build, alter, or repair any improvements
13 thereon, of such character, amount, cost and
14 from such funds or property subject to this
15 trust, as it may deem advisable.

13 (h) Said trustee is hereby authorized and
14 empowered to vote in person, or by proxy, in
15 respect of all stocks or other securities held
16 by it; to exchange the securities of any corpo-
17 ration for other securities issued by the same
18 or by any other corporation, at such times and
19 upon such terms and conditions, including the
20 receiving or giving of cash, in addition to prop-
21 erty received or given, as the trustee shall
22 deem proper; to consent to the reorganization,
23 consolidation or merger of any corporation or
24 to the sale or lease of its property or any por-
25 tion thereof to any person, firm, association or
26 corporation, or to the sale or lease by any per-
27 son, firm, association or corporation of his or
28 its property, or any portion thereof, to such
29 corporation, and upon such reorganization, con-
30 solidation, merger, sale or lease, to exchange
31 any securities held by it for any securities
32 that may be issued in connection therewith; to
33 pay such assessments, subscriptions and other
34 sums of money as the trustee may deem expedient
35 for the protection of the trust fund as the
36 holder of any stocks, bonds or other securities
37 of any corporation, and to exercise any option
38 for the conversion of any stocks, bonds or other
39 securities into other securities, or to take
40 advantage of any rights to subscribe for addi-
41 tional stock, bonds or other securities, and
42 to make any and all necessary payments therefor;
43 and generally to exercise, in respect of all
44 stocks, bonds and other securities held by the
45 trustee hereunder, all such rights, powers and
46 privileges as are or may be lawfully exercised
47 by any person owning similar property in his
48 own right, provided that the trustee shall not
49 be required to make any of the payments herein-
50 before mentioned other than from the principal

1 or income of the trust estate, as it may deter-
2 mine, or from funds furnished for that purpose
3 by someone interested in the trust.

4 (i) Said trustee shall have full power to
5 sell or exchange all or any portion of said trust
6 property on such terms, for cash or for credit,
7 at public or private sale, with or without notice,
8 as it may see fit. The said power to sell and
9 exchange shall include the power to take back
10 mortgages, deeds of trust, or similar security
11 for any part of the purchase price, or in connec-
12 tion with any such exchange. No purchaser from
13 said trustee shall be bound to see to the appli-
14 cation of the purchase money or consideration
15 paid on account of said purchase, and no party
16 to such an exchange shall be bound to see to the
17 application of the property received in exchange
18 by said trustee. No purchaser or party to such
19 sale or exchange need inquire into the validity,
20 expediency or propriety of any such sale or
21 exchange.

22 (j) Said trustee is hereby authorized to
23 settle and compromise in its discretion, and
24 upon such terms as to it shall seem proper, any
25 litigation or dispute in which the trust prop-
26 erty, or the trust, or any part thereof, shall
27 be involved, and any claim or obligation in
28 favor of or against said trust.

29 (k) Said trustee at any time during the
30 existence of this trust is hereby authorized
31 and empowered to lease the whole or any part
32 of the said trust property, or to extend or
33 renew any lease thereof, or to grant an option
34 for the renewal or extension of any lease
35 thereof, or any portion thereof, all on such
36 terms and conditions, with or without notice,
37 as said trustee in its judgment shall deter-
38 mine, and the judgment of said trustee on all
39 such matters shall be final. Any lease or
40 leases of the trust property, or any portion
41 thereof, or extension or renewal of lease,
42 or option therefor, may be for a term be-
43 yond and longer than the term of the trust
44 herein provided.

45 (l) Said trustee is hereby authorized
46 and empowered to execute any notes or other
47 obligations or assignments of rents or to
48 encumber any real property which may be at
49 any time contained in said trust, or any por-
50 tion thereof, by mortgage, deed of trust or
51 otherwise, and to pledge any personal proper-
52 ty, and to execute any notes, mortgages, deeds
53 of trust, assignments, pledge agreements and
54 extensions or renewals thereof, which it may
55 deem to be necessary or desirable, or any
56 other kind of document whatsoever.

57 (m) The trustee shall be entitled to a
58 reasonable compensation for its services
59 hereunder. The trustee is authorized in the

1 discharge of its duties to employ counsel and
2 agents and to determine and pay them a reason-
3 able compensation, and it shall be entitled to
4 reimbursement therefor and for such other ex-
5 penses and charges as it may deem necessary or
6 proper to incur.

7 (n) Except as otherwise expressly limited
8 herein, said trustee generally shall have the
9 power to exercise in respect of all stocks, bonds
10 or other securities, or property of any kind
11 whatsoever (real or personal), including any
12 business, held by the trustee herein, all such
13 rights, powers and privileges as are or may be
14 lawfully exercised by any person owning similar
15 property in his own right.

16 (o) No income from said trust property
17 accruing prior to the distribution of said trust
18 property to said trustee shall be paid to the
19 beneficiary of this trust, it being intended that
20 all income collected by the executors during the
21 administration of said estate shall be treated
22 and accounted for as part of the general assets
23 of said estate, and not as income belonging to
24 any person named in the last will and testament
25 of Charles W. Gompertz, the above named decedent.

26 (p) The said trustee shall pay at least
27 monthly to ANITA T. GOMPERTZ, for and during
28 the remainder of her life, all of the net in-
29 come from said trust property remaining after
30 payment or provision for payment of taxes, costs
31 or other expenses in connection with said trust
32 property or said trust estate.

33 (q) This trust shall absolutely cease and
34 terminate upon the death of said ANITA T.
35 GOMPERTZ. Upon the termination of this trust
36 all the property then in the corpus of said
37 trust, together with any undistributed in-
38 come, shall go to and vest in JOHN L. GOMPERTZ
39 and RUTH GOMPERTZ WATSON, share and share
40 alike. If said John L. Gompertz is not living
41 at the time of the termination of this trust,
42 then the share of said trust property which
43 said John L. Gompertz would have received if
44 then living shall go to said RUTH GOMPERTZ
45 WATSON, if she is then living, or if she be
46 not then living, to her lawful issue living
47 at the time of the termination of said trust,
48 share and share alike, but by right of repre-
49 sentation. If said Ruth Gompertz Watson is
50 not living at the time of the termination of
51 this trust, then the share of said trust
52 property which said Ruth Gompertz Watson would
53 have received if then living shall go to her
54 lawful issue living at the time of the termi-
55 nation of said trust, share and share alike,
56 but by right of representation. If there is not
57 living at the time of the termination of this

1 trust said John L. Gompertz, or said Ruth
2 Gompertz Watson, or any lawful issue of said
3 Ruth Gompertz Watson, then said trust property
4 shall go to and vest in the heirs at law of
Charles W. Gompertz determined as of the time
of the termination of said trust.

5 (r) It is an express provision of this
6 trust, controlling over all of the provisions
7 hereof, that it must continue for the full dura-
8 tion of the term stated, namely, during the life
9 of said ANITA T. GOMPERTZ, and it shall be in no
10 event terminated prior thereto by any Court or
11 equitable proceeding or the beneficiaries or the
12 trustee. Each and every beneficiary under this
13 trust is hereby restrained from and shall be
14 without right, power or authority to sell, trans-
15 fer, pledge, mortgage, hypothecate, alienate,
16 anticipate, or in any other manner affect or
17 impair his or her or their beneficial or legal
rights, titles, interests, claims or estates in
or to the income or corpus of this trust during
the entire term hereof; nor shall the rights,
titles, interests or estate of any beneficiary
hereunder be subject to the rights or claims
of creditors of any beneficiary, nor subject nor
liable to any process of law or court, and all
of the income and corpus of this trust shall be
transferable, payable and deliverable only, solely,
exclusively, and personally to the above desig-
nated beneficiaries hereunder at the time each
beneficiary is entitled to take the same under
the terms of this trust.

18 provided, however, that there shall be paid to John L. Gompertz
19 and Crocker First National Bank of San Francisco, a national
20 banking association, as executors of the last will and testament
21 of said decedent, from said trust estate such sums as may be
22 required for payment of additional taxes which may be properly
23 assessed, if any, and for fees and expenses reasonably incurred
24 in respect thereto, and for any deficiency in the reserve of
25 \$250.00 set up for estimated closing expenses, such payment to
26 be made to said executors when and as such amounts have been
27 determined to be due.

28 IT IS HEREBY FURTHER ORDERED, ADJUDGED AND DECREED that
29 any and all other property not now known or discovered belonging
30 to said decedent or in which said decedent or his estate may
31 have any interest should be distributed as follows:

32 To ANITA T. GOMPERTZ, any automobiles, wearing

1 apparel, jewelry, silverware, china, glassware, bric-a-brac,
2 books, pictures, objects of art, household furniture and fur-
3 nishings and personal effects, expressly excluding any and all
4 cash, bank accounts, stocks, bonds, securities and other such
5 personal property;

6 To CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a
7 national banking association, as trustee, IN TRUST NEVERTHELESS,
8 all of the rest, residue and remainder of such property and
9 estate of said decedent, including the balance, if any, of said
10 \$250.00 reserved for estimated closing expenses of said estate,
11 upon the trusts and for the uses and purposes, and with the
12 powers and duties, and upon the terms and conditions, all as
13 are hereinabove set forth in subparagraphs (a) to (r) inclusive
14 commencing on line 22, page 9, hereof and ending on line 17,
15 page 14, hereof.

16
17 DONE IN OPEN COURT, this 22nd day of September, 1954.

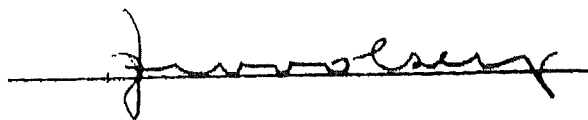
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EXHIBIT 2

EXHIBIT "A"
LEGAL DESCRIPTION FOR
APN 3639-036A
SAN FRANCISCO, CALIFORNIA

All that certain real property, situate in the City and County of San Francisco, State of California, over a portion of the former SPRR Right of Way per Judgement 19851 Recorded March 8, 1912 as shown on Final Map No. 10057 filed on November 25, 2020 in Book 1 of Final Maps at pages 126-129, San Francisco County Records, as shown on Exhibit "B" made a part hereof, more particularly described as follows:

Commencing at a point on the southerly corner of Lot 1 of said Final Map No. 10057, said point being on the easterly line of Treat Avenue (60 feet wide) as shown on said map (the bearing of Treat Avenue taken as North 00°00'00" East for the purpose of this description), said point also being the beginning of a non-tangent curve to the left with a radius of 925.37 feet; thence leaving said easterly line of Treat Avenue, from a tangent bearing North 43°38'21" East, along the southeasterly line of said Lot 1 and along said curve, through a central angle of 1°33'58", a distance of 25.29 feet to the **Point of Beginning**; thence continuing along last said curve through a central angle of 5°59'06", a distance of 96.66 feet to the most easterly corner of said Lot 1, said point also being the southwesterly corner of Parcel Three as described in that certain Correction Grant Deed recorded September 20, 2023 in Document No. 2023067950 of Official Records of San Francisco County, thence along the southerly line of said parcel, South 90°00'00" East, 9.26 feet to the southeasterly corner of said parcel, thence along the easterly line of said parcel, North 33°32'32" East, 71.99 feet to the most northeasterly corner of said parcel, thence along the northerly line of said parcel, North 90°00'00" West, 8.79 feet to the northwesterly line of said former SPRR Right of Way; said point also being the beginning of a non-tangent curve to the left with a radius of 925.37 feet; thence along said curve, from a tangent bearing North 31°36'49" East, through a central angle of 8°42'52", a distance of 140.74 feet to the southerly line of 22nd Street (64 feet wide) as shown on said map, along said southerly line of 22nd Street, North 90°00'00" East, 62.25 to the westerly line of Harrison Street (82.50 feet wide) as shown on said map; thence along last said line, South 00°00'00" East, 6.39 feet to the southeasterly line of said former SPRR Right of Way, said point also being the beginning of a non-tangent curve to the right with a radius of 985.37 feet; thence along said curve, from a tangent bearing South 21°49'59" West, through a central angle of 11°45'04", a distance of 202.09 feet to northwesterly corner of Lot 1 of Final Map No. 7452 filed on October 4, 2013 in Book 122 of Condominium Maps at pages 39-40, San Francisco County Records; thence along the westerly projection of the northerly line of said Lot 1, North 90°00'00" West, 28.70 feet to the intersection with the northerly projection of the westerly line of said Lot 1; thence along said prolongation, South 00°00'00" East, 40.92 feet to said southeasterly line of former SPRR Right of Way, said point also being the beginning of a non-tangent curve to the right with a radius of 985.37 feet; thence along said curve, from a tangent bearing South 36°29'27" West, through a central angle of 2°30'22", a distance of 43.10

feet; thence leaving last said line, North 90°00'00" West, 78.92 feet to the **Point of Beginning**.

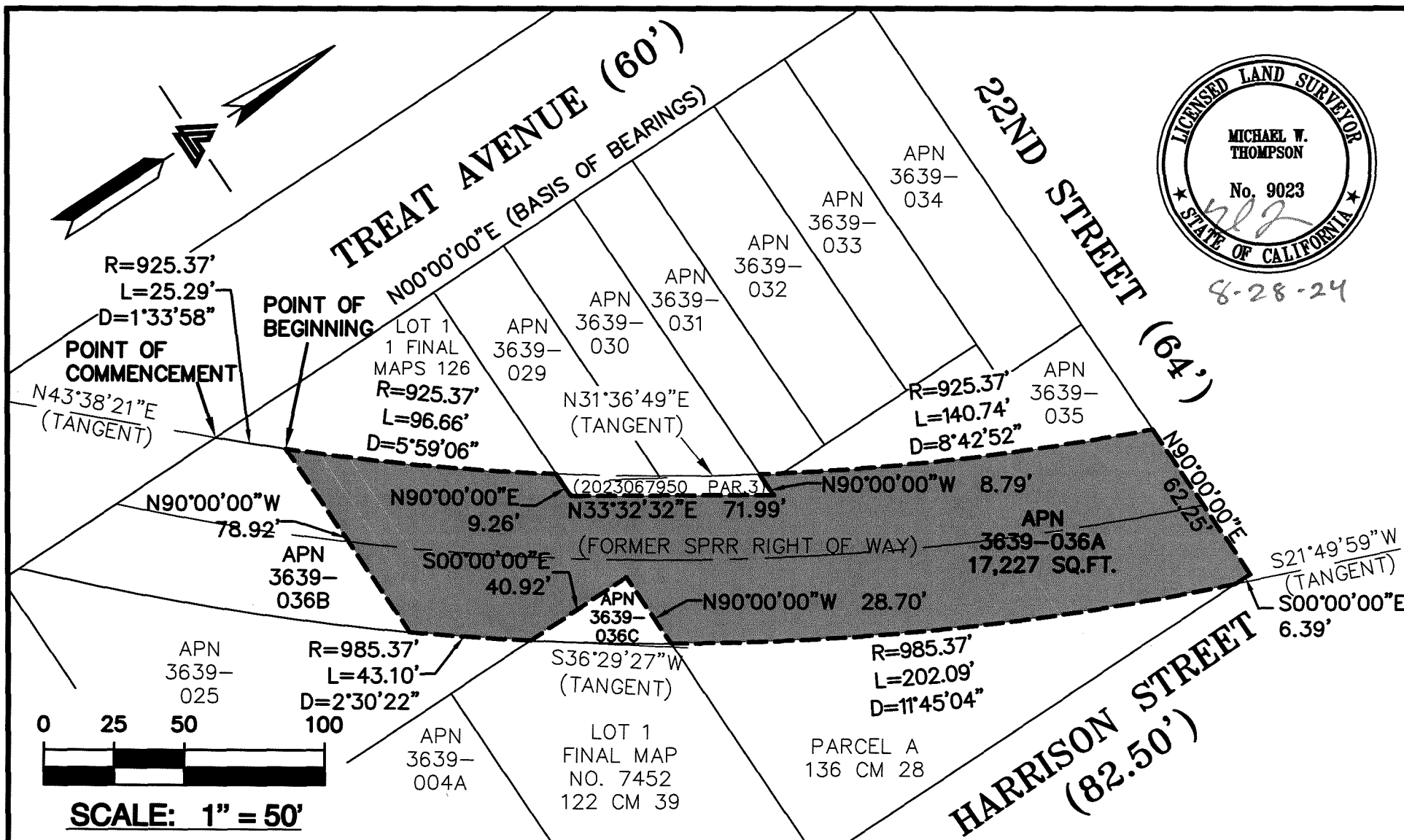
Containing 17,227 square feet, more or less.

END OF DESCRIPTION



8-28-24

EXHIBIT 3



8-28-24



LEA & BRAZE ENGINEERING, INC.

CIVIL ENGINEERS • LAND SURVEYORS

BAY AREA REGION
 2495 INDUSTRIAL PKWY WEST
 HAYWARD, CALIFORNIA 94545
 (P) (510) 887-4086
 (F) (510) 887-3019

SACRAMENTO REGION
 3017 DOUGLAS BLVD, # 300
 ROSEVILLE, CA 95661
 (P) (916) 966-1338
 (F) (916) 797-7363

WWW.LEABRAZE.COM

EXHIBIT "B"
PLAT TO ACCOMPANY LEGAL
DESCRIPTION FOR APN 3639-036A
SAN FRANCISCO
CALIFORNIA

JOB NO 2231026

DRAWN BY MT

SCALE: 1" = 50'

JUNE 2024

EXHIBIT 4

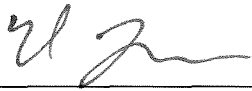
DECLARATION OF MICHAEL THOMPSON

I, Michael Thompson, declare as follows:

1. I am a Senior Associate Surveyor at Lea & Braze Engineering, Inc.,
and am a licensed Professional Land Surveyor.
2. I prepared the attached legal description for the property in the City and
County of San Francisco referred to as Mission Block 139, Assessor's Parcel Number
3639-036A.
3. I also prepared the attached Plat Map describing such property.

I declare under penalty of perjury under the laws of the State of California that
the foregoing is true and correct.

Executed on this 28 day of AUGUST, 2024 at
PLEASANTON, California.



Michael Thompson

EXHIBIT 5

Purchase and Sale Agreement

This Purchase and Sale Agreement is made between 17th and Peralta, LLC ("Buyer") and the heirs of Franklin H. Watson III (Lauren Watson Cesare, Linda Watson, Lisa C. Watson, Douglas C. Watson, and David G. Watson (each a "Seller" and collectively "Sellers")), together "the Parties."

Recitals

a. Another Corporate ISP, dba Monkeybrains, is a San Francisco-based internet service provider, whose affiliate, 17th & Peralta LLC ("Buyer") owns a warehouse at 931-933 Treat Avenue, San Francisco, CA 94110 (the "931-933 Treat Property"). Buyer purchased the 931-933 Treat Property from Jim Heinzer in the fall of 2022.

b. The 931-933 Treat Property is adjacent to an empty lot commonly known as "Parcel 36", which is comprised of San Francisco Assessor Parcel Numbers 3639/036A, 3639/036B, and 3639/036C, and has a street address of 957 Treat Ave, San Francisco, CA 94110 (collectively "Parcel 36"). In the fall of 2023, Buyer became a partial owner of APN 3639/036B ("Parcel 36B").

c. Buyer claims a prescriptive easement encumbering Parcel 36 as a result of the decades-long open and notorious use of Parcel 36 by Buyer and its predecessor and former owner of 931-933 Treat Property, Jim Heinzer and his affiliates. Without limiting the foregoing, Buyer and its predecessors have for decades openly and notoriously used APN 3639/036A (herein "Parcel 36A") for parking and for access through 22nd Street. Sellers do not acknowledge a prescriptive easement by Buyers or any other person or entity with respect to Parcel 36.

d. Since Jim Heinzer's sale of the 931-933 Treat Property to Buyer, a local "guerrilla gardening group" by the name of Mission Greenway has publicly challenged Buyer's easement claim on Parcel 36, placed various encroachments around Parcel 36, and vehemently opposed Buyer's use of Parcel 36, including through acts of physical violence and intimidation. Mission Greenway's dispute with Buyer has been widely reported and become a matter of public interest.

e. Buyer has spent considerable sums to stabilize the situation on Parcel 36, eject trespassers, and research the legal ownership of Parcel 36A. After months of investigation by Buyer's attorneys and private investigators into title records concerning Parcel 36A, Buyer believes that the Sellers have a 50% fee ownership interest in Parcel 36A, with the remaining 50% interest held by Sellers' cousins, Paul and Leslie Adams, as the heirs of Janet Watson Adams. However, such ownership is not presently shown in the chain of title in the Official Records of the City and County of San Francisco ("Official Records"). Therefore, in order to confirm the extent of the Sellers' ownership interest in Parcel 36A and facilitate the purchase and sale under this Agreement, Buyer desires to engage legal counsel to file a Heggstad petition and take such other legal action as may be required to establish Sellers' legal interest in Parcel 36A.

f. Buyer wishes to purchase and Sellers desire to sell all of Sellers' right, title and interest in Parcel 36 in accordance with the terms of this Agreement.

Agreement

1. Sellers agree to sell and Buyer agrees to purchase all of Seller's right, title and interest in and to Parcel 36 (the "Property") in accordance with and subject to the terms and conditions of this Agreement.

2. The Parties agree to maintain the existence of this Agreement and the terms and conditions hereof as private among their extended family, except as may be necessary to accomplish the purposes of this Agreement. Sellers will not share any documents of any kind in connection with this Agreement with any third party (other than Sellers' counsel and Sellers' extended family members), without the express permission of Buyer.

3. At Closing (as defined below), Buyer agrees to pay a total of \$80,000 (the "Purchase Price") to Sellers (\$16,000 to each Seller) for the conveyance to Buyer of the Property. The Property will be conveyed to Buyer pursuant to a Quitclaim Deed in a form prepared and approved by Buyer's counsel (the "Deed").

Within five (5) days of the full execution of this Agreement, Buyer shall send \$300 to each Seller, for a sum of \$1,500 (the "**Independent Consideration**"), by check sent to the mailing address provided by each Seller. Such sum shall not be refundable to Buyer, and shall represent consideration for this Agreement. The Independent Consideration shall serve as consideration for the granting of the time periods herein contained for Buyer to exercise Buyer's right to satisfy and approve all of Buyer's conditions herein contained in this Agreement. The Independent Consideration is in addition to the Purchase Price.

4. The Parties hereby agree to execute such other documents and perform such other acts as may be necessary or appropriate to carry out the purposes of this Agreement.

5. Buyer has engaged legal counsel to take such legal action (including filing a Heggstad petition) as Buyer reasonably determines is required to establish Seller's ownership interest in the Property. The scope and cost of such proceedings shall be subject to the prior approval of Buyer, and Buyer agrees to pay for all such approved fees and costs so incurred in such action(s). The Sellers shall have no responsibility whatsoever for payment of any such costs or legal fees. Should Sellers engage separate legal counsel, Sellers shall be responsible for payment of fees and/or costs of its own such counsel. Buyer will have ultimate responsibility for and control over any attorney, consultant, or other agent that may be engaged by Buyer in furtherance of the confirmation of Sellers' ownership interest in the Property. Buyer may terminate this Agreement by delivery of written notice if Buyer in good faith determines that the legal and record status of Seller's ownership interest in Parcel 36 (if any) is not satisfactory to Buyer.

6. The Sellers agree to fully cooperate in good faith with Buyer and Buyer's attorneys and agents in their mutual efforts to confirm the Sellers' interest in the Property,

including but not limited to providing all pertinent documents relating to the Franklin & Marilyn Watson Trust DTD 12/15/1992 and signing or otherwise supporting any trust petition or probate action that may be required to confirm the Seller's legal interest in the Property. Sellers further agree to fully cooperate in good faith with Buyer and Buyer's attorneys and agents in their mutual efforts to transfer Sellers' legal interest in the Property to Buyer with free and clear title, to the greatest extent that circumstances allow. The Sellers commit to making themselves reasonably available to Buyer and Buyer's attorneys and agents through the duration of this Agreement to accomplish the purpose of this Agreement with diligence and expediency. The Sellers further commit to use good faith and fair dealing in any later effort by Buyer to establish or purchase the remaining legal interests that may be held by the Sellers' family members; however, Sellers shall not incur or be responsible for any costs in connection with any such later efforts by Buyer. The Sellers will not disclose to any third party outside their extended family any documents or information gained in connection with this Agreement, including that which may be used by Seller's family members to establish their legal interest in the Property without Buyer's express permission.

7. It shall be a condition of Closing that Buyer has delivered written notice to Sellers ("Buyer's Notice") that Buyer has approved the status of Seller's ownership interest in the Property and all other matters related to the Property and is prepared to proceed with the Closing. If Buyer does not deliver Buyer's Notice approving the status of Seller's ownership of the Property within eighteen months of the full execution of this Agreement then this Agreement shall be terminated, provided however, that upon notice to and approval by Sellers, which approval shall not be unreasonably withheld, Buyer shall have the right to extend such eighteen month period for an additional period reasonably estimated by Buyer to be required to resolve Seller's ownership interest in the Property. This Agreement shall remain in full force and effect during such extended period.

8. The closing of the purchase and sale ("Closing") shall be consummated through an escrow account established by Buyer with a nationally recognized title insurance company or other licensed escrow holder ("Escrow Holder"). Escrow Holder shall proceed in accordance with the terms of this Agreement and separate instructions of the Parties consistent with this Agreement. The Parties may agree to an alternate method for consummating the Closing acting in their sole but reasonable discretion.

9. Within ten (10) business days after the delivery of Buyer's Notice, the Parties shall deliver the following to Escrow Holder, who shall hold such documents and funds in accordance with this Agreement: (a) Buyer shall deliver the Purchase Price, and (b) Sellers shall deliver the Deed (duly notarized, acknowledged and in recordable form). Upon receipt of such funds and documents, Escrow Holder shall cause the Deed to be recorded in the Official Records of the County of San Francisco and upon confirmation of such recordation disburse the Purchase Price to Sellers. Costs of recording a Deed to the Property in Sellers' names, notary fees to deliver the duly notarized and acknowledged Deed, the Escrow Holder, transfer taxes and recording fees shall be paid by Buyer. Buyer further agrees to pay any and all outstanding property taxes that may be due on the Property as a condition of this Agreement.

10. Time is of the essence in the performance of the Parties' respective obligations under this Agreement.

11. In recognition of the significant sums Buyer has expended to discover Sellers' interest in the Property, and of the sums Buyer will expend to formally establish Sellers' legal interest in the Property, the Sellers agree to be bound by the terms of this Agreement and herein commit to the sale and transfer of any interest they may have in the Property to Buyer (only) during the term of this Agreement. During the term of this Agreement, Seller (a) will not make, accept or negotiate the terms of any proposal or agreement concerning the Property to or with any other party and (b) shall not transfer, convey or encumber any interest in the Property. Any action taken in breach of the foregoing will be null, void and of no force or effect. Buyer may use all available legal remedies to enforce this Agreement, including injunctive relief and specific performance.

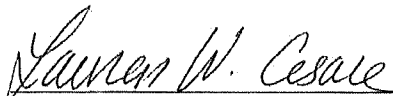
12. This Agreement shall have no impact or effect on Buyer's existing right, title or interest in and to Parcel 36.

13. This Agreement represents the entire Agreement between the Parties, and may be amended or modified only with the written consent of the parties hereto.

14. This Agreement may be executed in two or more counterparts and when so executed shall have the same force and effect as though all signatures appear on one document. Delivery via email or PDF transmission of a counterpart of this Agreement executed by the party(ies) making such delivery shall constitute a valid execution and delivery of this Agreement for all purposes as if such party had delivered an original counterpart. Signatures may also be transmitted using electronic signature technology.

15. All notices or other documents to be provided pursuant to this Agreement shall be sent via email or nationally-recognized overnight courier to the addresses specified below such parties' signature. Notices may be sent by the Parties' representatives.

SELLERS:



Lauren Watson Cesare

Date: June 17, 2024

BUYER:

17th & Peralta

By Alejandro Menendez

Title: _____

Date: _____

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SELLERS:

Lauren Watson Cesare

Date: _____

BUYER:

17th & Peralta


By Alejandro Menendez

Title: Managing Member

Date: 6/13/2024

SELLERS:

Lauren Watson Cesare

Date: _____



Linda Watson

Date: June 15, 2024

Lisa C. Watson

Date: _____

Douglas C. Watson

Date: _____

David G. Watson

Date: _____

SELLERS' ADDRESSES

Lauren Watson Cesare
1521 Cherry Valley Dr.
San Jose, CA 95125
cesarelaw@cesarelawfirm.com

BUYER:

17th & Peralta

By Alejandro Menendez

Title: _____

Date: _____



By Rudy Rucker

Title: Managing Member

Date: Jun 18, 2024

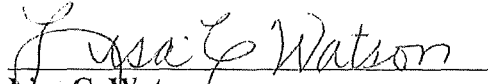
BUYER'S ADDRESS

933 Treat Ave.
San Francisco, CA 94110

Email: _____

Linda Watson

Date: _____



Lisa C. Watson

Date: June 14, 2024

Douglas C. Watson

Date: _____

David G. Watson

Date: _____

By **Rudy Rucker**

Title: _____

Date: _____

BUYER'S ADDRESS

933 Treat Ave.
San Francisco, CA 94110

Email: _____

SELLERS' ADDRESSES

Lauren Watson Cesare
1521 Cherry Valley Dr.
San Jose, CA 95125
cesarelaw@cesarelawfirm.com

Linda Watson
25743 Flanders Place
Carmel, CA 93923-8303

lindawatson2@aol.com

Lisa C. Watson
25743 Flanders Place
Carmel, CA 93923-8303
lcwcarmel@aol.com

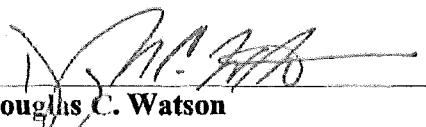
Douglas C. Watson
333 Gladys Dr.
Pleasant Hill, CA 94523

Linda Watson

Date: _____

Lisa C. Watson

Date: _____


Douglas C. Watson

Date: 6/18/2024

David G. Watson

Date: _____

By Rudy Rucker

Title: _____

Date: _____

BUYER'S ADDRESS

933 Treat Ave.
San Francisco, CA 94110

Email: _____

SELLERS' ADDRESSES

Lauren Watson Cesare
1521 Cherry Valley Dr.
San Jose, CA 95125
cesarelaw@cesarelawfirm.com

Linda Watson
25743 Flanders Place
Carmel, CA 93923-8303

lindawatson2@aol.com

Lisa C. Watson
25743 Flanders Place
Carmel, CA 93923-8303
lcwcarmel@aol.com

Douglas C. Watson
333 Gladys Dr.
Pleasant Hill, CA 94523

Lisa C. Watson

Date: _____

Douglas C. Watson

Date: _____

David G. Watson
David G. Watson

Date: June 17, 2024

Title: _____

Date: _____

BUYER'S ADDRESS

933 Treat Ave.
San Francisco, CA 94110

Email: _____

SELLERS' ADDRESSES

Lauren Watson Cesare
1521 Cherry Valley Dr.
San Jose, CA 95125
cesarelaw@cesarelawfirm.com

Linda Watson
25743 Flanders Place
Carmel, CA 93923-8303

lindawatson2@aol.com

Lisa C. Watson
25743 Flanders Place
Carmel, CA 93923-8303
lcwcarmel@aol.com

Douglas C. Watson
333 Gladys Dr.
Pleasant Hill, CA 94523
doug.watson@bridgerfund.com

David G. Watson
14 Cardiff Place
Alamo, CA 94507

dgwatson02@yahoo.com

EXHIBIT 6

I, _____, County Clerk of the County of Santa Clara, California, and ex-officio Clerk of the Superior Court, in and for said City and County, hereby certify, the foregoing to be a full, true and correct copy of the original Decree Establishing Title in the above entitled cause, filed in my office on the 7th day of March, A.D. 1912.

ATTEST my hand and seal of said Court, this 7th day of March, 1912.

(Seal)

H. I. MULCREVY, Clerk.

By H. I. PORTER, Deputy Clerk.

A true copy of original recorded at request of Clara Schrenz, Mar. 7, 1912 at 33 min. past 10 A.M.

No. M. 34283 Fee \$2.00 Fol. 17. County Recorder.

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA, IN AND FOR THE
CITY AND COUNTY OF SAN FRANCISCO.

SOUTHERN PACIFIC RAILROAD COMPANY,)
)
) PLAINTIFF,)
)
) VS.) No. 19,851. Dept. No. 8.
)
)
) ALL PERSONS CLAIMING ANY INTEREST IN)
)
) OR LIEN UPON THE REAL PROPERTY HEREIN-) FINDINGS OF FACT, CONCLUSIONS OF LAW
)
)
) AFTER DESCRIBED, OR ANY PART THEREOF,) AND DECREE.
)
) DEFENDANTS.)

THE above entitled cause having come on regularly for hearing on the 19th day of January, 1912, before the Court sitting without a jury, a jury trial having been expressly waived by the parties appearing in said action, Frank McGowan, Esq., and Frank Shay, Esq., appearing as Counsel for Plaintiff, and Percy V. Long, Esq., City Attorney, and Daniel S. O'Brien, Assistant City Attorney, of the CITY AND COUNTY OF SAN FRANCISCO, appearing as Counsel for said City and County; J. F. Bowie, Esq., appearing as Counsel for the Defendant J. H. KRUSE; Messrs. Wilson & Wilson, appearing as Counsel for Defendant LOUISE R. BARROILHET; Edward G. Harrison, Esq., appearing as Counsel for Defendants GEORGE S. CRIM, WM. H. CRIM, GRACE M. CRIM, SAMUEL CRIM and WILLIAM H. CRIM, JR.; Messrs. Perry & Bailey, appearing as Counsel for Defendant WILHEMINA ROHDE; Chas. S. Wheeler, Esq., appearing in propria persona; R. H. Countryman, Esq., appearing as Counsel for Defendant JOHN G. KLUMPKE; Thos. E. Haven, Esq., appearing as Counsel for Defendant MARY S. COLE; Messrs. Devota, Richardson & Devota, appearing as Counsel for Defendants ANNA C. INGELS and MARTHA R. POPPE. W. F. Sawyer, having heretofore appeared as Counsel for A. C. FREEMAN and GEORGE E. BATES, and having filed their answers herein, announced the death of A. C. Freeman and the due appointment by the Superior Court of the State of California, in and for the City and County of San Francisco, of MABEL FREEMAN as Executrix of the last will of A. C. Freeman, deceased, and stated that he, said W. F. Sawyer, had succeeded to the interests and titles of said George E. Bates and said A. C. Freeman in and to the real property described in the answers heretofore filed herein by said A. C. Freeman and said George E. Bates. By permission of the Court, the answers of W. F. Sawyer, successor to the interests and titles aforesaid, and Mabel Freeman, as Executrix of the last will and testament of A. C. Freeman, deceased, were filed herein. The Defendant, V. GAMBONI MAZZITELLI heretofore filed his answer herein through his counsel H. M. Anthony, Esq.; the Defendant WM. GISELMAN, as Trustee, heretofore filed his answer herein by his Attorney Ryland B. Wallace, Esq. Counsel for Plaintiff, by permission of the Court, filed proof of service of notice of

time of trial upon all of the Defendants herein. No other person having appeared in said action or answered the complaint filed herein within the time allowed by law or at all, the defaults of all persons not appearing herein were ordered entered. Witnesses on behalf of the respective parties were duly sworn and examined and documentary evidence was introduced by and on behalf of the respective parties and the cause was submitted to the Court for consideration and decision.

AND it appearing to the satisfaction of the Court from the pleadings in said action and from the evidence offered at the hearing that said Plaintiff filed its duly verified complaint herein on the 19th day of January, 1910, and that said verified complaint contained all matters and things required by and specified in that certain Act of the Legislature of the State of California, entitled "An Act _____ for the Establishment and Quieting of Title to Real Property in Case of the Loss or Destruction of Public Records", approved June 16, 1906, and the Act of said Legislature supplementary thereto, approved March 23, 1907.

AND it further appearing to the satisfaction of the Court from the files and records herein and from the evidence offered at this hearing, that upon the filing of said complaint, summons was duly issued under the seal of this Court on, to-wit, said 19th day of January, 1910, and that said summons was in the form and contained all the matters and things required by and specified in said Act of the Legislature of the State of California, approved June 16, 1906, hereinbefore mentioned.

AND it further appearing to the satisfaction of the Court from the evidence submitted at the hearing that said summons was duly published in The Evening Post, a newspaper of general circulation published in said City and County of San Francisco, that being the City and County in which this action was brought, and said newspaper being the newspaper designated by an order of this Court duly signed and filed with the Clerk, and that said summons was published once a week for consecutive weeks for a period of two months, beginning on the 22nd day of January, 1910, and that to each publication thereof was appended the memorandum required by said Act of the Legislature of the State of California, approved June 16, 1906, hereinabove mentioned; and it further appearing from the testimony adduced at the hearing that a copy of said summons, together with a copy of said memorandum, was posted in a conspicuous place on each separate parcel of the property described in the complaint filed in said action within 15 days after the first publication of said summons.

AND it further appearing to the satisfaction of the Court that at the time Plaintiff filed its complaint herein it also filed therewith the affidavit of its Vice-President, E. E. CALVIN, which affidavit contained all the matters and things and was in the form prescribed by said Act of the Legislature of the State of California, approved June 16, 1906.

AND it further appearing to the satisfaction of the Court that Plaintiff, at the time of filing the complaint herein, duly recorded in the office of the County Recorder of said City and County of San Francisco on said 19th day of January, 1910, a notice of the pendency of this action, which notice contained the object of the action and a particular description of the real property affected thereby, and that said notice was duly recorded, entered and indexed by said Recorder as required by said Act of said Legislature last hereinabove mentioned; and it also appearing to the satisfaction of the Court that said County Recorder duly entered a reference to the date of filing of said notice and to the book and

page of the record thereof upon a map or plat of parcels of land kept by him for that purpose, as required by law, and on those parts of the map or plat representing each individual parcel of land described in said complaint.

AND it further appearing to the satisfaction of the Court that no person or persons, other than those who have appeared in this action, have filed in the office of the County Recorder of said City and County of San Francisco any notice of ownership and claim to real property, provided for by an Act of the Legislature of the State of California, approved March 23, 1907, which Act is supplementary to said Act approved June 16, 1906, which relates to or affects the real property described in Plaintiff's said complaint, or any part or parcel thereof.

AND it further appearing to the satisfaction of the Court that there is no other action pending in this Court which relates to or affects the real property described in Plaintiff's said complaint, or any part or parcel thereof, except as hereinafter mentioned.

NOW, THEREFORE, the Court finds:

1- THAT Plaintiff, at the time of the commencement of this action, was, ever since has been and now is the owner of and has and at all of said times had an estate of inheritance in all of that certain real property described in said complaint as Parcels 1, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 22, 23, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 47, 48, 49, 50, 51, 52, 53 and 54.

2- THAT with respect to the parcel of real property described in said complaint as Parcel 2, being all of Block 15 of the South Beach and Water Lot Survey, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in all of said parcel except as follows:

(a) THAT part thereof in which the Defendant Louise R. Barroilhet claimed a reversionary title, and described in her answer filed herein, to-wit: that certain parcel of land situate in the City and County of San Francisco, State of California,

COMMENCING at a point on the Northwestern line of King Street distant thereon 45 feet and 10 inches Southwesterly from the intersection of the Northwestern line of King Street with the Southwesterly line of Fourth Street, and running thence Southwesterly and along said line of King Street 68 feet and 9 inches; thence at a right angle Northwesterly 60 feet; thence at a right angle Northeasterly 22 feet and 11 inches; thence at a right angle Northwesterly 60 feet to the Southerly line of Jewett Street; thence Northeasterly and along said line of Jewett Street 45 feet and 10 inches; thence at a right angle Southeasterly 120 feet to the point of commencement; being portions of Lots 387, 388 and 389 of said South Beach Block No. 15;

THAT since the commencement of this action the Plaintiff herein on the 20th day of December, 1911, purchased from said Louise R. Barroilhet her right, title and interest in said parcel of land, and ever since said date Plaintiff has been and now is the owner and in the exclusive and peaceable possession thereof.

(b) LOT BEGINNING at a point on the Northwestern line of King Street distant thereon 114 feet 7 inches Southwesterly thereon from the corner formed by the intersection of the Southwesterly line of 4th Street with the Northwestern line of King Street, and running

thence Southwesterly and along said Northwesterly line of King Street 22 feet 11 inches; thence at a right angle Northwesterly 120 feet; thence at a right angle Northeasterly 45 feet 10 inches; thence at a right angle Southeasterly 60 feet; thence at a right angle Southwesterly 22 feet 11 inches; thence at a right angle Southeasterly 60 feet to the point of commencement; being part of Lots 387, 388 and 389 in said South Beach Block 15.

(c) LOT BEGINNING on the Southeasterly line of Townsend Street, distant thereon 183 feet 4 inches Southwesterly from the Southwesterly line of 4th Street, and running thence Southwesterly and along said Southeasterly line of Townsend Street 91 feet 8 inches; thence at a right angle Southeasterly 120 feet to the Northwesterly line of Jewett Street; thence at a right angle Northeasterly and along said line of Jewett Street 91 feet 8 inches; thence at a right angle Northwesterly 120 feet to the Southeasterly line of Townsend Street and point of commencement; being part of Lots 396 and 397 in said South Beach Block 15.

(d) LOT BEGINNING at a point on the Northwesterly line of King Street, distant thereon 229 feet 2 inches Southwesterly from the Southwesterly line of 4th Street, running thence Southwesterly and along said Northwesterly line of King Street 45 feet 10 inches; thence at a right angle Northwesterly 120 feet to the Southeasterly line of Jewett Street; thence at a right angle Northeasterly and along the said line of Jewett Street 45 feet 10 inches; thence at a right angle Southeasterly 120 feet to the Northwesterly line of King Street and the point of commencement; being Lot 398 in said South Beach Block 15.

(e) LOT 399 in said South Beach Block 15.

(f) LOT BEGINNING on the Northwesterly line of Jewett Street 275 feet Southwesterly from the Southwesterly line of Fourth Street, running thence Southwesterly along said line of Jewett Street 45 feet 10 inches, with a uniform depth of 60 feet, being part of Lot 400 in said South Beach Block 15.

(g) LOT BEGINNING on the Northwesterly line of King Street 320 feet 10 inches Southwesterly from the Southwesterly line of 4th Street; thence Southwesterly 45 feet 10 inches, with a uniform depth of 60 feet, being part of South Beach Block 15.

(h) LOT COMMENCING at a point on the Northwesterly line of King Street, distant thereon 366 feet 8 inches Northwesterly from the Southwesterly line of 4th Street, and running thence Southwesterly along said Northwesterly line of King Street 45 feet 10 inches; thence at a right angle Northerly 120 feet; thence at a right angle Easterly 45 feet 10 inches; thence at a right angle Southerly 120 feet to the point of commencement, being Water Lot No. 403 in said South Beach Block No. 15.

(i) LOT BEGINNING on the Northwesterly line of King Street 366 feet 8 inches Northeasterly from the Northeasterly line of 5th Street, and running thence Northeasterly along said line of King Street 22 feet 11 inches, with a uniform depth of 60 feet, being part of Lot 406 in said South Beach Block 15.

(j) A strip of land having a uniform width of 35 feet, extending from the Westerly line of 4th Street to the Easterly line of 5th Street, the Northerly boundary thereof being parallel to the Southerly line of Townsend Street and 120 feet Southerly therefrom, and the Northerly line thereof being parallel to the Northerly line of King Street and 120 feet Northerly therefrom, the same being a public street known as Jewett Street.

THAT Plaintiff is and at all the times hereinabove mentioned has been in the actual

and peaceable possession of all of said parcel, except so much thereof as is included within the lines of Jewett Street; that on the 26th day of March, 1851, all of said parcel of land was owned in fee simple by the State of California; that by Act of its Legislature, approved on said 26th day of March, 1851, said State of California granted to the City of San Francisco, then a Municipal Corporation in said State, the use and occupation of said real property for the term of 99 years from said last mentioned date; that the said right to the use and occupation of said real property for said term of 99 years duly passed to and at all of the times herein mentioned was and now is owned by and vested in said Plaintiff; that subject to said right of use and occupation the fee simple title to said real property remained on said 26th day of March, 1851, in said State of California, being the reversion of said real property and being usually known as and called the "State Title"; that pursuant to Acts of the Legislature of the State of California, providing for the sale of the interest of said State in the lands described in said Act of March 26, 1851, the said reversion or State Title was duly sold by said State and conveyances thereof were duly made by said State to the purchasers of said reversion or State Title covering all of said South Beach Block 15, and were duly recorded in the office of the County Recorder of the County of San Francisco; that by mesne conveyances, duly executed and recorded, the Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title in and to all of said parcel of land, to-wit, said South Beach Block No. 15, except as hereinabove in this finding stated.

THAT ever since February 13, 1868, and at the time of the commencement of this action, the Defendant John G. Klumpke was, ever since continuously has been and still is the owner of said reversion or State Title to the parcel of land referred to in this finding as exception "b"; that at the time of the commencement of this action the Defendant Wm. Giselman, as Trustee, was, ever since has been and still is the owner of the said reversion or State Title to the parcels of land referred to in this finding as exceptions "c" and "d"; that at the time of the commencement of this action the Defendant Wm. Jacoby was, ever since has been and now is the owner of the reversion or State Title to the parcels of land referred to in this finding as exceptions "e", "f" and "g"; that at the time of the commencement of this action, the Defendant Mary S. Cole was, ever since has been and still is the owner of said reversion or State Title to that parcel referred to in this finding as exception "h"; that at the time of the commencement of this action, Defendant B. P. Lapachet was, ever since has been and now is the owner of the reversion or State Title to that parcel referred to in this finding as exception "i"; that at the time of the commencement of this action, the parcel of land described in exception "j" was, ever since has been and now is a public street, of the City and County of San Francisco, and known as Jewett Street.

3- THAT with respect to the parcel of real property described in said complaint as Parcel 3, being all of Block 20 of the South Beach and Water Lot Survey, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has at all of said times had an estate of inheritance in all of said parcel except Water Lots 572 and 581, and so much of said parcel as is described as follows:

BEGINNING at the point formed by the intersection of the Southerly or Southeasterly line of Townsend Street with the Northerly or Northeasterly line of 6th Street, and running thence Southerly or Southeasterly along said line of 6th Street 137-1/2 feet; thence at a

right angle Northeasterly and parallel to said line of Townsend Street 137-1/2 feet; thence at a right angle Northwesterly and parallel to said line of 6th Street 137-1/2 feet to Townsend Street; thence at a right angle Westerly or Southwesterly along the said line of Townsend Street 137-1/2 feet to 6th Street and point of beginning, being a portion of South Beach Block No. 20.

THAT Plaintiff is and at all of the times hereinabove mentioned has been in the actual and peaceable possession of all of said parcel; that on the 26th day of March, 1851, all of said parcel of land was owned in fee simple by the State of California; that by Act of its Legislature, approved on said 26th day of March, 1851, said State of California granted to the City of San Francisco, then a Municipal Corporation in said State, the use and occupation of said real property for the term of 99 years from said last mentioned date; that the said right to the use and occupation of said real property for said term of 99 years duly passed to and at all of the times herein mentioned was and now is owned by and vested in said Plaintiff; that subject to said right of use and occupation the fee simple title to said real property remained on said 26th day of March, 1851, in said State of California, being the reversion of said real property and being usually known as and called the "State Title"; that pursuant to Acts of the Legislature of the State of California, providing for the sale of the interest of said State in the lands described in said Act of March 26, 1851, the said reversion or State Title was duly sold by said State and conveyances thereof were duly made by said State to the purchasers of said reversion or State Title covering all of said South Beach Block 20, and were duly recorded in the office of the County Recorder of the County of San Francisco; that by mesne conveyances, duly executed and recorded, the Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title in and to all of said parcel of land, namely, Block 20 of the South Beach and Water Lot Survey, except such parts thereof as are hereinbefore in this finding excepted; that at the time of the commencement of this action George E. Bates and A. C. Freeman were the owners of said reversion or State Title to said Lot 572; that since the commencement of this action, the titles and interests of said George E. Bates and A. C. Freeman have passed to W. P. Sawyer and are now held and owned by him, subject only to the administration of the estate of A. C. Freeman, deceased; that the Defendant J. G. Klumpke at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title to said Lot No. 581; that the Defendant Chas. S. Wheeler at the time of the commencement of this action was, ever since has been and now is the owner of the said reversion or State Title to the parcel of land in this finding specifically described as,

BEGINNING at the point formed by the intersection of the Southerly or Southeasterly line of Townsend Street with the Northerly or Northeasterly line of 6th Street, and running thence Southerly or Southeasterly along said line of 6th Street 137-1/2 feet; thence at a right angle Northeasterly and parallel to said line of Townsend Street 137-1/2 feet; thence at a right angle Northwesterly and parallel to said line of 6th Street 137-1/2 feet to Townsend Street; thence at a right angle Westerly or Southwesterly along the said line of Townsend Street 137-1/2 feet to 6th Street and point of beginning, being a portion of South Beach Block No. 20.

4- THAT with respect to the parcel of land described in said complaint as Parcel 21,

Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in all there- of as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley; that at the time of the commencement of this action Plaintiff was, ever since has been and now is in the actual and exclusive possession of all of said Parcel 21; that so much of said parcel as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley was, in the year 1863, conveyed by John Center to the San Francisco & San Jose Railroad Company, predecessor of Plaintiff, for the right of way for its railroad; that Plaintiff herein has succeeded to all of the rights and titles of said San Francisco & San Jose Railroad Company; that in and by said deed of conveyance executed by said John Center it was expressly provided that in the event the use of said land as a right of way for said railroad should be at any time abandoned or should at any time be discontinued for a period of six months, the title and right to the possession thereof should revert to the grantor, to-wit: John Center; that the John Center Company, George S. Crim, William H. Crim, Grace M. Crim, Samuel M. Crim and William H. Crim, Jr., successors to said John Center, are, and, at the time this action was commenced, were, the owners in fee of so much of said Parcel 21 as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley, subject only to the right of way of Plaintiff herein for railroad purposes and subject to the conditions hereinabove mentioned.

5- THAT with respect to the parcel of land described in said complaint as Parcel 24, the Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in, and is and at all of said times has been in the actual and peaceable possession of, all of said parcel of land except so much thereof as is included in and covered by decree entered by the Superior Court of the State of California in and for the City and County of San Francisco, in the suit of Wilhemina Rohde versus All Persons, etc., numbered 11,446, on the 23rd day of March, 1909, to-wit:

BEGINNING at a point on the Northerly right of way line of the Southern Pacific Railroad Company at a point 137 feet 6 inches Southerly from the Southerly line of 24th Street and 15 feet 6 inches Easterly from the Easterly line of Howard Street, and running thence Northeasterly along said line of said right of way to the Westerly line of Howard Street; thence Southerly along said Westerly line of Howard Street to a point 137 feet 6 inches Northerly from the Northerly line of 24th Street; thence at a right angle Westerly 15 feet 6 inches, more or less, to the point of beginning.

6- WITH respect to the parcels of real property described in said complaint as Parcel 25 and Parcel 26, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in, and is and at all of said times has been in the actual and peaceable possession of, all of said parcels of real property, except so much thereof as is included in and covered by decree entered July 20, 1910, in suit brought in the Superior Court of the State of California, in and for the City and County of San Francisco, entitled John H. Kruse vs. All Persons etc., No. 8200, a certified copy of which decree was duly recorded in the office of the County Recorder of said City and County of San Francisco; and except so much thereof as is included in and covered by decree entered June 30, 1908, in suit brought in the Superior Court of the

State of California, in and for the City and County of San Francisco, entitled Anna C. Ingels and Martha H. Poppe vs. All Persons etc., numbered 5419, a certified copy of which decree was recorded on July 1, 1908, in Liber 193 of Deeds, Page 54, Records of said City and County.

7- WITH respect to the parcels of real property described in said complaint as Parcel 27, Parcel 28 and Parcel 29, Plaintiff at the time of the commencement of this action was, ever since has been and now is in the actual and exclusive possession thereof; that said parcels of land were conveyed by John Center, in the year 1863, to the San Francisco and San Jose Railroad Company, predecessor of Plaintiff, for the right of way for its railroad; that Plaintiff herein has succeeded to all of the rights and titles of said San Francisco and San Jose Railroad Company; that in and by the deed of conveyance of said right of way executed by said John Center it was expressly provided that in the event the use of said land as a right of way for said railroad should be at any time abandoned or should at any time be discontinued for a period of six months, the title and right to the possession thereof should revert to the grantor, to-wit: John Center; that the Defendants, George S. Grim, Wm. H. Grim, Grace M. Grim, Samuel M. Grim and Wm. H. Grim, Jr., successors to said John Center, are and at the time of the commencement of this action were the owners of the fee to said parcels of land, described as Parcels 27 and 29 and to that part of said Parcel 28 lying South of a line parallel to the Southerly line of Twenty-second Street and distant 260 feet Southerly therefrom, and which lies also West of a line parallel to the Westerly line of Harrison Street and distant 122 feet and 6 inches Westerly therefrom, subject only to the right of way of Plaintiff herein for railroad purposes, and subject to the conditions hereinabove mentioned; that the John Center Company, successor to said John Center, is, and, at the time of the commencement of this action, was, the owner of the fee to the remainder of said Parcel 28, subject only to the right of way of Plaintiff herein for railroad purposes, and subject to the conditions hereinabove mentioned.

8- WITH respect to the parcel of real property described in said complaint as Parcel 46, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee and has and at all of said times had an estate of inheritance therein; that Plaintiff is and at all of the times hereinabove mentioned has been in the actual and peaceable possession of all of said parcel; that it is not true that the Defendant V. Gamboni Mazzitelli at the time of the commencement of this action, or at any time since or for a long time prior to the commencement thereof or at any time whatsoever, was the owner in fee or the owner at all or entitled to the actual or peaceable possession or to the possession at all of said Parcel 46 described in said complaint, or any part thereof, and that said Defendant V. Gamboni Mazzitelli has not and never had any right, title or interest in or to said parcel or any part thereof.

8a- THAT on and prior to the 18th day of April, 1906, the said estate, right and title of Plaintiff and its predecessors in interest in and to said real property was evidenced, shown and established by, and could be traced and ascertained from, the public records in the office of the County Recorder of said City and County of San Francisco, and that such estate, right and title of Plaintiff and its predecessors in interest therein, and thereto on said last named date were and were shown by said public records to be good and merchantable; that on and prior to the said 18th day of April, 1906, divers and sundry instruments, deeds and

conveyances by, through and under which Plaintiff derails, derives and claims title to said parcels of real property herein described, and the several deeds, instruments and conveyances under and by virtue of which the fee simple title to said parcels of real property was and is vested in Plaintiff were duly recorded and were of record in the office of the County Recorder of said City and County of San Francisco, and were public records of said City and County; that on said 18th day of April, 1906, the public records in the office of the County Recorder of said City and County of San Francisco, including the said records in said office by which the said estate, right and title of Plaintiff in and to said real property were evidenced, shown and established, and including the said records of deeds, instruments and conveyances under which Plaintiff so claims, derails and derives title to said parcels of real property herein described, were destroyed in a material part by fire; that the public records of all deeds registered or recorded in the office of the County Recorder of said City and County of San Francisco, from and including the year 1849 to and including the 17th day of April, 1906, (excepting only such deeds as had been filed for record on and within thirty days next prior to said last mentioned date, and had not been actually copied into and entered upon the books of record kept for that purpose by said County Recorder) were, on said 17th day of April, 1906, contained in, and consisted of 2200 books or volumes kept by and in the office of said Recorder of said City and County of San Francisco; that on said 18th day of April, 1906, nearly all of said public records so as aforesaid in said office, viz: 1549 books or volumes thereof, were wholly destroyed by fire, and that said public records of deeds that were so destroyed included the records of some or all of the deeds under which Plaintiff derives and claims title to said parcels of real property herein described, and under and by virtue of which the fee simple title to said parcels of real property is vested in Plaintiff; that in addition to the said public records of deeds in said office of said County Recorder destroyed by fire as aforesaid, on said 18th day of April, 1906, there were also destroyed by fire on said date more than 1460 volumes of records of mortgages, more than 225 volumes of records of releases of mortgages, more than 65 volumes of records of declaration of homestead, 95 volumes of records of notice of liens, and very many volumes of mortuary records, records of marriages, miscellaneous records, records of maps and records of notices of pendency of actions; that by reason of said destruction of said public records, the record evidence of Plaintiff's title to and ownership of said parcels of real property was destroyed, and it became and is impossible to trace, with completeness or certainty, the record title to said real property, and such title cannot be ascertained, settled or determined from the public records now remaining undestroyed; that it is therefore necessary for Plaintiff to establish of record and quiet its title to said real property, and to determine all adverse claims thereto.

9- THAT Plaintiff, since it acquired the several parcels of real property described in said complaint, has never made any conveyance thereof nor of any interest therein, except such interest as is covered by Mortgages as follows:

(a) Mortgage executed by Southern Pacific Railroad Company of California on April 1, 1875, to D. O. Mills and Homer S. King, as Trustees for bondholders;

(b) Mortgage executed by Southern Pacific Railroad Company on September 15, 1893, to Central Trust Company of New York, as Trustee for bondholders;

(c) Mortgage executed by Southern Pacific Railroad Company on January 3, 1905, to The Equitable Trust Company of New York, as Trustee for bondholders; all of which Mortgages were duly recorded in the office of the County Recorder of said City and County of San Francisco.

10- THAT all taxes levied upon or assessed against said parcels of land described in said complaint have been paid.

11- THAT Plaintiff herein has complied with all of the provisions of the Act of the Legislature of the State of California, entitled "An Act to Provide for the Establishment and Quieting of Title to Real Property in the Case of Loss or Destruction of Public Records", approved June 16, 1906, and with the provisions of the Act of said Legislature supplementary or amendatory thereto, approved March 23, 1907, in so far as the real property described in the complaint filed herein is concerned.

AND as conclusions of law from the foregoing findings of fact, the Court finds that the Plaintiff is entitled to judgment quieting its title to the real property described in said complaint in accordance with the foregoing findings.

WHEREFORE, IT IS ADJUDGED AND DECREED that the Plaintiff, Southern Pacific Railroad Company, at the time of the commencement of this action, was, ever since has been and now is the owner in fee simple absolute and in the actual and peaceable possession of all that certain real property situate in the City and County of San Francisco, State of California, particularly described as follows, to-wit:

PARCEL 1- (Described as Parcel 1 in the complaint) COMMENCING at the Southerly corner of Third and Townsend Streets and running thence Southwesterly and along the Southeasterly line of Townsend Street eight hundred and twenty-five (825) feet to the Northeasterly line of Fourth Street; thence at a right angle Southeasterly and along the Northeasterly line of Fourth Street two hundred and seventy-five (275) feet to the Northwesterly line of King Street; thence at a right angle Northeasterly and along the Northwesterly line of King Street eight hundred and twenty-five (825) feet to the Southwesterly line of Third Street; thence at a right angle Northwesterly and along the Southwesterly line of Third Street two hundred and seventy-five (275) feet to the point of commencement. Being 100 Vara Lots 156, 159 and 165.

PARCEL 2- (Described as Parcel 4 in the complaint) COMMENCING at the Southeasterly corner of Division and Vermont Streets and running thence Easterly and along the Southerly line of Division Street to a point distant thereon fifty-seven (57) feet Westerly from the Westerly line of Kansas Street; thence Southwesterly to a point on the Easterly line of Vermont Street, distant thereon two hundred and ninety-one (291) feet Northerly from the Northerly line of Alameda Street; thence Northerly and along the Easterly line of Vermont Street sixty-nine (69) feet to the point of commencement. Being a portion of Potrero Nuevo Block Number One Hundred and Thirty-three (133).

PARCEL 3- (Described as Parcel 5 in the complaint) COMMENCING at a point on the Easterly line of San Bruno Avenue (formerly Nebraska Street) distant thereon two hundred and sixteen and 22/100 (216-22/100) feet Northerly from the Northerly line of Alameda Street, and running thence Northerly and along the Easterly line of San Bruno Avenue forty-two and eight-tenths (42-8/10) feet; thence Northeasterly and parallel with the center line of the main track of the Southern Pacific Railroad Company's railroad to a point on the Westerly line of

Vermont Street, distant thereon three hundred and three and $46/100$ ($303-46/100$) feet Northerly from the Northerly line of Alameda Street; thence Southerly and along the Westerly line of Vermont Street forty-six and two-tenths ($46-2/10$) feet; thence Westerly and parallel to the center line of the main track of the Southern Pacific Railroad Company's railroad to the point of commencement. Being a portion of Potrero Nuevo Block Number Ninety-nine (99).

PARCEL 4- (Described as Parcel 6 in the complaint) COMMENCING at a point on the Easterly line of Utah Street, distant thereon twelve and five-tenths ($12-5/10$) feet Northerly from an intersection with the center line of the Northerly track of the Southern Pacific Railroad Company's railroad and running thence Southerly along the Easterly line of Utah Street to a point distant thereon two hundred and twelve and $76/100$ ($212-76/100$) feet Northerly from the Northerly line of Alameda Street; thence Easterly to a point on the Westerly line of San Bruno Avenue (formerly Nebraska Street)) distant thereon two hundred and eleven and $96/100$ ($211-96/100$) feet Northerly from the Northerly line of Alameda Street; thence Northerly and along the Westerly line of San Bruno Avenue forty-two and seven-tenths ($42-7/10$) feet; thence Westerly to the point of commencement. Being a portion of Potrero Nuevo Block Number Ninety-eight (98).

PARCEL 5- (Described as Parcel 7 in the complaint) COMMENCING at the Southeastern corner of Potrero Avenue and Division Street and running thence Easterly and along the Southerly line of Division Street two hundred (200) feet to the Westerly line of Utah Street; thence at a right angle Southerly and along the Westerly line of Utah Street eighty (80) feet; thence at a right angle Westerly two hundred (200) feet to the Easterly line of Potrero Avenue; thence at a right angle Northerly and along the Easterly line of Potrero Avenue eighty (80) feet to the point of commencement. Being a portion of Potrero Nuevo Block Number Sixty-nine (69).

PARCEL 6- (Described as Parcel 8 in the complaint) COMMENCING at the Southeastern corner of Hampshire and Division Streets and running thence Easterly along the Southerly line of Division Street two hundred (200) feet to the Westerly line of Potrero Avenue; thence at a right angle Southerly and along the Westerly line of Potrero Avenue eighty-six (86) feet and six (6) inches; thence Northwesterly in a straight line to a point on the Easterly line of Hampshire Street distant thereon seventy (70) feet Southerly from the Southerly line of Division Street; thence Northerly and along the Easterly line of Hampshire Street seventy (70) feet to the point of commencement. Being a portion of Potrero Nuevo Block Number Sixty-eight (68).

PARCEL 7- (Described as Parcel 9 in the complaint) COMMENCING at the Northeastern corner of Division and York Streets and running thence Northerly along the Easterly line of York Street thirty-four (34) feet; thence Southeastern in a straight line to a point on the Northerly line of Division Street, distant thereon one hundred and twenty-eight (128) feet and eleven (11) inches Easterly from the Easterly line of York Street; thence Westerly and along the Northerly line of Division Street one hundred and twenty-eight (128) feet and eleven (11) inches to the point of commencement. Being a portion of Potrero Nuevo Block — Forty-five (45).

PARCEL 8- (Described as Parcel 10 in the complaint) COMMENCING at the Southeastern corner of York and Division Streets and running thence Easterly along the Southerly line of

Division Street two hundred (200) feet to the Westerly line of Hampshire Street; thence at a right angle Southerly and along the Westerly line of Hampshire Street fifty-eight (58) feet and seven (7) inches; thence at a right angle Westerly two hundred (200) feet to the Easterly line of York Street; thence at a right angle Northerly and along the Easterly line of York Street fifty-eight (53) feet and seven (7) inches to the point of commencement. Being a portion of Potrero Nuevo Block Number Forty-five (45).

PARCEL 9- (Described as Parcel 11 in the complaint) COMMENCING at the Southeasterly corner of Bryant and Division Streets and running thence Easterly and along the Southerly line of Division Street two hundred (200) feet to the Westerly line of York Street; thence at a right angle Southerly and along the Westerly line of York Street fifty (50) feet; thence at a right angle Westerly two hundred (200) feet to the Easterly line of Bryant Street; thence at a right angle Northerly and along the Easterly line of Bryant Street fifty (50) feet to the point of commencement. Being a portion of Potrero Nuevo Block Number Forty-four (44).

PARCEL 10- (Described as Parcel 12 in the complaint) COMMENCING at the Southeasterly corner of Florida and Division Streets and running thence Southerly and along the Easterly line of Florida Street one hundred and fifty-two (152) feet nine and three-quarters ($9\frac{3}{4}$) inches to a point on said line of Florida Street, distant thereon twenty-five (25) feet Northerly from the Northerly line of Alameda Street; thence Easterly and at a right angle to Florida Street one hundred (100) feet; thence at a right angle Northerly seventy-five (75) feet; thence at a right angle Easterly one hundred (100) feet to the Westerly line of Bryant Street; thence at a right angle Northerly and along the Westerly line of Bryant Street one hundred and forty-one (141) feet five and three-eighths ($5\frac{3}{8}$) inches to the Southerly line of Division Street; thence Southwesterly and along the curved Southerly line of Division Street two hundred and eleven (211) feet eleven and one-quarter ($11\frac{1}{4}$) inches to the point of commencement. Being a portion of Potrero Nuevo Block Number Twenty-three (23).

PARCEL 11- (Described as Parcel 13 in the complaint) ALL that portion of Potrero Nuevo Block Number Twenty-two (22), bounded by Florida, Alameda and Division Streets.

PARCEL 12- (Described as Parcel 14 in the complaint) ALL of Potrero Nuevo Block Number Twenty-one (21), being bounded by Alabama, Florida, Fifteenth, Alameda and Division Streets.

PARCEL 13- (Described as Parcel 15 in the complaint) COMMENCING at the Southeasterly corner of Fifteenth and Alabama Streets and running thence Easterly and along the Southerly line of Fifteenth Street two hundred (200) feet to the Westerly line of Florida Street; thence at a right angle Southerly and along the Westerly line of Florida Street one hundred and sixteen (116) feet; thence at a right angle Westerly two hundred (200) feet to the Easterly line of Alabama Street; thence at a right angle Northerly and along the Easterly line of Alabama Street one hundred and sixteen (116) feet to the point of commencement. Being a portion of Potrero Nuevo Block Number Twenty (20).

PARCEL 14- (Described as Parcel 16 in the complaint) COMMENCING at the Southwesterly corner of Fifteenth and Alabama Streets and running thence Southerly and along the Westerly line of Alabama Street two hundred and sixty-five (265) feet; thence at a right angle Westerly to the Southeasterly line of Division Street; thence Northeasterly and along the Southeasterly line of Division Street to the Southerly line of Fifteenth Street; thence Easterly and along

the Southerly line of Fifteenth Street twenty-one (21) feet and eleven (11) inches to the point of commencement. Being a portion of Potrero Nuevo Block Number Seven (7).

PARCEL 15- (Described as Parcel 17 in the complaint) A triangular piece of land in the Southeast corner of Potrero Nuevo Block Number Six (6), being bounded by Alabama, Division and Fifteenth Streets.

PARCEL 16- (Described as Parcel 18 in the complaint) COMMENCING at the Northwestern corner of Twenty-fifth and Valencia Streets, and running thence Northerly and along the Westerly line of Valencia Street one hundred and sixty-two (162) feet and six (6) inches; thence at a right angle Westerly ninety (90) feet to the Easterly line of Poplar Alley; thence at a right angle Southerly and along the Easterly line of Poplar Alley one hundred and sixty-two (162) feet and six (6) inches to the Northerly line of Twenty-fifth Street; thence at a right angle Easterly and along the Northerly line of Twenty-fifth Street ninety (90) feet to the point of commencement. Being the South half of Lot 22 and all of Lots 23 and 24 as per "Map of Land of the San Francisco Homestead Union at the Pioneer Race Course", which Map is recorded in Volume 163 of Deeds at Page 1, Records of City and County of San Francisco. Being also a portion of Mission Block Number One Hundred and Sixty-nine (169).

PARCEL 17- (Described as Parcel 19 in the complaint) COMMENCING at the intersection of the Easterly line of Poplar Alley with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running Southerly and along the Easterly line of Poplar Alley to a point distant fifteen (15) feet from the aforesaid center line, measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with a line drawn parallel to and distant sixty-five (65) feet from the Southerly line of Twenty-fifth Street, measured at right angles Southerly therefrom; thence Easterly along said line parallel to said Southerly line of Twenty-fifth Street, to the Westerly line of Valencia Street; thence at a right angle Northerly and along the Westerly line of Valencia Street sixty-five (65) feet to the Southerly line of Twenty-fifth Street; thence at a right angle Westerly and along the Southerly line of Twenty-fifth Street ninety (90) feet to the Easterly line of Poplar Alley; thence at a right angle Southerly and along the Easterly line of Poplar Alley to the point of commencement. Being a portion of Mission Block Number One Hundred and Eighty-four (184).

PARCEL 18- (Described as Parcel 20 in the complaint) COMMENCING at the intersection of the Easterly line of San Jose Avenue with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Southerly and along the Easterly line of San Jose Avenue to a point distant fifteen (15) feet from the aforesaid center line, measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with a line drawn parallel to and distant one hundred and thirty (130) feet from the Southerly line of Twenty-fifth Street measured at a right angle Southerly therefrom; thence Easterly along said line, parallel to said Southerly line of Twenty-fifth Street to the Westerly line of Poplar Alley; thence at a right angle Northerly and along the Westerly line of Poplar Alley one hundred and thirty (130) feet to the Southerly line of Twenty-fifth Street; thence at a right angle Westerly and along the Southerly line of Twenty-fifth Street to the Easterly line of San Jose Avenue; thence at a right angle Southerly and along the Easterly line of San Jose

Avenue to the point of commencement. Being a portion of Mission Block Number One Hundred and Eighty-four (184).

✓ PARCEL 19- (Described as Parcel 22 in the complaint) COMMENCING at the intersection of the Westerly line of Mission Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Westerly line of Mission Street to a point distant fifteen (15) feet from the aforesaid center line measured at right angles Northwesterly therefrom; thence Southwesterly parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the Easterly line of Bartlett Street; thence Southerly and along the Easterly line of Bartlett Street, crossing said center line to a point distant fifteen (15) feet from said center line measured at right angles Southeasterly therefrom; thence Northeasterly, parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the Westerly line of Mission Street; thence Northerly and along the Westerly line of Mission Street to the point of beginning. Saving and excepting from the above so much thereof as lies between the Easterly and Westerly lines of Osage Alley; being a portion of Mission Block Number One Hundred and Seventy (170).

PARCEL 20- (Described as Parcel 23 in the complaint) COMMENCING at the intersection of the Easterly line of Mission Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Easterly line of Mission Street to a point distant fifteen (15) feet from the aforesaid center line measured at right angles Northwesterly therefrom; thence Northeasterly parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the Southerly line of Twenty-fourth Street; thence Easterly and along the said Southerly line of Twenty-fourth Street, crossing the said center line, to the Westerly line of Capp Street; thence at a right angle Southerly and along the Westerly line of Capp Street to a point distant fifteen (15) feet from the said center line measured at right angles Southeasterly therefrom; thence Southwesterly parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the Easterly line of Mission Street; thence Northerly and along the said Easterly line of Mission Street to the point of commencement. Saving and excepting from the above so much thereof as lies between the Easterly and Westerly lines of Lilac Alley. Being a portion of Mission Block Number One Hundred and Seventy-one (171).

✓ PARCEL 21- (Described as Parcel 30 in the complaint) COMMENCING at the intersection of the Westerly line of San Jose Avenue and the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Westerly line of San Jose Avenue to a point distant fifteen (15) feet from the aforesaid center line, measured radially in a Northwesterly direction therefrom; thence Southwesterly parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the center line of Clipper Street produced; thence Easterly and along said center line of Clipper Street, crossing the aforesaid center line of the Southern Pacific Railroad Company's constructed railroad main line, to a point distant fifteen (15) feet from the said last mentioned center line, measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifteen (15) feet from said last mentioned center line to an intersection with the Westerly line of San Jose Avenue; thence Northerly

along the said Westerly line of San Jose Avenue to the point of commencement. Being a portion of Horner's Addition Block Number Seven (7).

PARCEL 22- (Described as Parcel 31 in the complaint) COMMENCING at the intersection of the Easterly line of Guerrero Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Easterly line of Guerrero Street to a point distant twenty (20) feet measured at right angles Northwesterly from the aforesaid center line; thence Northeasterly, parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the center line of Clipper Street produced; thence Easterly and along the aforesaid center line of Clipper Street, crossing the aforesaid center line of the Southern Pacific Railroad Company's constructed railroad main line, to a point distant twenty (20) feet from said last mentioned center line, measured radially in a Southeasterly direction therefrom; thence Southwesterly parallel to and uniformly distant twenty (20) feet from said last mentioned center line to an intersection with the Easterly line of Guerrero Street; thence Northerly and along the Easterly line of Guerrero Street to the point of commencement. Being a portion of Horner's Addition Block Number Six (6).

PARCEL 23- (Described as Parcel 32 in the complaint) COMMENCING at the intersection of the Westerly line of Guerrero Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Northerly and along the said Westerly line of Guerrero Street to a point distant thirty (30) feet, measured at right angles Northwesterly from the aforesaid center line; thence Southwesterly, parallel to and uniformly distant thirty (30) feet from the said center line to an intersection with the Northerly line of Twenty-sixth Street; thence Easterly and along the said Northerly line of Twenty-sixth Street, crossing the said center line, to the Westerly line of Guerrero Street; thence Northerly and along the Westerly line of Guerrero Street to the point of commencement. Being a portion of Horner's Addition Block Number Thirty-two (32).

PARCEL 24- (Described as Parcel 33 in the complaint) COMMENCING at the intersection of the Southerly line of Twenty-sixth Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Westerly and along the Southerly line of Twenty-sixth Street to a point distant fifty (50) feet from the aforesaid center line, measured at right angles Northwesterly therefrom; thence Southwesterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Northerly line of Army Street; thence Easterly and along the Northerly line of Army Street, crossing the said center line, to a point distant thirty (30) feet from said center line, measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Southerly line of Twenty-sixth Street; thence Westerly and along the Southerly line of Twenty-sixth Street to the point of commencement. Being a portion of Horner's Addition Block Number Thirty-three (33).

PARCEL 25- (Described as Parcel 34 in the complaint) COMMENCING at the intersection of the Southerly line of Army Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Westerly and along the said Southerly line of Army Street to a point distant fifty (50) feet from the aforesaid center line

measured radially in a Northwesterly direction therefrom; thence Southwesterly, parallel to and uniformly distant fifty (50) feet from said center line to the Easterly line of Dolores Street; thence Southerly and along the Easterly line of Dolores Street, crossing said center line, to a point distant fifty (50) feet from said center line measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Southerly line of Army Street; thence Westerly and along the Southerly line of Army Street to the point of commencement. Being a portion of Horner's Addition Block Number Thirty-four (34).

PARCEL 26- (Described as Parcel 35 in the complaint) COMMENCING at the Northwesterly corner of Twenty-seventh and Dolores Streets and running thence Northerly and along the Westerly line of Dolores Street thirty-five (35) feet; thence Southwesterly to a point on the Northerly line of Twenty-seventh Street, distant thereon twenty-five (25) feet Westerly from the Westerly line of Dolores Street; thence Easterly along the Northerly line of Twenty-seventh Street twenty-five (25) feet to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-eight (58).

PARCEL 27- (Described as Parcel 36 in the complaint) COMMENCING at the intersection of the Northerly line of Duncan Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Easterly and along the Northerly line of Duncan Street to a point distant fifty (50) feet from the aforesaid center line measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Westerly line of Dolores Street; thence Northerly and along the Westerly line of Dolores Street to the Southerly line of Twenty-seventh Street; thence at a right angle Westerly and along the Southerly line of Twenty-seventh Street, crossing the said center line, to a point distant fifty (50) feet from said center line, measured radially in a Northwesterly direction therefrom; thence Southwesterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Northerly line of Duncan Street; thence Easterly and along the Northerly line of Duncan Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-seven (57).

PARCEL 28- (Described as Parcel 37 in the complaint) COMMENCING at the intersection of the Southerly line of Duncan Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Westerly and along the Southerly line of Duncan Street to a point distant fifty (50) feet from the aforesaid center line, measured radially in a Northwesterly direction therefrom; thence Southwesterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Northerly line of Twenty-eighth Street; thence Easterly and along the Northerly line of Twenty-eighth Street, crossing said center line, to a point distant fifty (50) feet from said center line measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifty (50) feet from said center line to the Southerly line of Duncan Street; thence Westerly and along the Southerly line of Duncan Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-six (56).

PARCEL 29- (Described as Parcel 38 in the complaint) COMMENCING at the intersection of the Southerly line of Twenty-eighth Street with the center line of the Southern Pacific

Railroad Company's constructed railroad main line, and running thence Westerly and along the Southerly line of Twenty-eighth Street to a point distant fifty (50) feet from the aforesaid center line, measured radially in a Northwesterly direction therefrom; thence Southwesterly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Northerly line of Valley Street; thence Easterly and along the Northerly line of Valley Street, crossing said center line, to a point distant fifty (50) feet from said center line measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant fifty (50) feet from said center line to the Southerly line of Twenty-eighth Street; thence Westerly and along the Southerly line of Twenty-eighth Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-five (55). X

PARCEL 30- (Described as Parcel 39 in the complaint) COMMENCING at the intersection of the Southerly line of Valley Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Westerly and along the Southerly line of Valley Street to a point distant fifty (50) feet from the aforesaid center line measured radially in a Westerly direction therefrom; thence Southerly, parallel to and uniformly distant fifty (50) feet from said center line to an intersection with the Northerly line of Twenty-ninth Street; thence Easterly and along the Northerly line of Twenty-ninth Street, crossing said center line, to a point distant fifty (50) feet from said center line measured radially in an Easterly direction therefrom; thence Northerly, parallel to and uniformly distant fifty (50) feet from said center line to the Southerly line of Valley Street; thence Westerly and along the Southerly line of Valley Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-four (54).

PARCEL 31- (Described as Parcel 40 in the complaint) COMMENCING at the intersection of the Southerly line of Twenty-ninth Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Westerly and along the said Southerly line of Twenty-ninth Street to a point distant sixty-five (65) feet from the aforesaid center line measured radially in a Southwesterly direction therefrom; thence Southeasterly, parallel to and uniformly distant sixty-five (65) feet from said center line to an intersection with the Northerly line of Day Street; thence Easterly and along the Northerly line of Day Street, crossing said center line, to a point distant sixty-five (65) feet from said center line measured radially in a Northeasterly direction therefrom; thence Northwest-erly, parallel to and uniformly distant sixty-five (65) feet from said center line, to the Southerly line of Twenty-ninth Street; thence Westerly and along the Southerly line of Twenty-ninth Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-three (53).

PARCEL 32- (Described as Parcel 41 in the complaint) COMMENCING at the intersection of the Southerly line of Day Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Westerly and along the Southerly line of Day Street to a point distant sixty-five (65) feet from the aforesaid center line measured radially in a Southwesterly direction therefrom; thence Southeasterly, parallel to and uniformly distant sixty-five (65) feet from said center line to an intersection with the Northerly line of Thirtieth Street; thence Easterly and along the Northerly line of Thirtieth Street, crossing said center line, to a point distant sixty-five (65) feet from said center

line measured radially in a Northeasterly direction therefrom; thence Northwesterly, parallel to and uniformly distant sixty-five (65) feet from said center line to the Southerly line of Day Street; thence Westerly and along the Southerly line of Day Street to the point of commencement. Being a portion of Horner's Addition Block Number Fifty-two (52).

PARCEL 33- (Described as Parcel 42 in the complaint) A strip of land one hundred (100) feet wide lying fifty (50) feet on each side of the center line of the Southern Pacific Railroad Company's railroad and bounded on the Northerly side by the Southerly line of Thirtieth Street and on the Southwesterly side by the Northeasterly boundary of Tract 53, described in said complaint.

SAID center line of railroad is described as follows, to-wit:

COMMENCING at the intersection of the said center line of said railroad with the Southerly line of Thirtieth Street and running along said center line by true course South 25 degrees East 214-2/10 feet, thence continuing along said center line and curving to the right on a circular curve having a radius of 1433 feet run 1639 feet; thence continuing along said center line and curving to the right on a circular curve having a radius of 5730 feet run 660 feet to the Northeasterly boundary line of Tract 53, as described in said complaint.

PARCEL 34- (Described as Parcel 43 in the complaint) COMMENCING at the intersection of the Westerly line of San Jose Avenue and the center line of the Southern Pacific Railroad Company's constructed railroad main line, in the vicinity of Diamond Street and Joost Avenue, and running thence Northerly and along the Westerly line of San Jose Avenue to a point distant forty (40) feet from the aforesaid center line measured at right angles Northwesterly therefrom; thence Southwesterly, parallel to and uniformly distant forty (40) feet from the said center line to an intersection with the Northerly boundary line of the House of Refuge Lot; thence Easterly and along the Northerly boundary line of the House of Refuge Lot, crossing the said center line to a point distant forty (40) feet from said center line measured radially in a Southeasterly direction therefrom; thence Northeasterly, parallel to and uniformly distant forty (40) feet from said center line to an intersection with the Westerly line of San Jose Avenue; thence Northerly and along the Westerly line of San Jose Avenue, to the point of commencement.

PARCEL 35- (Described as Parcel 44 in the complaint) COMMENCING at the intersection of the Southerly boundary line of the House of Refuge Lot, which Southerly boundary line is also the Northerly line of Ocean Avenue, with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Westerly and along the Northerly line of Ocean Avenue to a point distant thirty (30) feet from the aforesaid center line measured radially in a Westerly direction therefrom; thence Northeasterly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Northerly boundary line of said House of Refuge Lot between Arago and Edna Streets; thence Easterly and along the said Northerly boundary line of said House of Refuge Lot, crossing the said center line to a point distant thirty (30) feet from said center line measured radially in a Southeasterly direction therefrom; thence Southwesterly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Northerly line of Ocean Avenue; thence Westerly and along the Northerly line of Ocean Avenue to the point of commencement.

PARCEL 36- (Described as Parcel 45 in the complaint) COMMENCING at the intersection

of the Southerly line of Ocean Avenue with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Westerly and along the Southerly line of Ocean Avenue to a point distant thirty (30) feet from the aforesaid center line measured radially in a Westerly direction therefrom; thence Southerly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Northwesterly line of San Jose Avenue in the vicinity of Ottawa Avenue; thence Northeasterly and along the said Northwesterly line of San Jose Avenue, crossing the said center line to a point distant thirty (30) feet from said center line measured at right angles Easterly therefrom; thence Northerly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Southerly line of Ocean Avenue; thence Westerly and along said Southerly line of Ocean Avenue to the point of commencement.

PARCEL 37- (Described as Parcel 47 in the complaint) COMMENCING at the intersection of the Southeasterly line of San Jose Avenue between Ottawa and Mount Vernon Avenue with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Southwesterly along the said Southeasterly line of San Jose Avenue to a point distant thirty-five (35) feet from the aforesaid center line measured at right angles Westerly therefrom; thence Southerly, parallel to and uniformly distant thirty-five (35) feet from said center line to an intersection with the Northeasterly boundary line of West End Map No. 2; thence Southeasterly and along the said Northeasterly boundary line of West End Map No. 2, crossing the aforesaid center line to a point distant thirty-five (35) feet from said center line measured radially in an Easterly direction therefrom; thence Northerly, parallel to and uniformly distant thirty-five (35) feet from said center line to an intersection with the Southeasterly line of San Jose Avenue; thence Southwesterly along said Southeasterly line of San Jose Avenue to the point of commencement.

PARCEL 38- (Described as Parcel 48 in the complaint) COMMENCING at the intersection of the Southeasterly line of San Jose Avenue with the center line of the Southern Pacific Railroad Company's constructed railroad main line in the vicinity of Ocean View Station and running thence Southwesterly and along the Southeasterly line of San Jose Avenue to a point distant seventy-five (75) feet from the aforesaid center line measured radially in a Southeasterly direction therefrom; thence Northeasterly and Northerly, parallel to and uniformly distant seventy-five (75) feet from the aforesaid center line to an intersection with the Northeasterly boundary line of the West End Map No. 2; thence Northwesterly and along the said Northeasterly boundary line of the West End Map No. 2, crossing the said center line to an intersection with the Southeasterly line of San Jose Avenue in the vicinity of Ottawa Avenue; thence Southwesterly and along the Southeasterly line of San Jose Avenue to a point distant seventy-five (75) feet from the aforesaid center line measured radially in a Westerly direction therefrom; thence Southerly and Southwesterly, parallel to and uniformly distant seventy-five (75) feet from the aforesaid center line to an intersection with the Southeasterly line of San Jose Avenue in the vicinity of Ocean View Station; thence Southwesterly and along the Southeasterly line of San Jose Avenue to the point of commencement.

PARCEL 39- (Described as Parcel 49 in the complaint) COMMENCING at the intersection of the Southwesterly boundary line of the Rancho San Miguel with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence North-

westerly and along the said Southwesterly boundary line to a point distant thirty-five (35) feet from the aforesaid center line measured radially in a Northerly direction therefrom; thence in a general Easterly direction, parallel to and uniformly distant thirty-five (35) feet from said center line to an intersection with the Northwesterly line of San Jose Avenue, formerly El Camino Real, in the vicinity of Ocean View Station; thence Southwesterly and along the said Northwesterly line of San Jose Avenue, formerly El Camino Real, crossing said center line, to a point distant thirty-five (35) feet from said center line measured radially in a Southeasterly direction therefrom; thence in a general Westerly direction, parallel to and uniformly distant thirty-five (35) feet from said center line to an intersection with the said Southwesterly boundary line of the Rancho San Miguel; thence Northwesterly and along the said Southwesterly boundary of the Rancho San Miguel to the point of commencement.

PARCEL 40- (Described as Parcel 50 in the complaint) COMMENCING at the point of intersection of the line dividing the Counties of San Mateo and San Francisco with the center line of the Southern Pacific Railroad Company's constructed railroad main line and running thence Westerly and along the said line dividing said Counties, to a point distant thirty (30) feet from the aforesaid center line measured radially in a Northwesterly direction therefrom; thence Northeasterly and Easterly parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Southwesterly boundary line of the Rancho San Miguel; thence Southeasterly and along the said Southwesterly boundary line of the San Miguel Rancho, crossing said center line, to a point distant thirty (30) feet from said center line, measured radially in a Southerly direction therefrom; thence Westerly and Southwesterly, parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the aforesaid line dividing the aforesaid Counties; thence Westerly along the aforesaid line dividing the aforesaid Counties to the point of commencement.

PARCEL 41- (Described as Parcel 51 in the complaint) A strip of land sixty (60) feet in width lying thirty (30) feet on each side of the center line of the Southern Pacific Railroad Company's railroad and bounded on the Southwesterly side by the Southeasterly line of the Old San Jose Road or "Camino Real" and bounded on the Northeasterly side by the Northeasterly boundary line of the lands formerly in 1862 or thereabouts belonging to Abel Wade and Henry B. Potter.

SAID center line of said railroad is described as follows, to-wit:

COMMENCING at the intersection of said center line of said railroad with the Southeasterly line of the Old San Jose Road or "Camino Real" in the vicinity of Diamond Street and Joost Avenue, and running thence along said center line North 63° East from the true meridian to an intersection with the center line of Berkshire Street, which center line of Berkshire Street has a bearing of South $75^{\circ} 42'$ East from the true meridian; thence continuing along said center line of said railroad by the said course of North 63° East one hundred and forty-three and $\frac{6}{10}$ ($143\frac{6}{10}$) feet to the Northeasterly boundary line of said Wade and said Potter, being also the Southwesterly boundary line of the lands belonging formerly in 1862 or thereabouts to Geo. H. Hossefross and Joseph S. Hess. Subject nevertheless to such rights as the City and County of San Francisco may have acquired under and by virtue of the two following deeds: First: Southern Pacific Railroad Company and Southern Pacific Company to the City and County of San Francisco, dated December 5th, 1898, and recorded February 3rd, 1899, in Volume

1802 of Deeds at Page 379. Second: Southern Pacific Railroad Company to the City and County of San Francisco, dated November 7th, 1901, and recorded in Volume 1968 of Deeds at Page 89.

PARCEL 42- (Described as Parcel 52 in the complaint) A strip of land fifty (50) feet in width, lying twenty-five (25) feet on each side of the center line of the Southern Pacific Railroad Company's railroad and bounded on the Southwesterly side by the Northeasterly boundary line of Tract 51, as described in said complaint, and bounded on the Northeasterly side by the dividing line between the lands formerly belonging to Geo. H. Hossefross and Joseph S. Hess, and the lands of H. G. Livermore and C. C. Webb in 1862 or thereabouts.

SAID center line of said railroad is described as follows, to-wit:

COMMENCING at the intersection of the said center line of said railroad with the Southwesterly boundary of this Tract, said intersection bearing by true course North 63° East along said center line of railroad and distant thereon $143\frac{6}{10}$ feet from its intersection with the center line of Berkshire Street, running thence by true course along said center line of said railroad North 63° East $154\frac{3}{10}$ feet; thence continuing along said center line of said railroad and curving to the left on a circular curve having a radius of 5730 feet, a distance of 488 feet to the Southwesterly boundary line of the lands formerly belonging to H. G. Livermore and C. C. Webb, in 1862 or thereabouts.

PARCEL 43- (Described as Parcel 53 in the complaint) A strip of land ninety (90) feet in width lying forty-five (45) feet on each side of the center line of the Southern Pacific Railroad Company's railroad and bounded on the Southwesterly side by the Northeasterly boundary line of Tract 52, as described in said complaint, and bounded on the Northeasterly side by the lands formerly in 1862 or thereabouts, belonging to Philip Verplanck and George O. McMullen.

SAID center line of railroad is described as follows, to-wit:

COMMENCING at the intersection of the said center line of said railroad with the Southwesterly boundary line of this Tract, said intersection being located as follows, to-wit: Start at intersection of the center line of the said railroad with the center line of Berkshire Street and run thence by true course North 63° East along said center line of railroad $297\frac{9}{10}$ feet; thence continuing along said center line of said railroad and curving to the left on a circular curve having a radius of 5730 go a distance of 488 feet to the Southwesterly boundary line of the lands formerly belonging to H. G. Livermore and C. C. Webb in 1862 or thereabouts, and establish intersection sought; thence continuing on said center line on said circular curve to the left with a radius of 5730_run a distance of 1098 feet to the Southwesterly boundary line of the lands formerly belonging to Philip Verplanck and George O. McMullen in 1862 or thereabouts.

PARCEL 44- (Described as Parcel 54 in the complaint) COMMENCING at a point on a line parallel to and distant one hundred (100) feet measured at a right angle Northwesterly from the center line of the Southern Pacific Railroad Company's railroad, said point being distant eighty (80) feet Northeasterly from the Northerly line of Berkshire Street, measured along the said parallel line; thence running Southwesterly and parallel to and distant one hundred (100) feet measured at a right angle Northwesterly from said center line of said railroad a distance of two hundred (200) feet; thence at a right angle Southeasterly two hundred (200) feet; thence at a right angle Northeasterly two hundred and seventy-seven (277) feet; thence in a straight line Northwesterly to the point of commencement. Excepting therefrom a strip of land sixty (60)

feet in width, lying thirty (30) feet on each side of the center line of said railroad and running the entire length of the same.

SUBJECT nevertheless to such rights as the City and County of San Francisco may have acquired under and by virtue of the two following deeds. First: Southern Pacific Railroad Company and Southern Pacific Company to the City and County of San Francisco, dated December 5, 1898, and recorded February 3, 1899, in Volume 1802 of Deeds at Page 379. Second: Southern Pacific Railroad Company to the City and County of San Francisco, dated November 7, 1901, and recorded in Volume 1968 of Deeds at Page 89.

PARCEL 45- (Described as Parcel 2 in said complaint) With respect to the parcel of real property described in said complaint as Parcel 2, being all of Block 15 of the South Beach and Water Lot Survey, situate in said City and County of San Francisco, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in all of said parcel except as follows:

(a) THAT part thereof in which the Defendant Louise R. Barroilhet claimed a reversionary title; that since the commencement of this action the Plaintiff herein on the 20th day of December, 1911, purchased from said Louise R. Barroilhet her interest in said parcel of land, and ever since said date Plaintiff has been and now is the owner and in the exclusive and peaceable possession thereof.

(b) LOT BEGINNING at a point on the Northwesterly line of King Street, 114 feet 7 inches Southwesterly from 4th Street, and running thence Southwesterly 22 feet 11 inches; thence at a right angle Northwesterly 120 feet; thence at a right angle Northeasterly 45 feet 10 inches; thence at a right angle Southeasterly 60 feet; thence at a right angle Southwesterly 22 feet 11 inches; thence at a right angle Southeasterly 60 feet to the point of commencement. Being part of Lots 387, 388 and 389 in said South Beach Block 15.

(c) LOT BEGINNING on the Southeasterly line of Townsend Street, distant thereon 183 feet 4 inches Southwesterly from the Southwesterly line of 4th Street, and running thence Southwesterly and along said Southeasterly line of Townsend Street 91 feet 8 inches; thence at a right angle Southeasterly 120 feet to the Northwesterly line of Jewett Street; thence at a right angle Northeasterly and along said line of Jewett Street 91 feet 8 inches; thence at a right angle Northwesterly 120 feet to the Southeasterly line of Townsend Street and point of commencement; being part of Lots 396 and 397 in said South Beach Block 15.

(d) LOT BEGINNING at a point on the Northwesterly line of King Street, distant thereon 229 feet 2 inches Southwesterly from the Southwesterly line of 4th Street, running thence Southwesterly and along said Northwesterly line of King Street 45 feet 10 inches; thence at a right angle Northwesterly 120 feet to the Southeasterly line of Jewett Street; thence at a right angle Northeasterly and along the said line of Jewett Street 45 feet 10 inches; thence at a right angle Southeasterly 120 feet to the Northwesterly line of King Street and the point of commencement, being Lot 398 in said South Beach Block 15.

(e) LOT 399 in said South Beach Block 15.

(f) LOT BEGINNING on the Northwesterly line of Jewett Street 275 feet Southwesterly from the Southwesterly line of Fourth Street, running thence Southwesterly along said line of Jewett Street 45 feet 10 inches, with a uniform depth of 60 feet, being part of Lot 400 in said South Beach Block 15.

(g) LOT BEGINNING on the Northwesterly line of King Street 320 feet 10 inches Southwesterly from the Southwesterly line of 4th Street; thence Southwesterly 45 feet 10 inches, with a uniform depth of 60 feet, being part of South Beach Block 15.

(h) LOT 403 in said South Beach Block 15.

(i) LOT BEGINNING on the Northwesterly line of King Street 356 feet 8 inches Northeasterly from the Northeasterly line of 5th Street, and running thence Northeasterly along said line of King Street 22 feet 11 inches, with a uniform depth of 60 feet, being part of Lot 406 in said South Beach Block 15.

(j) A strip of land having a uniform width of 35 feet, extending from the Westerly line of 4th Street to the Easterly line of 5th Street, the Northerly boundary thereof being parallel to the Southerly line of Townsend Street and 120 feet Southerly therefrom, and the Northerly line thereof being parallel to the Northerly line of King Street and 120 feet Northerly therefrom, the same being a public street known as Jewett Street.

THAT Plaintiff is and at all the times hereinabove mentioned has been in the actual and peaceable possession of all of said parcel; that on the 26th day of March, 1851, all of said parcel of land was owned in fee simple by the State of California; that by Act of its Legislature, approved on said 26th day of March, 1851, said State of California granted to the City of San Francisco, then a Municipal Corporation in said State, the use and occupation of said real property for the term of 99 years from said last mentioned date; that the said right to the use and occupation of said real property for said term of 99 years duly passed to and at all of the times herein mentioned was and now is owned by and vested in said Plaintiff; that subject to said right of use and occupation the fee simple title to said real property remained on said 26th day of March, 1851, in said State of California, being the reversion of said real property and being usually known as and called the "State Title"; that pursuant to Acts of of Legislature of the State of California, providing for the sale of the interest of said State in the lands described in said Act of March 26, 1851, the said reversion or State Title was duly sold by said State and conveyances thereof were duly made by said State to the purchasers of said reversion or State Title covering all of said South Beach Block 15, and were duly recorded in the office of the County Recorder of the County of San Francisco; that by mesne conveyances, duly executed and recorded, the Plaintiff at the time of the commencement of this action was, ever since has been, and now is the owner of said reversion or State Title in and to all of said parcel of land, to-wit, said South Beach Block 15, except as hereinabove stated.

THAT at the time of the commencement of this action, the Defendant John G. Klumpke was, ever since has been and still is the owner of said reversion or State Title to the parcel of land referred to in this finding as exception "b"; that at the time of the commencement of this action the Defendant Wm. Giselman, as Trustee, was, ever since has been and still is the owner of the said reversion or State Title to the parcels of land referred to herein as exceptions "c" and "d"; that at the time of the commencement of this action the Defendant Wm. Jacoby was, ever since has been and now is the owner of the reversion or State Title to the parcels of land referred to herein as exceptions "e", "f" and "g"; that at the time of the commencement of this action, the Defendant Mary S. Cole was, ever since has been and still is the owner of said reversion or State Title to that parcel referred to herein as exception "h"; that at the time of the commencement of this action, Defendant B. P. Lapachet was, ever since

has been and now is the owner of the reversion or State Title to that parcel referred to herein as exception "i"; that at the time of the commencement of this action, the parcel of land described in exception "j" was, ever since has been and now is a public street of the City and County of San Francisco, and known as Jewett Street.

PARCEL 46- (Described as Parcel 3 in the complaint) With respect to the parcel of real property described in said complaint as Parcel 3, being all of Block 20 of the South Beach and Water Lot Survey situate in said City and County of San Francisco, Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has at all of said times had an estate of inheritance in all of said parcel except Lots 572 and 581, and so much of said parcel as is described as follows:

BEGINNING at the point formed by the intersection of the Southerly or Southeasterly line of Townsend Street with the Northerly or Northeasterly line of 6th Street, and running thence Southerly or Southeasterly along said line of 6th Street 137-1/2 feet; thence at a right angle Northeasterly and parallel to said line of Townsend Street 137-1/2 feet; thence at a right angle Northwesterly and parallel to said line of 6th Street 137-1/2 feet to Townsend Street; thence at a right angle Westerly or Southwesterly along the said line of Townsend Street 137-1/2 feet to 6th Street and point of beginning, being a portion of South Beach Block No. 20.

THAT Plaintiff is and at all of the times hereinabove mentioned has been in the actual and peaceable possession of all of said parcel; that on the 26th day of March, 1851, all of said parcel of land was owned in fee simple by the State of California; that by Act of its Legislature, approved on said 26th day of March, 1851, said State of California granted to the City of San Francisco, then a Municipal Corporation in said State, the use and occupation of said real property for the term of 99 years from said last mentioned date; that the said right to the use and occupation of said real property for said term of 99 years duly passed, to and at all of the times herein mentioned was and now is owned by and vested in said Plaintiff; that subject to said right of use and occupation the fee simple title to said real property remained on said 26th day of March, 1851, in said State of California, being the reversion of said real property and being usually known as and called the "State Title"; that pursuant to Acts of the Legislature of the State of California, providing for the sale of the interest of said State in the lands described in said Act of March 26, 1851, the said reversion or State Title was duly sold by said State and conveyances thereof were duly made by said State to the purchasers of said reversion or State Title covering all of said South Beach Block 20, and were duly recorded in the office of the County Recorder of the County of San Francisco; that by mesne conveyances, duly executed and recorded, the Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title in and to all of said parcel of land, namely, Block 20 of the South Beach and Water Lot Survey, except as hereinabove stated; that at the time of the commencement of this action George E. Bates and A. C. Freeman were the owners of said reversion or State Title to said Lot 572; that since the commencement of this action, the titles and interests of said George E. Bates and A. C. Freeman have passed to W. F. Sawyer and are now held and owned by him, subject only to the administration of the estate of A. C. Freeman, deceased; that the Defendant J. G. Klumpke at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title to said Lot No.

581; that the Defendant Chas. S. Wheeler, at the time of the commencement of this action was, ever since has been and now is the owner of said reversion or State Title to so much of said parcel as is described as follows:

BEGINNING at the point formed by the intersection of the Southerly or Southeasterly line of Townsend Street with the Northerly or Northeasterly line of 6th Street, and running thence Southerly or Southeasterly along said line of 6th Street 137-1/2 feet; thence at a right angle Northeasterly and parallel to said line of Townsend Street 137-1/2 feet; thence at a right angle Northwesterly and parallel to said line of 6th Street 137-1/2 feet to Townsend Street; thence at a right angle Westerly or Southwesterly along the said line of Townsend Street 137-1/2 feet to 6th Street and point of beginning, being a portion of South Beach Block No. 20.

PARCEL 47- (Described as Parcel 24 in the complaint) With respect to the parcel of land described in said complaint as Parcel 24, situate in said City and County of San Francisco, and described as follows:

COMMENCING at the intersection of the Westerly line of Howard Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly along the said Westerly line of Howard Street to a point distant twenty (20) feet from the aforesaid center line measured at right angles Northwesterly therefrom; thence Southwesterly, parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the Northerly line of Twenty-fourth Street; thence Easterly and along the said Northerly line of Twenty-fourth Street, crossing said center line, to a point distant twenty (20) feet from said center line measured at right angles Southeasterly therefrom; thence Northeasterly parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the Westerly line of Howard Street; thence Northerly and along the said Westerly line of Howard Street to the point of commencement, being a portion of Mission Block Number One Hundred and Fifty-four (154).

THE Plaintiff at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in, and is and at all of said times has been in the actual and peaceable possession of all of said parcel of land except so much thereof as is included in and covered by decree entered by the Superior Court of the State of California in and for the City and County of San Francisco, in the suit of Wilhemina Rohde versus All Persons etc., numbered 11,446, on the 23rd day of March, 1909, to-wit:

BEGINNING at a point on the Northerly right of way line of the Southern Pacific Railroad Company at a point 137 feet 6 inches Northerly from the Northerly line of 24th Street and 15 feet 6 inches Westerly from the Westerly line of Howard Street, and running thence Northeasterly along said line of said right of way to the Westerly line of Howard Street; thence Southerly along said Westerly line of Howard Street to a point 137 feet 6 inches Northerly from the Northerly line of 24th Street; thence at a right angle Westerly 15 feet 6 inches, more or less, to the point of beginning.

PARCEL 48- (Described as Parcel 25 and Parcel 26 in the complaint) With respect to the parcels of real property described in said complaint as Parcel 25 and Parcel 26, situate in said City and County of San Francisco, and described as follows:

COMMENCING at the intersection of the Easterly line of Shotwell Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Easterly line of Shotwell Street to a point distant twenty (20) feet from the aforesaid center line measured at right angles Northwest-erly therefrom; thence Northeasterly parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the Southerly line of Twenty-third Street; thence Easterly and along the Southerly line of Twenty-third Street to the Westerly line of Folsom Street; thence at a right angle Southerly and along the Westerly line of Folsom Street, crossing the aforesaid center line, to a point distant twenty (20) feet from said center line, measured at right angles Southeasterly therefrom; thence Southwesterly, parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the Easterly line of Shotwell Street; thence Northerly and along the Easterly line of Shotwell Street to the point of commencement, being a portion of Mission Block Number One Hundred and Fifty-three (153); and

COMMENCING at the intersection of the Westerly line of Shotwell Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Westerly line of Shotwell Street to a point distant twenty (20) feet from the aforesaid center line measured at right angles Northwest-erly therefrom; thence Southwesterly, parallel to and uniformly distant, twenty (20) feet from said center line to the Easterly line of Howard Street; thence Southerly and along the Easterly line of Howard Street, crossing said center line, to a point distant twenty (20) feet from said center line measured at right angles Southeasterly therefrom; thence Northeasterly, parallel to and uniformly distant twenty (20) feet from said center line to an intersection with the Westerly line of Shotwell Street; thence Northerly and along the Westerly line of Shotwell Street to the point of commencement, being a portion of Mission Block Number One Hundred and Fifty-three (153). X

PLAINTIFF at the time of the commencement of this action was, ever since has been and now is the owner in fee of and has and at all of said times had an estate of inheritance in, and is and at all of said times has been in the actual and peaceable possession of, all of said parcels of real property, except so much thereof as is included in and covered by decree entered July 20, 1910, in said suit brought in the Superior Court of the State of California, in and for the City and County of San Francisco, entitled John H. Kruse vs. All Persons etc., No. 8200, a certified copy of which decree was duly recorded in the office of the County Recorder of said City and County of San Francisco; and except so much thereof as is included in and covered by decree entered June 30, 1908, in suit brought in the Superior Court of the State of California, in and for the City and County of San Francisco, entitled Anna C. Ingels and Martha H. Poppe vs. All Persons etc., numbered 5419, a certified copy of which decree was recorded on July 1, 1908, in Liber 193 of Deeds, Page 54, records of said City and County.

PARCEL 49- (Described as Parcel 21 in the complaint) That with respect to the parcel of land described in said complaint as Parcel 21, situate in said City and County of San Francisco, and described as follows:

COMMENCING at the intersection of the Westerly line of Bartlett Street with the center line of the Southern Pacific Railroad Company's constructed railroad main line and

running thence Northerly and along the said Westerly line of Bartlett Street to a point distant fifteen (15) feet from the aforesaid center line measured at right angles Northwesterly therefrom; thence Southwesterly, parallel to and uniformly distant fifteen (15) feet from said center line to an intersection with the Northerly line of Twenty-fifth Street; thence Easterly and along the Northerly line of Twenty-fifth Street, crossing said center line, to a point distant fifteen (15) feet from said center line, measured at right angles Southeasterly therefrom; thence Northeasterly, parallel to and uniformly distant fifteen (15) feet from said center line to the Westerly line of Bartlett Street; thence Northerly and along the Westerly line of Bartlett Street to the point of commencement, saving and excepting from the above so much thereof as lies between the Easterly and Westerly lines of Orange Alley, being a portion of Mission Block Number One Hundred and Seventy (170).

PLAINTIFF at the time of the commencement of this action was, ever since has been and now is the owner in fee of, and has at all of said times had an estate of inheritance in, all thereof except so much thereof as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley; that at the time of the commencement of this action Plaintiff was, ever since has been and now is in the actual and exclusive possession of all of said Parcel 21; that so much of said parcel as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley was, in the year 1863, conveyed by John Center to the San Francisco & San Jose Railroad Company, predecessor of Plaintiff, for the right of way for its railroad; that Plaintiff herein has succeeded to all of the rights and titles of said San Francisco & San Jose Railroad Company; that in and by said deed of conveyance executed by said John Center it was expressly provided that in the event the use of said land as a right of way for said railroad should be at any time abandoned or should at any time be discontinued for a period of six months, the title and right to the possession thereof should revert to the grantor, to-wit: John Center; that the John Center Company, George S. Crim, William H. Crim, Grace M. Crim, Samuel M. Crim and William H. Crim, Jr., successors to said John Center, are, and at the time this action was commenced were, the owners in fee of so much of said Parcel 21 as lies between the Westerly line of Bartlett Street and the Easterly line of Orange Alley, subject only to the right of way of Plaintiff herein for railroad purposes and subject to the conditions hereinabove mentioned.

PARCEL 50- (Described as Parcels 27, 28 and 29 in the complaint) That with respect to the parcels of real property situate in said City and County of San Francisco, and described as follows:

(PARCEL 27) COMMENCING at the intersection of the Westerly line of Treat Avenue with the center line of the Southern Pacific Railroad Company's constructed railroad main line, and running thence Northerly and along the said Westerly line of Treat Avenue to a point distant thirty (30) feet from the aforesaid center line measured radially in a Northwesterly direction therefrom; thence Southwesterly parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Easterly line of Folsom Street; thence Southerly and along the said Easterly line of Folsom Street to the Northerly line of Twenty-third Street; thence at a right angle Easterly and along the said Northerly line of Twenty-third Street, crossing aforesaid center line, to a point distant thirty (30) feet from said center line measured at right angles Southeasterly therefrom; thence Northeasterly parallel to and un-

uniformly distant thirty (30) feet from said center line to an intersection with the Westerly line of Treat Avenue; thence Northerly and along the said Westerly line of Treat Avenue to the point of commencement, being a portion of Mission Block Number One Hundred and Thirty-nine (139).

(PARCEL 28) COMMENCING at the intersection of the Southerly line of Twenty-second Street with the center line of Southern Pacific Railroad Company's constructed railroad main line, and running thence Westerly and along the said Southerly line of Twenty-second Street to a point distant thirty (30) feet from the aforesaid center line measured radially in a Northwesterly direction therefrom; thence Southwesterly parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Easterly line of Treat Avenue; thence Southerly and along the said Easterly line of Treat Avenue, crossing the said center line, to a point distant thirty (30) feet from the said center line measured radially in a Southeasterly direction therefrom; thence Northeasterly parallel to and uniformly distant thirty (30) feet from said center line to an intersection with the Westerly line of Harrison Street; thence Northerly and along the said Westerly line of Harrison Street to the Southerly line of Twenty-second Street; thence Westerly and along the said Southerly line of Twenty-second Street to the point of commencement, being a portion of Mission Block Number One Hundred and Thirty-nine (139).

(PARCEL 29) COMMENCING at the Northwesterly corner of Twenty-second and Harrison Streets and running thence Northerly and along the Westerly line of Harrison Street ninety-five (95) feet; thence at a right angle Westerly twenty (20) feet; thence in a straight line Southerly to a point on the Northerly line of Twenty-second Street, distant thereon thirty-seven (37) feet and eight (8) inches from the Westerly line of Harrison Street; thence Easterly and along the Northerly line of Twenty-second Street thirty-seven (37) feet and eight (8) inches to the point of commencement, being a portion of Mission Block Number Fifty-four (54).

PLAINTIFF at the time of the commencement of this action was, ever since has been and now is in the actual and exclusive possession thereof; that said parcels of land were conveyed by John Center, in the year 1863, to the San Francisco and San Jose Railroad Company, predecessor of Plaintiff, for the right of way for its railroad; that Plaintiff herein has succeeded to all of the rights and titles of said San Francisco and San Jose Railroad Company; that in and by the deed of conveyance of said right of way executed by said John Center it was expressly provided that in the event the use of said land as a right of way for said railroad should be at any time abandoned or should at any time be discontinued for a period of six months, the title and right to the possession thereof should revert to the grantor, to-wit, John Center; that the Defendants, George S. Crim, Wm. H. Crim, Grace M. Crim, Samuel M. Crim and Wm. H. Crim, Jr., successors to said John Center, are and at the time of the commencement of this action were the owners of the fee to said parcels of land described as Parcels 27 and 29, and to that part of said Parcel 28 lying South of a line parallel to the Southerly line of Twenty-second Street and distant 260 feet Southerly therefrom, and which lies also West of a line parallel to the Westerly line of Harrison Street and distant 122 feet 6 inches Westerly therefrom, subject only to the right of way of Plaintiff herein for railroad purposes, and subject to the conditions hereinabove mentioned; that the John Center Company, successor to said John Center, is, and at the time of the commencement of this action was, the owner of the fee to the remainder of said Parcel 28, subject only to the right of way of Plaintiff herein

EXHIBIT 7

DECLARATION OF CHARLES A. WHITECOTTON

I, Charles A. Whitecotton, declare as follows:

1. I have been president and owner of Land Title Services, a title research company, for 35 years, and have had extensive experience for over sixty years researching the title of California real properties.

2. I have been asked by 17th and Peralta, LLC for assistance with respect to the ownership history of that certain property in the City and County of San Francisco, referred to as Mission Block 139, Assessor's Parcel Number 3639-036A (the "Property" or "Parcel 36A"), in connection with a petition they are filing with the Alameda County Superior Court concerning the ownership of the Property.

3. I have reviewed the legal description of Parcel 36A prepared by Lea & Braze Engineering, Inc., which has been filed in this matter as Exhibit 2.

4. I have also reviewed a copy of the Findings of Fact, Conclusions of Law and Decree issued by the Superior Court for the City and County of San Francisco, Case No. 19,851, dated March 8, 1912 (the "1912 Decree"), which was the result of a quiet title action brought by the Southern Pacific Railroad Company concerning certain real properties in San Francisco. I understand that a copy of the 1912 Decree is attached to the petition as Exhibit 6.

5. Paragraph 7 of the 1912 Decree makes reference to a Parcel 28. Parcel 28 consists of two adjacent lots: one lot is known as Assessor's Parcel Number 3639-036B, and was confirmed by the Decree to members of the Crim family, and is not relevant to this petition. The remainder of Parcel 28, which in my opinion consists of the Parcel 36A

that is the subject of this petition, was confirmed to The John Center Company, subject to a right of way and easement to the Southern Pacific Railroad Company:

“...The John Center Company, successor to said John Center, is, and, at the time of the commencement of this action, was, the owner of the fee to the remainder of said Parcel 28, subject only to the right of way of [Southern Pacific Railroad Company] for railroad purposes, and subject to the conditions hereinabove mentioned.”

6. It is my opinion that the property identified as “Parcel 28” in the 1912 Decree describes an area that encompasses and includes Parcel 36A, and that the 1912 Decree confirms that Parcel 36A was then owned in fee by The John Center Company, subject to a right of way for railroad purposes to Southern Pacific Railroad Company.

7. I have also reviewed a Title Guarantee issued by Chicago Title Insurance Company dated July 19, 2024 (the “Title Report”), which I understand is attached to the petition as Exhibit 10. The report is specifically for Parcel 36A. As indicated in Schedule A of such report, the title company concludes that “there are no deeds describing the Land or any portion thereof, other than those shown in Schedule B.” Schedule B of such Title Report lists all the deeds, decrees and other documents in the San Francisco County records related to Parcel 36A from 1908 until the date of the report.

8. I am of the opinion that, based on my review of the Title Report and the 1912 Decree, Parcel 36A was confirmed as an asset of The John Center Company in the 1912 Decree and that Parcel 36A was not conveyed to any other party by a recorded document after that time until 1934.

9. I have further reviewed a copy of an Indenture dated February 15, 1934, documenting a transfer of real properties from The John Center Company to C.W. Gompertz (the "1934 Indenture"), which is signed before a notary public and is certified by the Clerk of the Municipal Court of the City and County of San Francisco on February 28, 1934, and recorded in the records of San Francisco County in Book 2601, Official Records, page 416, on February 28, 1934. This document is listed as item no. 4 in the Title Report, and is attached to the petition as Exhibit 9.

10. I note in reviewing the 1934 Indenture, which lists thirteen specifically identified parcels of real property which are subject to the conveyance from The John Center Company to C.W. Gompertz, that Parcel 36A is not included in any of such thirteen described parcels. However, I also note that the 1934 Indenture conveys to C.W. Gompertz "all other property, both real and personal, of every kind, nature and description belonging to The John Center Company, or in which it has any interest and wheresoever situate,..."

11. Although Parcel 36A was not included in the specific list of assets transferred by The John Center Company to C.W. Gompertz in 1934, it is my opinion, based on my long experience dealing with properties in San Francisco that were subject to railroad easements and rights of way, that it is likely that Parcel 36A was not specifically listed as an asset in the 1934 Indenture because the Southern Pacific Railroad was still actively operating a railroad on the Property at that time, and the prospect of railroad operations ceasing, with a consequent reversion to the residual owner (i.e., The John Center Company) was thought to be remote.

12. It is my opinion, due to the "omnibus clause" cited in paragraph 10 above, that Parcel 36A was indeed included in the assets transferred under the 1934 Indenture to C.W. Gompertz.

13. I have also reviewed the Disclaimer and Release of Interest in Real Property, executed by the Southern Pacific Transportation Company and recorded on November 8, 1996, which is listed as item no. 6 in the Title Report, and which is attached to the petition as Exhibit 11. I have reviewed the legal description referenced in that Disclaimer, and have concluded that it fully encompasses Parcel 36A. Accordingly, it is my opinion that Southern Pacific Transportation Company has given up all rights to Parcel 36A, including its former right of way, and that ownership of Parcel 36A thereby reverted to the underlying fee interest owners, namely the descendants of Charles Gompertz.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on this 30th day of SEPTEMBER, 2024 at

Granada Bldg, California.


Charles A. Whitecotton

EXHIBIT 8

DECLARATION OF JOANNE PARRENT

I, Joanne Parrent, hereby declare as follows:

1. I am a California-licensed private investigator and partner in the private investigation firm, Parrent Smith Investigations and Research. I received my license from California's Bureau of Security and Investigative Services (license number 24108) in 2005. I make this declaration based on own personal knowledge. If called upon to testify as to the matters stated herein, I could and would do so competently.
2. As a partner in my company, Parrent Smith Investigations and Research, I have been actively engaged in the business of private investigation and research for 19 years. The investigative work our company performs on behalf of clients often requires extensive historical research. For example, in environmental investigations, our firm identifies and reviews all available private and public records to prepare a list of all potentially responsible parties (i.e., property owners and operators) that in past decades may have contributed to the pollution at a site.
3. On May 9, 2023, my firm was retained by Barg Coffin Lewis & Trapp, LLP, through attorney Julia Graeser Mata, counsel for 17th and Peralta, LLC, to locate all possible owners and heirs of the abandoned right of way property at 22nd and Treat Avenue in the San Francisco Mission District, known as Assessor Parcel Number ("APN") 3639/36A and referred to herein as "Parcel 36A." I served as the primary investigator and the point of contact between my firm and Barg Coffin in this matter. I have also worked with Freidman McCubbin Law Group LLP, who have been retained to file a probate court petition in this matter. Although certain investigative tasks were performed by my partner, Nicholas Smith, or by other

investigators employed by Parrent Smith, I supervised all such work and communicated our findings to counsel.

4. At the beginning of our engagement, Ms. Mata provided me with a “chain of title” report for APNs 3639/36A, 3639/36B, and 3639/36C that had been prepared by Chicago Title Company on April 14, 2023 (“Title Report”). The Title Report showed The John Center Company as the owner of record for Parcel 36A, based on a Decree Quietening Title issued by the San Francisco County Court on January 19, 1912 and recorded on March 8, 1912 in San Francisco Book 598 of Deeds, Page 308.

5. Based on the title records for Parcel 36A, Ms. Mata asked me to find out whether the John Center Company, or its founder John Center, ever sold or otherwise transferred Parcel 36A after the 1912 decree; to determine when John Center Company dissolved and what became of its assets; and to identify any living descendants or possible heirs of John Center, who may have relevant information or records. To answer these questions, our firm conducted extensive research, which included searching for and obtaining all potentially relevant records from the following sources:

- a) ancestry records;
- b) archives of Bay Area and California newspapers;
- c) public libraries and historical societies;
- d) California Secretary of State records;
- e) wills and probate files in County courts
- f) databases such as Lexis Nexis to find individuals, and
- g) San Francisco County Recorder’s office.

Our efforts to search the above-listed sources, and the results of those searches, are described in the paragraphs below.

6. The results of our firm’s investigation are described in detail below.
Between May and August 2023, my colleagues and I identified and reviewed all records we

could find about the John Center Company and its dissolution and distribution of corporate assets.

7. Ms. Mata shared with me in August 2023 a public record dated February 28, 1934 that transferred all John Center Company-owned property to its then-president, Charles Gompertz, upon dissolution of the Company. At that point, our search shifted to identifying and locating the descendants of Charles Gompertz.

8. After we located the descendants of Charles Gompertz, Ms. Mata advised us that our client 17th and Peralta, LLC was in contact with some of those descendants and was trying to work out a deal with them by which 17th and Peralta, LLC would purchase their interest in Parcel 36A. Ms. Mata then contacted me again to advise me that 17th and Peralta, LLC had reached an agreement with some of such descendants and to request that I do some further research to support the legal proceedings required to confirm the descendants' legal interest in Parcel 36A. Specifically, Ms. Mata requested that I review the archives of the San Francisco Recorder's Office for further evidence to confirm that (1) John Center Company maintained its ownership of Parcel 36A during the years after the 1912 Decree and before its dissolution in 1934; and (2) that Charles Gompertz did not sell or transfer Parcel 36A after that point and before his death in 1953.

Research re: John Center Company

9. Old newspaper research. Because of the San Francisco fire in 1906 that destroyed many years of County Recorder's office deed transfers, we conducted a search of local newspapers to determine if an earlier transfer of the property may have been made but was lost in the fire. We subscribe to databases containing archives from newspapers dating back into the 1800s including the *San Francisco Examiner*, the *San Francisco Call* and the *San Francisco*

Chronicle. My partner, Nicholas Smith, and I conducted more than 20 hours of newspaper research, searching databases for property listings, sales or deed transfers in the decades John Center was active in San Francisco and during the years after his death. We found that, between 1850-1950, these newspapers listed many real property sales and deed transfers. Within these digital archives of these old newspapers, we used the following search criteria: "John Center," the "John Center Company," the streets where the parcel is located (Harrison, Treat and 22nd streets), the "Mission Block 139" designation and "Southern Pacific."

10. We learned from numerous newspaper articles viewed during the course of our research that John Center owned a lot of property in the Mission district and was called "the Father of the Mission." Although we found reports of John Center's purchase and sale of properties in San Francisco, including the transfer of a small lot near Harrison and 22nd to J. F. English very close to Parcel 36A reported by the *San Francisco Examiner* on August 2, 1879, 8/2/1879, we did not find any reports relating to the sale or transfer of Parcel 36A.

11. Despite our exhaustive newspaper search, we did not find any record of Parcel 36A being sold by John Center or the John Center Company before the dissolution of the John Center Company in 1934.

12. Research at libraries and historical societies: There are historical collections and archives in libraries and historical societies in Alameda County, Santa Clara County and San Francisco, as well as general California historical collections and archives. I contacted

the following institutions to determine if any of them had material on John Center or the John Center Company:

- The Alameda County Library
- The Bancroft Library
- California Historical Society
- California State Library
- Found SF
- History San Jose Research Library
- The Huntington Library
- Oakland History Center of the Oakland Library
- Online Archive of California
- Santa Clara County Historical & Genealogical Society
- The Sutro Library

I found two collections that had material about John Center and his company.

The History San Jose Library contains the archives of Hugh Stuart Center, the great nephew of John Center, who was a prominent attorney in San Jose. On June 20, 2022 I contacted the Hugh Stuart Center collection, and Cate Mills, Curator, Research Library & Archives at the library, agreed to go through the boxes in the Hugh Stuart Center collection to look for any information that might help our search for the disposition of Parcel 36A. She did not find anything about the parcel.

I also learned that there was a collection of papers of the John Center Company at the Huntington Library in San Marino, California. On May 23, 2023, I went to the Huntington Library to review the archival collection. Despite a careful and complete review of each box in the collection, I found no reference to Parcel 36A or any other helpful information.

No other historical society or library in California had any collections relating to John Center or his company.

13. Obtaining the California Secretary of State records from the John Center Company: At my direction, my associate, Julie Lowrie, contacted the California Secretary of State's office on July 3, 2023 to obtain all papers within Secretary of State files that relate to the John Center Company. She contacted the SOS office on July 3, 2023 and was told that the papers the Secretary of State's office has on the John Center Company's dissolution, amendments and initial filings are not digitized or on microfiche but are stored in a warehouse. We asked the office to retrieve them and copy them for us. They were ready on July 19, 2023 and Investigator Lowrie picked them up, scanned them and sent them to us. We forwarded them to counsel.

14. Distribution to Charles Gompertz. Then, in August, 2023, counsel received a Deed that their title company located in the San Francisco County Recorder's office dated February 28, 1934, stating that as part of the dissolution of The John Center Company, all remaining real property was transferred to Charles William Gompertz, who had been a director of the company. Although it listed some specific properties other than Parcel 36A, it was clear from the Deed that all properties held by the company, other than one property that is not Parcel 36A, would be transferred to Charles Gompertz.

I then searched for Charles Gompertz's will and that of his wife, Anita. They both died in Alameda County. I contacted the county and their researcher confirmed they had the wills of both Charles Gompertz and that of his wife Anita Gompertz. They were large files so our associate, investigator Tava Miyata, went to the court to obtain copies of the two wills on September 18, 2024. She had the wills scanned at FEDEX Kinkos and sent to me. I forwarded those wills to counsel on September 18, 2023.

15. Locating heirs with databases such as Lexis Nexis. In September, 2023, after locating the wills of Charles and Anita Gompertz, I located their deceased children and living grandchildren using databases we subscribe to as private investigators such as Lexis Nexis, Microbilt, Delvepoint and IdiCore. I completed that work on September 19, 2023, providing counsel with information so they could contact Gompertz descendants.

16. Research at the San Francisco County Recorder's office. On June 18, 2024, I was contacted by counsel and asked to conduct research at the San Francisco County Recorder's office, reviewing grantor deeds for The John Center Company from 1912-1934. I engaged associates, Danny Cozart and Dana Zook, to undertake the review. They found 53 deeds in which The John Center Company was the grantor. Only one deed (dated 12/20/1927) referred to the area in question, in Mission Block No. 139. A copy of that Deed was ordered and both our report listing the deeds reviewed and a copy of the 12/20/1927 deed from Mission Block 139 were forwarded to counsel on July 10, 2024. However, that deed relates to property other than Parcel 36A.

I declare that after conducting the aforementioned due diligent research for the disposition of Parcel 36A and having pursued all information that could shed any light on one or more transfers of said property, I have been unable to locate any such transfer other than the 1934 deed. Based on my years of research experience in locating documents, I do not believe that the property known as Parcel 36A in Mission Block 139 in San Francisco was ever sold or transferred by The John Center Company or by Charles Gompertz and thus belongs to the descendants of Charles Gompertz.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on this 30th day of September, 2024 at
Los Angeles, California.


Joanne Parrent

EXHIBIT 9

right angle Westerly along Nineteenth Street 200 feet to Potrero Avenue and the point of beginning.

BEING all of Potrero Nuevo Block #76 and portions of Potrero Nuevo Blocks #77/78.

COMMENCING at a point formed by the intersection of the Northerly line of 17th St., with the Westerly line of Kansas Street running thence Northerly along the Westerly line of Kansas Street 85 feet; thence at a right angle Westerly 100 feet; thence at a right angle Southerly 85 feet; to 17th Street, and thence at a right angle Easterly along the Northerly line of 17th Street 100 feet to the point of beginning.

BEING a portion of Potrero Nuevo Block #130.

COMMENCING at a point formed by the intersection of the Southerly line of 18th St., with the Easterly line of De Haro Street running thence Southerly along De Haro Street 400 feet; to the Northerly line of 19th Street, thence at a right angle Easterly along 19th Street 200 feet; to the Westerly line of Carolina Street, thence at a right angle Northerly 400 feet; to the Southerly line of 18th Street, and thence at a right angle Westerly 200 feet; to the Easterly line of De Haro Street and point of beginning.

All of Potrero Nuevo Block #175.

COMMENCING at a point formed by the intersection of the Southerly line of 18th St., with the Easterly line of Carolina Street running thence Southerly along the Easterly line of Carolina Street 400 feet; to 19th Street, thence at a right angle Easterly 135 feet 9 inches to a point distant 64 feet 3 inches Westerly from the Westerly line of Wisconsin Street, running thence Northeasterly 158 feet 3 inches to a point on the Westerly line of Wisconsin Street distant 144 feet 8 inches Northerly, from the Northerly line of 19th Street running thence Northerly along the Western line of Wisconsin Street 255 feet 4 inches to the Southerly line of 18th Street; and thence at a right angle Westerly 200 feet to the Easterly line of Carolina Street and the point of beginning.

BEING a portion of Potrero Nuevo Block #198.

COMMENCING at a point formed by the intersection of the Northerly line of 25th Street, with the Easterly line of Connecticut St., running thence Easterly along 25th Street 200 feet; to Missouri Street, thence at a right angle Northerly along Missouri Street 349 feet 10 inches; thence at a right angle Westerly 200 feet to Connecticut Street; and thence at a right angle Southerly along Connecticut Street 349 feet 10 inches to the Northerly line of 25th Street and point of beginning.

BEING a portion of Potrero Nuevo Block #252.

COMMENCING at a point formed by the intersection of the Northerly line of 25th St., with the Westerly line of Minnesota St., running thence Northerly along Minnesota Street 381 feet; thence at a right angle Westerly 200 feet; to Indiana Street, thence at a right angle Southerly 381 feet; to 25th Street, thence at a right angle Easterly 200 feet; along 25th Street to Minnesota Street and point of beginning.

BEING a portion of Potrero Nuevo Block #360.

COMMENCING at a point formed by the intersection of the Southerly line of 24th Street with the Westerly line of Tennessee Street running thence Southerly along Tennessee Street 200 feet; thence at a right angle Westerly 200 feet; to Minnesota Street, thence at a right angle Northerly 200 feet, to 24th Street, and thence at a right angle Easterly along 24th Street 200 feet, to Tennessee Street, and the point of beginning.

BEING a portion of Potrero Nuevo Block #369.

COMMENCING at a point formed by the intersection of the Northerly line of 17th Street with the Westerly line of Shotwell Street running thence Northerly along said line of Shotwell Street 420 feet; thence at a right angle Westerly 74 feet 6 inches; thence at a

EXHIBIT 10

CLTA PLANT INFORMATION

Issued By:



CHICAGO TITLE INSURANCE COMPANY

Guarantee Number:

FCPF-2371240335

SUBJECT TO THE EXCLUSIONS FROM COVERAGE, AND THE GUARANTEE CONDITIONS ATTACHED HERETO AND MADE A PART OF THIS GUARANTEE,

CHICAGO TITLE INSURANCE COMPANY
a corporation, herein called the Company

GUARANTEES

the Assured named in Schedule A of this Guarantee

against loss or damage not exceeding the Amount of Liability stated in Schedule A sustained by the Assured by reason of any incorrectness in the Assurances set forth in Schedule A.

Chicago Title Company
1200 Concord Ave., Suite 400
Concord, CA 94520

Countersigned By:

Morris Evans

Morris Evans
Authorized Officer or Agent



Chicago Title Insurance Company

By:

Michael J. Nolan

Michael J. Nolan, President

Attest:

Marjorie Nemzura

Marjorie Nemzura, Secretary

ISSUING OFFICE:

Title Officer: Kristian Casillas
Chicago Title Company
1200 Concord Ave., Suite 400
Concord, CA 94520
Phone: (925)288-8000 Fax: (925)288-6405
Main Phone: (925)288-8000
Email: kristian.casillas@titlegroup.fntg.com

SCHEDULE A

Amount of Liability	Fee	Title Officer
\$1,000.00	\$650.00	Kristian Casillas

Date of Guarantee: July 19, 2024 at 12:00 AM

1. Name of Assured: Barg Coffin Lewis & Trapp, LLP

2. The Land is described as follows:

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF

3. ASSURANCES:

According to the Company's property records subsequent to April 28, 1908, relative to the Land (but without examination of those Company records maintained and indexed by name), there are no deeds describing the Land or any portion thereof, other than those shown in Schedule B.

END OF SCHEDULE A

EXHIBIT "A"
Legal Description

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE CITY OF SAN FRANCISCO, COUNTY OF SAN FRANCISCO, STATE OF CALIFORNIA AND IS DESCRIBED AS FOLLOWS:

All that certain real property, situate in the City and County of San Francisco, State of California, over a portion of the former SPRR Right of Way per Judgement 19851 Recorded March 8, 1912 as shown on Final Map No, 10057 filed on November 25, 2020 in Book 1 of Final Maps at pages 126-129, San Francisco County Records, as shown on Exhibit "B" made a part hereof more particularly described as follows:

Commencing at a point on the southerly corner of Lot 1 of said Final Map No, 10057, said point being on the easterly line of Treat Avenue (60 feet wide) as shown on said map (the bearing of Treat Avenue taken as North 00°00'00" East for the purpose of this description), said point also being the beginning of a non-tangent curve to the left with a radius of 925.37 feet; thence leaving said easterly line of Treat Avenue, from a tangent bearing North 43°38'21" East, along the southeasterly line of said Lot 1 and along said curve, through a central angle of 1°33'58", a distance of 25.29 feet to the Point of Beginning; thence continuing along last said curve through a central angle of 5°59'06", a distance of 96.66 feet to the most easterly corner of said Lot 1, said point also being the southwesterly corner of Parcel Three as described in that certain Correction Grant Deed recorded September 20, 2023 in Document No. 2023067950 of Official Records of San Francisco County, thence along the southerly line of said parcel, South 90°00'00" East, 9.26 feet to the southeasterly corner of said parcel, thence along the easterly line of said parcel, North 33°32'32" East, 71.99 feet to the most northeasterly corner of said parcel, thence along the northerly line of said parcel, North 90°00'00" West, 8.79 feet to the northwesterly line of said former SPRR Right of Way; said point also being the beginning of a non-tangent curve to the left with a radius of 925.37 feet; thence along said curve, from a tangent bearing North 31°36'49" East, through a central angle of 8°42'52", a distance of 140.74 feet to the southerly line of 22nd Street (64 feet wide) as shown on said map, along said southerly line of 22nd Street, North 90°00'00" East, 62.25 feet to the westerly line of Harrison Street (82.50 feet wide) as shown on said map; thence along last said line, South 00°00'00" East, 6.39 feet to the southeasterly line of said former SPRR Right of Way, said point also being the beginning of a non-tangent curve to the right with a radius of 985.37 feet; thence along said curve, from a tangent bearing South 21°49'59" West, through a central angle of 11°45'04", a distance of 202.09 feet to northwesterly corner of Lot 1 of Final Map No. 7452 filed on October 4, 2013 in Book 122 of Condominium Maps at pages 39-40, San Francisco County Records; thence along the westerly projection of the northerly line of said Lot 1, North 90°00'00" West, 28.70 feet to the intersection with the northerly projection of the westerly line of said Lot 1; thence along said prolongation, South 00°00'00" East, 40.92 feet to said southeasterly line of former SPRR Right of Way, said point also being the beginning of a non-tangent curve to the right with a radius of 985.37 feet; thence along said curve, from a tangent bearing South 36°29'27" West, through a central angle of 2°30'22", a distance of 43.10 feet; thence leaving last said line, North 90°00'00" West, 78.92 feet to the Point of Beginning.

Containing 17,227 square feet, more or less.

For APN/Parcel ID(s): Lot 036A, Block 3639

SCHEDULE B

1. Entitled: DEED
Dated: April 28, 1908
Executed by: John Center (a Widower); The John Center Company, a corporation
Recording Date: April 29, 1908
Recording No: I41989, Book 158, Page 191 of Deeds
2. Entitled: DECREE ESTABLISHING TITLE, San Francisco Superior Court, Case No. : 8350
Dated: January 14, 1909
Plaintiff: The John Center Company, a corporation
Recording Date: January 14, 1909
Recording No: J31579, Book 246, Page 252 of Deeds
3. Entitled: Decree Quieting Title
Dated: January 19, 1912
Executed by: Southern Pacific Railroad Company
Recording Date: Mach 8, 1912
Recording No: M34464, Book 598 of Deeds, Page 329
4. Entitled: Indenture
Dated: February 15, 1934
Executed by: The John Center Company
Recording Date: February 28, 1934
Recording No: I34749, Book 2601 OR Page 416
5. Entitled: Deed
Dated: October 23, 1991
Executed by: George Allan Center; Ernest R. Heinzer & James W. Heinzer, as tenancy in common
Recording Date: October 24, 1991
Recording No.: F016418, Book F488, Page 583, of Official Records
6. Entitled: Disclaimer and Release of Intent in Real Property and Withdrawal of Notice of Pending Action
Executed by: Southern Pacific Transportation Company
Recording Date: November 8, 1996
Recording No.: 96-G073943-00, of Official Records

SCHEDULE B

(continued)

7. Entitled: Deed
Executed by: James Watson Heinzer; The James Watson Heinzer and Barbara Guldin Heinzer AB Living Trust
Recording Date: May 30, 2003
Recording No.: 2003-H449802-00, Reel I398, Image 0584, of Official Records
8. Entitled: Quitclaim Deed
Dated: July 06, 2023
Executed by: James Watson Heinzer and Barbara Guldin Heinzer, as trustees for The James Watson Heinzer and Barbara Guldin Heinzer AB Living Trust
Recording Date: July 11, 2023
Recording No: 2023048393

END OF SCHEDULE B

EXCLUSIONS FROM COVERAGE

Except as expressly provided by the assurances in Schedule A, the Company assumes no liability for loss or damage by reason of the following:

- (a) Defects, liens, encumbrances, adverse claims or other matters affecting the title to any property beyond the lines of the Land.
- (b) Defects, liens, encumbrances, adverse claims or other matters, whether or not shown by the Public Records (1) that are created, suffered, assumed or agreed to by one or more of the Assureds; or (2) that result in no loss to the Assured.
- (c) Defects, liens, encumbrances, adverse claims or other matters not shown by the Public Records.
- (d) The identity of any party shown or referred to in any of the schedules of this Guarantee.
- (e) The validity, legal effect or priority of any matter shown or referred to in any of the schedules of this Guarantee.
- (f) (1) Taxes or assessments of any taxing authority that levies taxes or assessments on real property; or (2) proceedings by a public agency which may result in taxes or assessments, or notices of such proceedings, whether or not the matters excluded under (1) or (2) are shown by the records of the taxing authority or by the Public Records.
- (g) (1) Unpatented mining claims; (2) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (3) water rights, claims or title to water, whether or not the matters excluded under (1), (2) or (3) are shown by the Public Records.

GUARANTEE CONDITIONS**1. DEFINITION OF TERMS**

The following terms when used in the Guarantee mean:

- (a) the "Assured": the party or parties named as the Assured in Schedule A, or on a supplemental writing executed by the Company.
- (b) "Land": the Land described or referred to in Schedule A, and improvements affixed thereto which by law constitute real property. The term "Land" does not include any property beyond the lines of the area described or referred to in Schedule A, nor any right, title, interest, estate or easement in abutting streets, roads, avenues, alleys, lanes, ways or waterways.
- (c) "Mortgage": mortgage, deed of trust, trust deed, or other security instrument.
- (d) "Public Records": those records established under California statutes at Date of Guarantee for the purpose of imparting constructive notice of matters relating to real property to purchasers for value and without knowledge.
- (e) "Date of Guarantee": the Date of Guarantee set forth in Schedule A.
- (f) "Amount of Liability": the Amount of Liability as stated in Schedule A.

2. NOTICE OF CLAIM TO BE GIVEN BY ASSURED

The Assured shall notify the Company promptly in writing in case knowledge shall come to the Assured of any assertion of facts, or claim of title or interest that is contrary to the assurances set forth in Schedule A and that might cause loss or damage for which the Company may be liable under this Guarantee. If prompt notice shall not be given to the Company, then all liability of the Company shall terminate with regard to the matter or matters for which prompt notice is required; provided, however, that failure to notify the Company shall in no case prejudice the rights of the Assured under this Guarantee unless the Company shall be prejudiced by the failure and then only to the extent of the prejudice.

3. NO DUTY TO DEFEND OR PROSECUTE

The Company shall have no duty to defend or prosecute any action or proceeding to which the Assured is a party, notwithstanding the nature of any allegation in such action or proceeding.

4. COMPANY'S OPTION TO DEFEND OR PROSECUTE ACTIONS; DUTY OF ASSURED TO COOPERATE

Even though the Company has no duty to defend or prosecute as set forth in Paragraph 3 above:

- (a) The Company shall have the right, at its sole option and cost, to institute and prosecute any action or proceeding, interpose a defense, as limited in Paragraph 4 (b), or to do any other act which in its opinion may be necessary or desirable to establish the correctness of the assurances set forth in Schedule A or to prevent or reduce loss or damage to the Assured. The Company may take any appropriate action under the terms of this Guarantee, whether or not it shall be liable hereunder, and shall not thereby concede liability or waive any provision of this Guarantee. If the Company shall exercise its rights under this paragraph, it shall do so diligently.
- (b) If the Company elects to exercise its options as stated in Paragraph 4 (a) the Company shall have the right to select counsel of its choice (subject to the right of the Assured to object for reasonable cause) to represent the Assured and shall not be liable for and will not pay the fees of any other counsel, nor will the Company pay any fees, costs or expenses incurred by an Assured in the defense of those causes of action which allege matters not covered by this Guarantee.
- (c) Whenever the Company shall have brought an action or interposed a defense as permitted by the provisions of this Guarantee, the Company may pursue any litigation to final determination by a court of competent jurisdiction and expressly reserves the right, in its sole discretion, to appeal from an adverse judgment or order.
- (d) In all cases where this Guarantee permits the Company to prosecute or provide for the defense of any action or proceeding, the Assured shall secure to the Company the right to so prosecute or provide for the defense of any action or proceeding, and all appeals therein, and permit the Company to use, at its option, the name of the Assured for this purpose. Whenever requested by the Company, the Assured, at the Company's expense, shall give the Company all reasonable aid in any action or proceeding, securing evidence, obtaining witnesses, prosecuting or defending the action or lawful act which in the opinion of the Company may be necessary or desirable to establish the correctness of the assurances set forth in Schedule A or to prevent or reduce loss or damage to the Assured. If the Company is prejudiced by the failure of the Assured to furnish the required cooperation, the Company's obligations to the Assured under the Guarantee shall terminate.

(continued)

5. PROOF OF LOSS OR DAMAGE

- (a) In the event the Company is unable to determine the amount of loss or damage, the Company may, at its option, require as a condition of payment that the Assured furnish a signed proof of loss. The proof of loss must describe the defect, lien, encumbrance, or other matter that constitutes the basis of loss or damage and shall state, to the extent possible, the basis of calculating the amount of the loss or damage.
- (b) In addition, the Assured may reasonably be required to submit to examination under oath by any authorized representative of the Company and shall produce for examination, inspection and copying, at such reasonable times and places as may be designated by any authorized representative of the Company, all records, books, ledgers, checks, correspondence and memoranda, whether bearing a date before or after Date of Guarantee, which reasonably pertain to the loss or damage. Further, if requested by any authorized representative of the Company, the Assured shall grant its permission, in writing, for any authorized representative of the Company to examine, inspect and copy all records, books, ledgers, checks, correspondence and memoranda in the custody or control of a third party, which reasonably pertain to the loss or damage. All information designated as confidential by the Assured provided to the Company pursuant to this paragraph shall not be disclosed to others unless, in the reasonable judgment of the Company, it is necessary in the administration of the claim. Failure of the Assured to submit for examination under oath, produce other reasonably requested information or grant permission to secure reasonably necessary information from third parties as required in the above paragraph, unless prohibited by law or governmental regulation, shall terminate any liability of the Company under this Guarantee to the Assured for that claim.

6. OPTIONS TO PAY OR OTHERWISE SETTLE CLAIMS: TERMINATION OF LIABILITY

In case of a claim under this Guarantee, the Company shall have the following additional options:

- (a) To pay or tender payment of the Amount of Liability together with any costs, attorneys' fees, and expenses incurred by the Assured that were authorized by the Company up to the time of payment or tender of payment and that the Company is obligated to pay.
- (b) To pay or otherwise settle with the Assured any claim assured against under this Guarantee. In addition, the Company will pay any costs, attorneys' fees, and expenses incurred by the Assured that were authorized by the Company up to the time of payment or tender of payment and that the Company is obligated to pay; or
- (c) To pay or otherwise settle with other parties for the loss or damage provided for under this Guarantee, together with any costs, attorneys' fees, and expenses incurred by the Assured that were authorized by the Company up to the time of payment and that the Company is obligated to pay.

Upon the exercise by the Company of either of the options provided for in 6 (a), (b) or (c) of this paragraph the Company's obligations to the Assured under this Guarantee for the claimed loss or damage, other than the payments required to be made, shall terminate, including any duty to continue any and all litigation initiated by the Company pursuant to Paragraph 4.

7. LIMITATION OF LIABILITY

- (a) This Guarantee is a contract of Indemnity against actual monetary loss or damage sustained or incurred by the Assured claimant who has suffered loss or damage by reason of reliance upon the assurances set forth in Schedule A and only to the extent herein described, and subject to the Exclusions From Coverage of this Guarantee.
- (b) If the Company, or the Assured under the direction of the Company at the Company's expense, removes the alleged defect, lien, or encumbrance or cures any other matter assured against by this Guarantee in a reasonably diligent manner by any method, including litigation and the completion of any appeals therefrom, it shall have fully performed its obligations with respect to that matter and shall not be liable for any loss or damage caused thereby.
- (c) In the event of any litigation by the Company or with the Company's consent, the Company shall have no liability for loss or damage until there has been a final determination by a court of competent jurisdiction, and disposition of all appeals therefrom.
- (d) The Company shall not be liable for loss or damage to the Assured for liability voluntarily assumed by the Assured in settling any claim or suit without the prior written consent of the Company.

8. REDUCTION OF LIABILITY OR TERMINATION OF LIABILITY

All payments under this Guarantee, except payments made for costs, attorneys' fees and expenses pursuant to Paragraph 4 shall reduce the Amount of Liability under this Guarantee pro tanto.

9. PAYMENT OF LOSS

- (a) No payment shall be made without producing this Guarantee for endorsement of the payment unless the Guarantee has been lost or destroyed, in which case proof of loss or destruction shall be furnished to the satisfaction of the Company.
- (b) When liability and the extent of loss or damage has been definitely fixed in accordance with these Conditions, the loss or damage shall be payable within thirty (30) days thereafter.

10. SUBROGATION UPON PAYMENT OR SETTLEMENT

Whenever the Company shall have settled and paid a claim under this Guarantee, all right of subrogation shall vest in the Company unaffected by any act of the Assured claimant.

The Company shall be subrogated to and be entitled to all rights and remedies which the Assured would have had against any person or property in respect to the claim had this Guarantee not been issued. If requested by the Company, the Assured shall transfer to the Company all rights and remedies against any person or property necessary in order to perfect this right of subrogation. The Assured shall permit the Company to sue, compromise or settle in the name of the Assured and to use the name of the Assured in any transaction or litigation involving these rights or remedies.

If a payment on account of a claim does not fully cover the loss of the Assured the Company shall be subrogated to all rights and remedies of the Assured after the Assured shall have recovered its principal, interest, and costs of collection.

(continued)

11. ARBITRATION

Either the Company or the Assured may demand that the claim or controversy shall be submitted to arbitration pursuant to the Title Insurance Arbitration Rules of the American Land Title Association ("Rules"). Except as provided in the Rules, there shall be no joinder or consolidation with claims or controversies of other persons. Arbitrable matters may include, but are not limited to, any controversy or claim between the Company and the Assured arising out of or relating to this Guarantee, any service of the Company in connection with its issuance or the breach of a Guarantee provision, or to any other controversy or claim arising out of the transaction giving rise to this Guarantee. All arbitrable matters when the amount of liability is Two Million And No/100 Dollars (\$2,000,000) or less shall be arbitrated at the option of either the Company or the Assured. All arbitrable matters when the amount of liability is in excess of Two Million And No/100 Dollars (\$2,000,000) shall be arbitrated only when agreed to by both the Company and the Assured. Arbitration pursuant to this Guarantee and under the Rules shall be binding upon the parties. Judgment upon the award rendered by the Arbitrator(s) may be entered in any court of competent jurisdiction.

12. LIABILITY LIMITED TO THIS GUARANTEE; GUARANTEE ENTIRE CONTRACT

- (a) This Guarantee together with all endorsements, if any, attached hereto by the Company is the entire Guarantee and contract between the Assured and the Company. In interpreting any provision of this Guarantee, this Guarantee shall be construed as a whole.
- (b) Any claim of loss or damage, whether or not based on negligence, or any action asserting such claim, shall be restricted to this Guarantee.
- (c) No amendment of or endorsement to this Guarantee can be made except by a writing endorsed hereon or attached hereto signed by either the President, a Vice President, the Secretary, an Assistant Secretary, or validating officer or authorized signatory of the Company.

13. SEVERABILITY

In the event any provision of this Guarantee, in whole or in part, is held invalid or unenforceable under applicable law, the Guarantee shall be deemed not to include that provision or such part held to be invalid, but all other provisions shall remain in full force and effect.

14. CHOICE OF LAW; FORUM

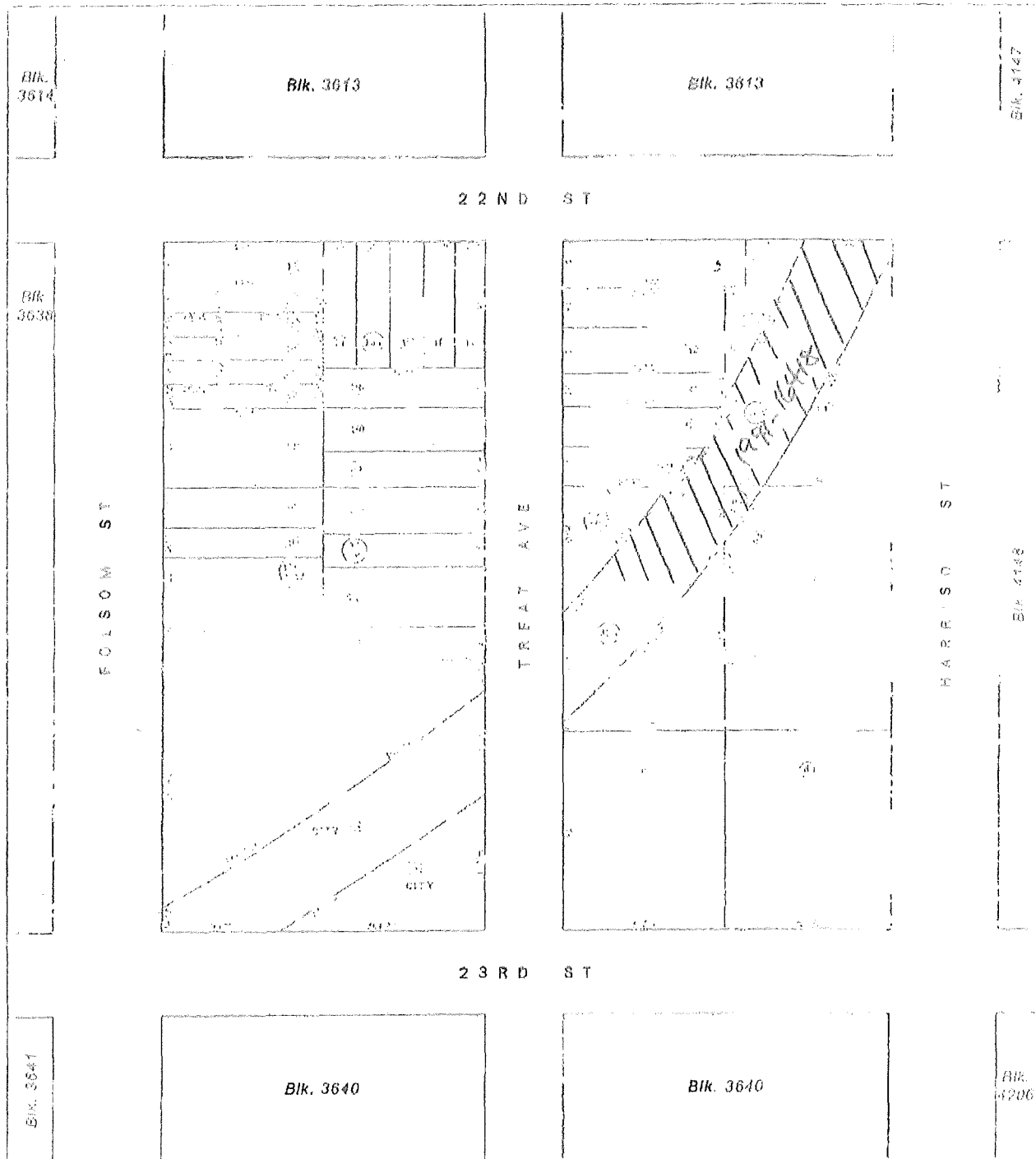
- (a) Choice of Law: The Assured acknowledges the Company has underwritten the risks covered by this Guarantee and determined the premium charged therefor in reliance upon the law affecting interests in real property and applicable to the interpretation, rights, remedies, or enforcement of Guaranties of the jurisdiction where the Land is located.
Therefore, the court or an arbitrator shall apply the law of the jurisdiction where the Land is located to determine the validity of claims that are adverse to the Assured and to interpret and enforce the terms of this Guarantee. In neither case shall the court or arbitrator apply its conflicts of law principles to determine the applicable law.
- (b) Choice of Forum: Any litigation or other proceeding brought by the Assured against the Company must be filed only in a state or federal court within the United States of America or its territories having appropriate jurisdiction.

15. NOTICES, WHERE SENT

All notices required to be given the Company and any statement in writing required to be furnished the Company shall include the number of this Guarantee and shall be addressed to the Company at:

Chicago Title Insurance Company
P.O. Box 45023
Jacksonville, FL 32232-5023
Attn: Claims Department

END OF CONDITIONS



**SAN FRANCISCO CITY & COUNTY
ASSESSOR'S BLOCK MAP**

DISCLAIMER: THIS MAP WAS PREPARED FOR ASSESSMENT
PURPOSES ONLY. ASSESSOR'S PARCELS MAY NOT COMPLY
WITH LOCAL LOT SPLIT OR BUILDING SITE ORDINANCES.

RECEIVED 1 2002

This map/plot is being furnished as an aid in locating the herein described Land in relation to adjoining streets, natural boundaries and other land, and is not a survey of the land depicted. Except to the extent a policy of title insurance is expressly modified by endorsement, if any, the Company does not insure dimensions, distances, location of easements, acreage or other matters shown thereon.

EXHIBIT 11

RECORDING REQUESTED BY
AND
WHEN RECORDED RETURN TO:

ARTHUR D. LEVY
Ewell & Levy
351 California Street
Suite 1100
San Francisco, California 94104

San Francisco Co Recorder's Office
Gregory Joseph Diaz, County Recorder
DOC - 96-6073943--00
Check Number 6400
REQD BY

Friday, NOV 08, 1996 12:51:19
REC \$9.00/PAG \$5.00/MIC \$1.00
STP \$4.00
Ttl Pd \$19.00 Nbr-0000674483
REEL 6756 IMAGE 0415 oed/JL/5

**DISCLAIMER AND RELEASE OF INTEREST IN REAL PROPERTY
AND WITHDRAWAL OF NOTICE OF PENDING ACTION**

Southern Pacific Transportation Company, for itself and for its parent, subsidiary, and affiliated corporations and entities, hereby disclaims and releases any and all right, title, and interest in and to that certain real property situated in the City and County of San Francisco, California described in Exhibit "A", and covenants that neither Southern Pacific Transportation Company nor any of its parent, subsidiary, and affiliated corporations will file, pursue, or pursue further any suit asserting any claim of right, title, or interest in or to the property so described based on any claim arising or existing on or before the date of this Disclaimer.

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G073943

Southern Pacific Transportation Company hereby withdraws the Notice of
Pending Action, recorded on August 23, 1992 at Book F700 Page 0535
Instrument no. F179540, and such Notice shall be of no further force or effect.

WITNESS my hand this 27 day of October 1996:

SOUTHERN PACIFIC
TRANSPORTATION COMPANY

by:

Mar. Carr

Its

Asst Vice President

G073943

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Sup 3.00 --- Mic 1.00
Amt 20.00 ---
TOTAL -> \$20.00
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VICKI E. BAER
MICHAEL H. ZACHARY
KEN A. KUMATTI
MORRISON & FOERSTER
755 Page Mill Road
Palo Alto, CA 94304
Telephone: (415) 813-5600

Attorneys for Plaintiff
SOUTHERN PACIFIC TRANSPORTATION COMPANY

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE CITY AND COUNTY OF SAN FRANCISCO

SOUTHERN PACIFIC
TRANSPORTATION COMPANY,

Plaintiff,

v.

ERNEST R. HEINZER and JAMES W.
HEINZER, d/b/a/ ERNEST A.
HEINZER & SONS COMPANY;
WESTERN FLYWOOD, INC., a
California corporation; TED A.
SURBER and SANDRA J. SURBER,
d/b/a/ SURBER & ASSOCIATES;
and DOES 1 through 20,

Defendants.

No. 945470

NOTICE OF PENDENCY OF
ACTION (LIS PENDENS)

PLEASE TAKE NOTICE THAT the above-captioned action, by
Plaintiff SOUTHERN PACIFIC TRANSPORTATION COMPANY against
defendants ERNEST R. HEINZER and JAMES W. HEINZER, d/b/a/
ERNEST A. HEINZER & SONS COMPANY; WESTERN FLYWOOD, INC., a
California corporation; TED A. SURBER and SANDRA J. SURBER,
d/b/a/ SURBER & ASSOCIATES, and DOES 1 through 20, affects title
to and/or possession of Real property in that plaintiff is
seeking to quiet title to certain real property located in the

EXHIBIT A

G073943

A parcel of land situate in the city and County of San Francisco, State of California being a portion of that 60 foot wide strip of land as described thirdly in that certain deed from, John Center to The San Francisco and San Jose Railroad Company recorded May 26, 1868 in Liber 429 of Deeds at Page 391, lying 30.00 feet equally on each side of that center line described therein in part as follows:

"Beginning at a point located 5.00 feet west of the Westerly line of Folson Street and 2.00 feet south of the southerly line of 23rd Avenue; thence along the center line curving to the left to a point in the middle of Harrison Street that is 15.00 feet south of the Northern line of Alta Street."

Being that portion thereof bounded; on the north by the southerly line of 22nd Street; on the East by the westerly line of Harrison Street; on the West by the easterly line of Treat Avenue; and on the South by a line parallel with and 260.00 feet southerly of, measured at right angles, the southerly line of said 22nd Street.

Excepting therefrom the herein above described parcel any portion thereof lying within that parcel of land as described in deed recorded December 23, 1952 as Recordars Series 8-37846, in Book/Reel 6064 of Official Records at Page/Image 354, Records of City and County of San Francisco.

22329\1\58539.1

CALIFORNIA ALL-PURPOSE ACKNOWLEDGMENT

State of California

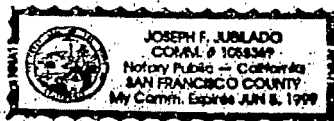
County of San Francisco

G073943

On October 23, 1996 before me, Joseph F. Jubilado, Notary Public
DATE NAME, TITLE OF OFFICER - E.G., "JANE DOE, NOTARY PUBLIC"

personally appeared M. W. Casey
NAME(S) OF SIGNER(S)

☒ personally known to me - OR ☐ proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.



WITNESS my hand and official seal.

Joseph F. Jubilado
SIGNATURE OF NOTARY

OPTIONAL

Though the data below is not required by law, it may prove valuable to persons relying on the document and prevent fraudulent reattachment of this form.

CAPACITY CLAIMED BY SIGNER

DESCRIPTION OF ATTACHED DOCUMENT

- ☐ INDIVIDUAL
☐ CORPORATE

TITLE(S)

TITLE OR TYPE OF DOCUMENT

- ☐ PARTNER(S) ☐ LIMITED
☐ ATTORNEY-IN-FACT ☐ GENERAL
☐ TRUSTEE(S)
☐ GUARDIAN/CONSERVATOR
☐ OTHER

NUMBER OF PAGES

DATE OF DOCUMENT

SIGNER IS REPRESENTING:
NAME OF PERSON(S) OR ENTITY

SIGNER(S) OTHER THAN NAMED ABOVE

EXHIBIT 12

2-12
m

FILED

1965 MAY 12 AM 11:01

JACK G. BLUE
COUNTY CLERK

Entry Date MAY 13 1965
Vol. 117 Page 37 (Reel)
Jack G. Blue, County Clerk
By *Charles C. Smith*
Deputy

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ALAMEDA

In the Matter of the Estate of	No. 123,339 -
CHARLES W. GOMPERTZ,	Department No. 4
also known as CHARLES WILLIAM GOMPERTZ,	
CHARLES GOMPERTZ, and as C. W. GOMPERTZ,	
Deceased.	

ORDER SETTLING AND APPROVING ELEVENTH AND FINAL ACCOUNT
AND REPORT OF CROCKER-CITIZENS NATIONAL BANK, AS TRUSTEE,
ALLOWING TRUSTEE'S FEES AND ATTORNEYS' FEES, AND OF
FINAL DISTRIBUTION OF TRUST ASSETS

CROCKER-CITIZENS NATIONAL BANK, a national banking association, formerly CROCKER-ANGLO NATIONAL BANK, trustee under the last will and testament of Charles W. Gompertz, deceased, and under the decree of final distribution in the estate of said decedent, having heretofore, on April 23, 1965, rendered and filed in the above entitled court and matter its eleventh and final account and report of its administration of said estate as trustee, which account and report covers the period September 22, 1964 to and including March 11, 1965, and as a part of said report said trustee having petitioned for the settlement and approval thereof, for allowance of compensation to said trustee and to the attorneys for said trustee, and for final distribution of trust assets, and said account, report and petition coming on regularly to be heard this 12th day of May, 1965, and it satis-

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1 factorily appearing to the court and the court hereby finds:

2 That due and legal notice of the time and place fixed
3 for the hearing of said account, report and petition has been duly
4 and regularly given in the manner, for the time, and in all re-
5 spects as required by law, and that special notice of the time
6 and place fixed for the hearing of said account, report and peti-
7 tion has been duly and regularly given to each of the remainder-
8 men of said trust (the beneficiary of said trust having died
9 March 11, 1965), all in the manner, for the time, and as required
10 by law; that no request for special notice has been filed in con-
11 nection with the estate of said decedent.

12 That all matters and statements in said eleventh and
13 final account, report and petition of Crocker-Citizens National
14 Bank, a national banking association, as trustee, are true and
15 correct, and correctly shows the balance of income and the amount
16 of corpus of said trust in the hands of said trustee for the
17 period covered by said account and report, namely, September 22,
18 1964 to and including March 11, 1965, and that each and all of
19 said disbursements made by said trustee from the income and from
20 the corpus of said estate were and are proper and lawful disburse-
21 ments.

22 That all acts and proceedings of said trustee in its
23 administration of said trust from September 22, 1964 to and in-
24 cluding March 11, 1965, as set forth in said account and report,
25 should be approved, ratified, allowed and confirmed.

26 That said trustee has received no compensation whatever,
27 and is entitled to such compensation, for its services in the ad-
28 ministration of said trust for the period covered by said eleventh
29 and final account and report, namely, September 22, 1964 to and
30 including March 11, 1965; that Hagar, Crosby & Rosson, the
31 attorneys for said trustee in this matter, have received no com-
32 pensation whatever for their services rendered as attorneys for

1 said trustee for the period September 22, 1964 to and including
2 March 11, 1965, and said attorneys are entitled to such compen-
3 sation; that the sum of \$ 7000⁰⁰ is a reasonable and
4 proper sum for said trustee to receive for its services rendered
5 as trustee during said period; that the sum of \$ 300⁰⁰
6 is a reasonable and proper sum for said Hagar, Crosby & Rosson
7 to receive for their services rendered as attorneys for said
8 trustee during said period; that it would be to the best inter-
9 ests of said trust estate and the persons interested therein
10 for said trustee's fees and attorneys' fees to be paid entirely
11 from the income of said trust estate.

12 Under the provisions of the trust created under the
13 last will and testament of Charles W. Gompertz, the above named
14 decedent, the trust ceased and terminated upon the date of
15 death of Anita T. Gompertz, the beneficiary under the trust,
16 i.e., March 11, 1965, and the property comprising the corpus of
17 the trust estate together with any undistributed income is to
18 vest in JOHN L. GOMPERTZ and RUTH GOMPERTZ WATSON, share and
19 share alike.

20 Said John L. Gompertz and Ruth Gompertz Watson
21 entered into an agreement and plan of distribution to provide
22 for distribution to them of specific assets of the trust as a
23 part of their respective shares thereof, and that distribution
24 of trust assets should be made in accordance with said agreement.

25 The sum of \$500.00 should be reserved from the assets
26 of the trust for estimated expenses of closing the trust, any
27 unexpended balance of such sum to be remitted to said John L.
28 Gompertz and Ruth Gompertz Watson, share and share alike.

29 NOW, THEREFORE, IT IS HEREBY ORDERED, ADJUDGED AND
30 DECREED:

31 1) That said eleventh and final account and report of
32 Crocker-Citizens National Bank, a national banking association,

1 as said trustee, as filed herein, be and the same are hereby
2 settled, allowed, approved and confirmed, and that all of the
3 acts and proceedings of said trustee in its administration of
4 said trust from September 22, 1964 to and including March 11,
5 1965, be and the same are hereby approved, allowed, ratified
6 and confirmed.

7 2) That said Crocker-Citizens National Bank, a
8 national banking association, as said trustee, shall pay to
9 itself, out of the income account of said trust, the sum of
10 \$ 7,000⁰⁰ for services rendered by it as trustee for
11 the period September 22, 1964 to and including March 11, 1965,
12 and for the additional services so to be rendered by said trustee
13 subsequent to March 11, 1965, to the date of final closing of
14 the trust in connection with distributing assets of the trust.

15 3) That out of the income account of said trust
16 said trustee shall pay to Hagar, Crosby & Rosson, attorneys for
17 said trustee in its administration of said trust, the sum of
18 \$ 300⁰⁰ for legal services rendered said trustee in
19 the administration of said trust from September 22, 1964 to and
20 including March 11, 1965, and for their services in preparation
21 of the eleventh and final report and petition of said trustee
22 and appearing in court at the hearing thereon.

23 4) That the sum of \$500.00 be reserved from the
24 assets of the trust for estimated expenses in closing the trust,
25 any unexpended balance of such sum to be remitted to JOHN L.
26 GOMPERTZ and RUTH GOMPERTZ WATSON, share and share alike.

27 5) That the assets of the trust now in the hands of
28 said trustee be and the same are hereby distributed as follows:
29 To JOHN L. GOMPERTZ, the following:

30 Note of John L. Gompertz and Margaret B. Gompertz,
31 bearing interest at 5% per annum, due March 16, 1971,
32 on which there is a principal balance outstanding
of \$35,983.58.

Cash in the sum of

\$ 6609.21

990 shares AMERICAN HOME PRODUCTS CORP.
540 shares CITIES SERVICE CO.
113 shares CONTINENTAL ASSURANCE CO.
697 shares CROCKER-CITIZENS NATIONAL BANK
50 shares DU PONT, E. I. de NEMOURS & CO.
279 shares FIRST NATIONAL CITY BANK OF NEW YORK
50 shares GENERAL ELECTRIC CO.
68 shares GENERAL MOTORS CORPORATION
2,040 shares GOODYEAR TIRE AND RUBBER COMPANY
100 shares INTERNATIONAL PIPE & CERAMICS 5% Cv. Pfd.
16 shares OAKLAND BANK OF COMMERCE
750 shares SCOTT PAPER COMPANY
1,408 shares STANDARD OIL COMPANY OF CALIFORNIA

\$5,000 f/v CALIFORNIA-TIA CARQUINEZ BRIDGE
Rev. Ref. 3.625% Bonds, due December 1, 1992
\$5,000 f/v CALIFORNIA-VETS 3% Bonds, due October 1, 1969
\$10,000 f/v LOS ANGELES COUNTY FLOOD CONTROL
DISTRICT 4% Bonds, due May 1, 1982
\$5,000 f/v LOS ANGELES JUNIOR COLLEGE DISTRICT
3.75% Bonds, due February 1, 1969
\$5,000 f/v MASSACHUSETTS HIGHWAY IMPROVEMENT bonds
2%, due November 1, 1973
\$5,000 f/v NEW YORK THRUWAY AUTH. GENERAL REVENUE
2.7% Bonds, due July 1, 1994
\$10,000 f/v OAKLAND UNIFIED SCHOOL DISTRICT
2.75% Bonds, due October 15, 1965
\$5,000 f/v POMONA UNIFIED SCHOOL DISTRICT
2.5% Bonds, due September 1, 1968
\$5,000 f/v REDWOOD CITY SCHOOL DISTRICT
2% Bonds, due January 1, 1967
\$5,000 f/v SAN MATEO UN. HIGH SCHOOL DISTRICT
2.75% Bonds, due June 1, 1968
\$10,000 f/v TRI DAM PROJECT 3.05% Bonds, due July 1, 2004
\$5,000 f/v VISALIA SCHOOL DISTRICT 2% Bonds, due
December 28, 1971

To RUTH GOMPERTZ WATSON, the following:

Cash in the sum of

\$ 14715.35

990 shares AMERICAN HOME PRODUCTS CORP.
541 shares CITIES SERVICE CO.
113 shares CONTINENTAL ASSURANCE CO.
698 shares CROCKER-CITIZENS NATIONAL BANK
50 shares DU PONT, E. I. de NEMOURS & CO.
279 shares FIRST NATIONAL CITY BANK OF NEW YORK
50 shares GENERAL ELECTRIC COMPANY
68 shares GENERAL MOTORS CORPORATION
2,040 shares GOODYEAR TIRE & RUBBER COMPANY
100 shares INTERNATIONAL PIPE & CERAMICS 5% Cv. Pfd.
16 shares OAKLAND BANK OF COMMERCE
750 shares SCOTT PAPER COMPANY
1,408 shares STANDARD OIL COMPANY OF CALIFORNIA

\$5,000 f/v ALHAMBRA HIGH SCHOOL DISTRICT, LOS
ANGELES COUNTY 2% Bonds, due October 1, 1973
\$5,000 f/v BOSTON METROPOLITAN DISTRICT
1.875% Bonds, due August 15, 1972

1 \$5,000 f/v CALIFORNIA-TBA CARQUINEZ BRIDGE
 Rev. Ref. 3.625% Bonds, due December 1, 1992
 2 \$5,000 f/v CALIFORNIA VETS 3% Bonds, due October 1, 1969
 3 \$5,000 f/v FRESNO HIGH SCHOOL DISTRICT 1.75% Bonds,
 due August 1, 1965
 4 \$5,000 f/v JEFFERSON SCHOOL DISTRICT SAN MATEO
 2.25% Bonds, due June 15, 1975
 5 \$5,000 f/v LOS ANGELES CITY HIGH SCHOOL DISTRICT
 3.5% Bonds, due July 1, 1969
 6 \$10,000 f/v LOS ANGELES COUNTY FLOOD CONTROL DISTRICT
 4% Bonds, due May 1, 1982
 7 \$5,000 f/v LOS ANGELES JUNIOR COLLEGE DISTRICT 3.75%
 Bonds, due February 1, 1969
 8 \$5,000 f/v MASSACHUSETTS HIGHWAY IMP. 2% Bonds,
 due November 1, 1971
 9 \$5,000 f/v METROPOLITAN WATER DISTRICT, SOUTHERN
 CALIFORNIA 3% Bonds, due April 1, 1975
 10 \$10,000 f/v OAKLAND UNIF. SCHOOL DISTRICT 2.75% Bonds,
 due October 15, 1955
 11 \$5,000 f/v OREGON VETS COMPENSATION 1.75% Bonds, due
 October 1, 1971
 12 \$10,000 f/v POMONA UNIFIED SCHOOL DISTRICT 2.5%
 Bonds, due September 1, 1968
 13 \$5,000 f/v SAN MATEO UN. HIGH SCHOOL DISTRICT 2.75%
 Bonds, due June 1, 1968
 14 \$10,000 f/v TRI DAM PROJECT 3.05% Bonds, due July 1, 2004
 15 \$5,000 f/v WATSONVILLE SCHOOL DISTRICT 2.25% Bonds,
 due January 1, 1973

16 6) That any and all moneys or other property received
 17 by the trustee on account of said trust from March 12, 1965, to
 18 date of final transfer of the trust assets, representing income
 19 or distributions from the respective securities hereinabove dis-
 20 tributed to JOHN L. GOMPERTZ and RUTH GOMPERTZ WATSON, shall be
 21 distributed to said JOHN L. GOMPERTZ and RUTH GOMPERTZ WATSON in
 22 accordance with their respective interests in said securities as
 23 hereinabove provided.

24 7) Upon distribution of the assets of the trust as
 25 hereinabove provided, CROCKER-CITIZENS NATIONAL BANK, a national
 26 banking association, trustee of the trust created under the last
 27 will and testament of CHARLES W. GOMPERTZ, deceased, is discharged
 28 as such trustee and is released from liability for acts to be
 29 thereafter incurred.

30 Dated: May 12, 1965.

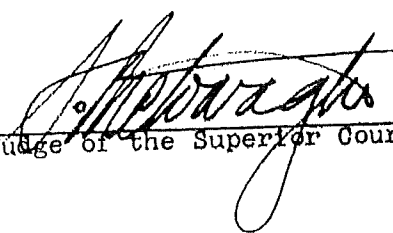
31 
 32 Judge of the Superior Court

EXHIBIT 13

Restatement

AMENDED TRUST AGREEMENT

This Amended Trust Agreement is entered into at Carmel, California, on March 12, 1979 by and between RUTH G. WATSON as Trustor and JANET W. ADAMS and FRANKLIN H. WATSON III as Trustees.

On September 15, 1965, RUTH G. WATSON, as Trustor and WELLS FARGO BANK, N.A., entered into an agreement which created certain trusts. The agreement provides that RUTH G. WATSON has the right to amend the agreement. The agreement was amended on June 1, 1973.

RUTH G. WATSON now wishes to amend the agreement of September 15, 1965, as so amended, by amending it in its entirety to now read as follows:

ARTICLE ONE

Provisions Applicable During the
Lifetime of RUTH G. WATSON, the Trustor

1.1 Payment of Income. The Trustee shall pay the entire net income of the trust to or for the benefit of RUTH G. WATSON so long as she shall live, at convenient intervals, but not less frequently than quarterly.

1.2 Use of Principal. In addition to the foregoing provisions with respect to income, the Trustee shall have the power in its discretion to use and apply such part of

the principal of the trust for the care, support, maintenance and welfare of RUTH G. WATSON as it shall deem necessary or expedient for such purposes. In exercising the power conferred upon the Trustee by this paragraph, the Trustee need not take into consideration any means of RUTH G. WATSON outside of the trust, and the power shall be liberally construed in favor of her.

1.3 Incompetency of RUTH G. WATSON - Use of Income and/or Principal for Issue. If RUTH G. WATSON has been declared by a court of competent jurisdiction as an incompetent, or if a conservator for her has been duly appointed, then so long as such incompetency shall continue, or so long as such conservatorship proceedings continue, the Trustee shall have the power in its absolute discretion to make gifts to or for the benefit of the issue and/or the spouses of the issue of RUTH G. WATSON. In exercising its discretion pursuant to the power given by this paragraph 1.3, the Trustee shall consider what it believes RUTH G. WATSON would have done for her issue and/or such spouses, had she been able to do so. The provisions of paragraphs 1.1 and 1.2 shall still be operative during the period of guardianship or conservatorship of RUTH G. WATSON, except that the Trustee may make payments of income and/or principal pursuant to this paragraph 1.3 if it determines there is ample income and/or principal available for the needs of RUTH G. WATSON.

ARTICLE TWO

Disposition of Trust Upon Death of
RUTH G. WATSON

Upon the death of RUTH G. WATSON, the Trustee shall deal with the trust estate as follows:

2.1 Provision for death taxes. The Trustee shall make provision for the payment of the death taxes, expenses of last illness and funeral and expenses of administration, all as set forth in Article Nine hereof.

2.2 Payments to Grandchildren. The Trustee shall pay Three Thousand Dollars (\$3,000) to each grandchild of RUTH G. WATSON who survives her. If any child of FRANKLIN H. WATSON III is under the age of eighteen (18) years at the time the amount is distributable to him or her, then it shall be distributed to FRANKLIN H. WATSON III, as custodian for such child under the Uniform Gift to Minors Act of California. MARILYN WATSON shall be first alternate custodian and JANET W. ADAMS second alternate custodian.

2.3 One-half for FRANKLIN H. WATSON III and Family. The Trustee shall continue to hold one-half of the balance of the assets of the trust estate for the benefit of FRANKLIN H. WATSON III, his issue and his wife, subject to the terms and provisions of Article Three hereof; and

2.4 One-half for JANET W. ADAMS and Family. The Trustee shall continue to hold one-half of the balance of the

assets of the trust estate for the benefit of JANET W. ADAMS, her issue and her husband, subject to the terms and provisions of Article Four hereof.

2.5 Income Pending Division. Pending division of the trust estate pursuant to paragraphs 2.3 and 2.4, the Trustee may pay, but need not pay, the income of the trust estate to the persons presumptively entitled thereto.

ARTICLE THREE

Separate Trust for FRANKLIN H. WATSON III And Family

The Trustee shall hold such one-half of the trust estate, all as directed in paragraph 2.3 to be held as a separate trust for the benefit of FRANKLIN H. WATSON III (hereafter in this Article "LINN"), his wife and/or the issue of LINN subject to the following terms and provisions:

3.1 Payment of Income to LINN. The Trustee shall pay the net income of the trust to or for the benefit of LINN, so long as he shall live.

3.2 Use of Principal. In addition to the foregoing provisions with respect to income, the Trustee, in its discretion, may use and apply such part of the principal of the trust for health, maintenance and support of LINN. In exercising its discretion in this regard, the Trustee shall take into

consideration any independent income or other resources of LINN known to the Trustee.

3.3 Death of LINN - Limited Power of Appointment - Provisions in Default. Upon the death of LINN, or upon the death of RUTH G. WATSON if LINN does not survive RUTH G. WATSON, the trust shall terminate. Upon termination, the trust estate shall go to and vest in such person or persons, or corporation or corporations, other than LINN, his estate or creditors of his estate, and on such terms and conditions, either outright or in trust, as LINN shall designate by express reference to this limited power of appointment in his will duly admitted to probate. If and to the extent LINN does not exercise such limited power of appointment, or if LINN does not survive RUTH G. WATSON (in which case he shall not be able to exercise such limited power of appointment) the Trustee shall pay the entire net income of the separate trust under this Article Three to LINN's wife, for as long as she shall live. In addition thereto, the Trustee, in its discretion, may use and apply such part of the principal of the trust for the welfare of LINN's wife in the event of her financial need, sickness or accident, and/or the welfare of LINN's issue living from time to time for their, or any of their, health and education. For all purposes under this paragraph 3.3, LINN's wife shall be considered a beneficiary only if she was living with him at the time of his death. Upon the death of the

survivor of RUTH G. WATSON, LINN, and LINN's wife, if she was living with LINN at the time of his death, or upon the death of the survivor of RUTH G. WATSON and LINN if his wife was not living with him at the time of his death, the trust under this Article Three shall terminate. Upon termination, the trust shall go by right of representation to the issue then living of LINN, subject however, as to the share of any of such issue under the age of twenty-one (21) years, to the terms and provisions of Article Five and the provisions for vesting and distribution thereof.

ARTICLE FOUR

Separate Trust for JANET W. ADAMS And Family

The Trustee shall hold such one-half of the trust estate, all as directed in paragraph 2.4 to be held as a separate trust for the benefit of JANET W. ADAMS (hereafter in this Article "JANET"), her husband and/or the issue of JANET subject to the following terms and provisions:

4.1 Payment of Income to JANET. The Trustee shall pay the net income of the trust to or for the benefit of JANET, so long as she shall live.

4.2 Use of Principal. In addition to the foregoing provisions with respect to income, the Trustee, in its discretion, may use and apply such part of the principal of the trust

for health, maintenance and support of JANET. In exercising its discretion in this regard, the Trustee shall take into consideration any independent income or other resources of JANET known to the Trustee.

4.3 Death of JANET - Limited Power of Appointment - Provisions in Default. Upon the death of JANET, or upon the death of RUTH G. WATSON if JANET does not survive RUTH G. WATSON, the trust shall terminate. Upon termination, the trust estate shall go to and vest in such person or persons, or corporation or corporations, other than JANET, her estate or creditors of her estate, and on such terms and conditions, either outright or in trust, as JANET shall designate by express reference to this limited power of appointment in her will duly admitted to probate. If and to the extent JANET does not exercise such limited power of appointment, or if JANET does not survive RUTH G. WATSON (in which case she shall not be able to exercise such limited power of appointment) the Trustee shall pay the entire net income of the separate trust under this Article Four to her husband, for as long as he shall live. In addition thereto, the Trustee, in its sole discretion, may use and apply such part of the principal of the trust for the welfare of JANET's husband in the event of his financial need, sickness or accident, and/or for the welfare of JANET's issue living from time to time for their, or any of their, health and education. For all purposes under this paragraph 4.3, JANET's

husband shall be considered a beneficiary only if he was living with her at the time of her death. Upon the death of the survivor of RUTH G. WATSON, JANET and JANET's husband, if he was living with JANET at the time of her death, or upon the death of the survivor of RUTH G. WATSON and JANET if JANET's husband was not living with her at the time of his death, the trust under this Article Four shall terminate. Upon termination, the trust shall go by right of representation to the issue then living of JANET, subject however, as to the share of any of such issue under the age of twenty-one (21) years, to the terms and provisions of Article Five and the provisions for vesting and distribution thereof.

ARTICLE FIVE

Trust For Descendants of RUTH G. WATSON Under 21

The provisions of paragraph 2.2 shall be paramount to the provisions of this article. The exercise of a limited power of appointment shall also be paramount to the provisions of this article. If, pursuant to the provisions of paragraphs 3.3 or 4.3, any assets, upon the termination of any trust, would go or be payable or distributable to a descendant of RUTH G. WATSON who shall be under the age of twenty-one (21) years at the time when the same shall be so payable or distributable, (hereinafter in this paragraph "the beneficiary") then in lieu

of being distributed to the beneficiary outright, and subject to paragraph 10.3, such assets shall be retained by the Trustee as a separate trust until the beneficiary attains the age of twenty-one (21) years or dies, whichever event shall first occur, whereupon the trust as to such assets shall terminate. Upon such termination, the Trustee shall deliver the assets then subject to such separate trust under this Article to the beneficiary, if then living, otherwise to the then living issue of the beneficiary, by right of representation. If there shall be no such living issue, then the separate trust shall go to the then living person or persons who would have been entitled under the foregoing provisions of this agreement to take the same if the beneficiary had not survived the termination of the trust which poured over to this trust. At any time or from time to time prior to the attainment by the beneficiary of the age of twenty-one (21) years, the Trustee, in its discretion, may pay to the beneficiary, or apply for his or her benefit, for the maintenance, support and education of such person as it may deem proper, all or part of the income or principal held pursuant to such separate trust. All income not so paid to or applied for the benefit of the beneficiary shall be accumulated and added to the principal of the separate trust held pursuant to this Article for his or her benefit.

ARTICLE SIX

Ultimate Gift Over

If any trust under this Agreement is undisposed of pursuant to the foregoing, then such undisposed of portion shall go to and vest in the heirs at law of RUTH G. WATSON, such heirs at law to be ascertained as if RUTH G. WATSON had died at the time of the termination of the trust which is undisposed of, and their identities and respective shares shall be determined in accordance with the laws of succession of the State of California in effect on the date of the execution of this Amended Trust Agreement relating to the succession of separate property not acquired from a predeceased spouse.

ARTICLE SEVEN

Trust Administrative Provisions

The provisions of this Article shall apply to each of the trusts held under this agreement, except as may be specifically provided to the contrary.

7.1. Powers of Trustee. The Trustee shall have full power and authority to (a) hold and retain, either in its own name or in the name of a nominee, without liability for such retention, any and all property coming into its possession hereunder; (b) vote, and give proxies to vote, any securities having voting rights; (c) exercise any right or option of subscription or otherwise which may at any time attach, belong,

or be given to the holders of any stocks, bonds, securities, or other instruments in the nature thereof forming part of the trust estate, and to join in any plan of lease, mortgage, consolidation, reorganization, or foreclosure of any corporation, trust, or organization, or the property or assets thereof, including the deposit of bonds, securities, and stock with any bondholders', stockholders', or protective committee in which the trust estate may hold stocks or bonds or other securities, and to take and hold any securities issued under such plan and to pay any assessments thereunder; (d) enforce any mortgage or deed of trust or pledge held hereunder and to purchase at any sale thereunder any property subject thereto; (e) sell at public or private sale (for cash or on terms), improve, lease (without restriction or limitation as to term), borrow money, mortgage, convey in trust, pledge, hypothecate, transfer, exchange, subdivide, partition, compromise, surrender, or otherwise deal with the whole or any part of the trust property upon such terms and conditions as the Trustee, in its discretion, may deem advisable; (f) borrow money, pledge trust assets as security therefor, for any purpose, including, without limiting the generality of the power to borrow, the power to use leverage either for the purpose of obtaining funds in order to diversify investments without resorting to the sale of securities or to make payments to a beneficiary; (g) construct, repair or remodel improvements on real property of the

trust estate, and to remove or otherwise dispose of improvements of real property, as the Trustee may determine; (h) loan or advance its own funds to the trust for any purpose thereof, at the then current rate of interest, and any such loan or advance, together with interest, shall be a first lien against the trust estate and shall be repaid therefrom; (i) provide itself with public liability insurance in customary forms as an expense of the trust; (j) invest and reinvest any of the trust property held hereunder in such amounts and in such property, real or personal, including residential and/or recreational real property, as the Trustee shall deem fit and proper, including, without limiting the generality of the foregoing, speculative investments, joint ventures, limited partnerships, purchase and retention of nonincome-producing assets, all without being restricted by any statutory limitation on investments by trustees, whether or not in effect at the date hereof, and without being restricted by any general rule of diversification; (k) sell securities short, make short sales, including the short sale of substantially identical securities, including the use of existing securities as collateral or margin therefor; (l) to open any type of account with brokerage firms, including cash, commodity, margin and/or short account; (m) purchase and/or maintain life insurance or annuities of any kind or amount on the life of any beneficiary hereof, and to charge the premiums therefor to income or principal, in the discretion of the

Trustee; (n) purchase and/or maintain hospital or medical insurance (including such variants as major medical) and disability income insurance on any beneficiary hereof or person in whom any beneficiary has an insurable interest; and (o) employ and remove any custodian, investment counsel, attorney, accountant, or any other agents to assist it in administering the trust, and to pay them or any of them reasonable compensation, charging such compensation to principal or income, as the Trustee in its discretion shall determine.

7.2 Undistributed Income. Any rule of law to the contrary notwithstanding, income of the trust estate, or any share thereof, actually accrued or collected but not distributed at the time of termination of any estate or interest therein, shall be payable or credited as income proportionately to the beneficiary or beneficiaries entitled to the next estate or interest therein in accordance with his or her respective interests in such next estate or interest.

7.3 Proceeds of Sale. Irrespective of any statute purporting to direct the allocation of principal and income of trusts, the entire proceeds of the sale or transfer (other than a leasing or letting) of any part of the trust property shall be for the account of principal and shall become part of the trust estate and be held as a part thereof.

7.4 Principal and Income. The Revised Uniform Principal and Income Act of the State of California, as such Act

may be amended from time to time, shall be applicable to this agreement, except as may be otherwise specifically set forth in this agreement.

7.5 Investment Counsel. Pursuant to paragraph 7.1(o) above, the Trustee is given the power to employ and remove investment counsel. RUTH G. WATSON recognizes that if there is a corporate co-Trustee or corporate sole Trustee acting hereunder as Trustee of any trust continuing after her death, such corporate Trustee is not likely to employ investment counsel, absent a specific direction thereto. Accordingly, after the death of RUTH G. WATSON, the individual co-Trustee, or if there is no individual Trustee, then the then living income beneficiary or beneficiaries (or their guardians or conservators, if any income beneficiary is under a disability) of each such trust shall have the right to require the Trustee to employ investment counsel, for the purpose of directing the investments of the trust for which the person so requiring it is the income beneficiary. The person or persons entitled to direct the Trustee to employ investment counsel shall also be the person who shall choose which investment counsel shall be employed, and such person shall have the power to direct the Trustee to remove and replace such investment counsel. If the employment of such investment counsel is required, the corporate Trustee is specifically directed to follow the instructions of investment counsel in the sale or exchange of

securities or the investment of funds belonging to such trust, whether or not the investments be deemed to be speculative or hazardous according to usual standards and whether or not the same be producing income or be wasting assets. If and so long as the employment of investment counsel is required pursuant to these terms, the corporate Trustee shall not be liable or accountable for any loss or damage caused to or suffered by the trust or any beneficiary thereof on account of any action taken pursuant to the instructions of such investment counsel, or on account of any loss suffered because such investment counsel shall fail to direct the corporate Trustee to take action. Investment counsel so appointed shall be liable to the Trustee, the trust, or the beneficiaries thereof only for gross negligence or bad faith in the performance of its duties. If investment counsel is so employed, the Trustee is specifically authorized to pay out of and from the principal or income, or partly from each, of the trust estate such reasonable fees to investment counsel for its services as shall be agreed upon between the person appointing such investment counsel and such counsel. Such compensation shall be independent of and in addition to the compensation to which the corporate Trustee is entitled.

ARTICLE EIGHT

Provisions Relating to the Appointment of Trustees

The provisions of this Article shall apply to each of the trusts held under this agreement, except as may be specifically provided to the contrary.

8.1 Reference to Trustee. The term "Trustee" and the reference to the Trustee as sometimes used throughout this instrument in the neuter singular shall be deemed to refer to the sole Trustee or co-Trustees acting hereunder from time to time, except as otherwise specifically set forth.

8.2 Trustees. The Trustees are JANET W. ADAMS ("JANET") and FRANKLIN H. WATSON, III ("LINN").

8.3 Resignation of Trustee. Any Trustee may resign at any time by giving written notice of such intention to resign to RUTH G. WATSON, if living and competent, otherwise to her duly appointed conservator or guardian, if any; otherwise to the then living adult income beneficiaries of each trust hereunder and the person with whom any minor income beneficiary resides.

8.4 Successor Trustee.

8.4.a During Lifetime of RUTH G. WATSON. So long as RUTH G. WATSON lives, she shall fill any vacancies in the office of Trustee. If RUTH G. WATSON is unable to fill a vacancy, for any reason, then the remaining Trustee shall act

as sole Trustee and shall have the power to appoint a Successor Trustee.

8.4.b After Death of RUTH G. WATSON. After the death of RUTH G. WATSON, JANET W. ADAMS ("JANET") and FRANKLIN H. WATSON, III ("LINN") shall continue as trustees of all trusts continuing hereunder for so long as it takes to determine all federal estate tax and California Inheritance Tax due by reason of the death of RUTH G. WATSON, or for two years, whichever first occurs. Thereafter, JANET shall be the Trustee of the trust held pursuant to Article Four and LINN shall be Trustee of the trust held pursuant to Article Three. Each of JANET and LINN shall have the power to appoint a Co-Trustee to serve with him or her and a Trustee to serve in lieu of him or her and a Trustee, or Co-Trustees, to succeed him or her. Such appointments may include the appointment of series of trustees to act successively. JANET and LINN shall also each have the power to appoint a Trustee or Co-Trustee to act as such for each trust to be held pursuant to Article Five for his or her descendants. JANET and LINN shall also each have the power to remove any Trustee or Co-Trustees appointed by him or her.

8.4.c No Trustee Acting. If no Trustee is acting pursuant to the foregoing provisions, then WELLS FARGO BANK, N.A., shall become Trustee.

8.5 No Court Proceeding Necessary. Any appointment of a successor Trustee shall be effective without any court

proceeding or decree. Any such successor shall indicate its acceptance by signing the original or a certified copy of this agreement.

8.6 Waiver of Bond. No bond shall be required of any Trustee named herein, or of any person appointed successor Trustee in the manner specified herein.

8.7 Compensation of Trustee. Neither JANET nor LINN shall be entitled to compensation. Any other Trustee shall be entitled to reasonable compensation for: (a) its ordinary services hereunder; (b) any extraordinary services performed by it; and (c) all services in connection with the termination or revocation of the trust in whole or in part. Any disbursements by any Trustee hereunder for compensation shall be payable, as the Trustee may deem proper, wholly from principal, or wholly from income, or partly from each.

8.8 Powers and Duties of Successor Trustee.

A successor Trustee shall have the same duties, powers and discretion conferred herein upon the original Trustees. A successor Trustee may accept the trust assets delivered to it by its predecessor Trustee as constituting the entire trust estate, and shall not be required to take any action to recover further assets or to investigate any acts done by any predecessor Trustee. No successor Trustee shall be required to bring any action to determine what constitutes the trust estate, or to obtain possession of any assets thereof.

8.9 Removal of Corporate Trustee. If a corporate Co-Trustee or sole Trustee is acting as such for any trust,

the adult income beneficiary of each trust hereunder may remove the corporate Trustee without stating any reason, at any time. If the income beneficiary is not an adult, or is under another disability, then the guardian of the estate or the conservator of the property of the income beneficiary may remove the corporate Trustee. The corporate Trustee of one of the trusts under this agreement may be removed without the corporate Trustee of the other trust(s) continuing hereunder being removed. If the corporate Trustee is removed, then the person removing the corporate Trustee may appoint a successor Trustee, either individual or corporate, if only one Trustee was acting and such person shall have a like power of removal of a successor Trustee and appointment of a further successor.

ARTICLE NINE

Provisions Relating to Revocation and Death Taxes

9.1 Powers of Revocation and Amendment. RUTH G. WATSON shall have the power at any time, by an instrument in writing delivered to the Trustee, to modify, alter, revoke or terminate this agreement in whole or in part, provided, however, that the duties, powers and liabilities of the Trustee hereunder shall not be substantially changed without the

written consent of the Trustee, except as to the revocation of this agreement.

9.2 Irrevocable Upon Death of RUTH G. WATSON. Upon the death of RUTH G. WATSON, all trusts continuing hereunder shall become irrevocable.

9.3 Death Taxes, Claims and Expenses. Upon the death of RUTH G. WATSON, the Trustee shall pay out of the trust estate disposed of by Article Two, prior to the division thereof into equal shares, as set forth in paragraphs 2.3 and 2.4 (a) all federal taxes due by reason of her death, with interest and penalties (if any) thereon, which are payable to the United States or to any state thereof or to the government of any other country or any province or any political subdivision of any other country, and which are attributable to assets forming part of this trust, the probate estate of RUTH G. WATSON, and other property treated as part of her taxable estate; (b) the expenses of last illness and funeral of RUTH G. WATSON; (c) any valid and enforceable debts of RUTH G. WATSON with respect to which timely creditors' claims have been or could be presented to the personal representative(s) of the estate of RUTH G. WATSON within four (4) months after the qualification of such personal representative(s), or which are a lien on assets of the trust; and (d) any and all of the expenses of administration of the estate of RUTH G. WATSON, including paying sufficient funds to the personal representative of the

probate estate of RUTH G. WATSON in order to fund its cash requirements, provided, however, that the Trustee shall not fund the probate estate of RUTH G. WATSON for bequests under the will of RUTH G. WATSON aggregating for all bequests in excess of Thirty Thousand Dollars (\$30,000). In paying the federal estate tax, the Trustee shall first use all United States bonds of the trust which are redeemable at par for the purposes of paying federal estate tax.

ARTICLE TEN

Miscellaneous Provisions

The provisions of this Article shall be applicable to each of the trusts held under this agreement, except as may be specifically provided to the contrary.

10.1 Applicable Law. All questions pertaining to the validity, interpretation and administration of this agreement shall be determined in accordance with the laws of the State of California.

10.2 Spendthrift Clause. Except as may be herein otherwise expressly provided, all income or principal to be paid to any of the beneficiaries herein named shall be paid by the Trustee direct and only to said beneficiaries or to the personal representative of any beneficiary. Except as may be herein otherwise expressly provided, the Trustee is not to recognize any transfer, mortgage, pledge, hypothecation, order

or assignment of any beneficiary (other than by RUTH G. WATSON during her lifetime) by way of anticipation of any part of the income or principal. The income and principal of the trust estate shall not be subject in any manner to transfer by operation of law unless otherwise herein provided, and shall be exempt from the claims of creditors or other claimants, and from orders, decrees, levies, attachments, garnishments and executions, and other legal or equitable process or proceedings to the fullest extent permissible by law. If any creditor or other claimant should attempt by any means to subject to the satisfaction of the claim of such creditor or claimant the interest of any beneficiary entitled by the provisions hereof to receive income and/or principal, then, notwithstanding any other provision hereof, such beneficiary shall be entitled to receive no further payments from the trust, provided, however, that the Trustee may pay to or for the benefit of such beneficiary as much of the net income, and principal if the Trustee shall deem income to be insufficient (not in excess of the amounts otherwise herein provided for the benefit of such beneficiary), as the Trustee, in the Trustee's discretion, may deem necessary for the health, maintenance, and support of such beneficiary in accordance with his or her accustomed standard of living; and any undistributed income shall be accumulated and added to the principal of the trust, or trust share, from which such income

is derived and thereafter shall be held as a part of the principal thereof.

10.3 Rule Against Perpetuities. No trust created under this Amended Trust Agreement shall continue for more than twenty-one (21) years after the death of the last survivor of the issue of RUTH G. WATSON living at the date of the death of RUTH G. WATSON. Upon the expiration of such period, all trusts shall terminate, and the remaining assets of each trust shall vest in, go and be distributed outright and free of trust, to those persons for whose benefit the same are then being or would then have been held.

10.4 Withholding Distribution or Division. Anything herein to the contrary notwithstanding, the Trustee shall not be required to make any immediate division or distribution of principal pursuant to the dispositive provisions of this agreement upon the death of RUTH G. WATSON. Rather, the Trustee, in its discretion, may withhold division or distribution for a period up to but not exceeding twelve (12) months after the death of RUTH G. WATSON. Nothing in this paragraph 10.4 shall be deemed to postpone or defer the vesting of any interest created by this agreement.

10.5 Payments to or for Persons Under Disability. The Trustee, in the Trustee's discretion, may make payments to a minor or other beneficiary under disability by making

payments to the guardian of such beneficiary's estate, to the conservator of such beneficiary's property, to any suitable person with whom such beneficiary resides, to any duly established custodian for any minor beneficiary under the Uniform Gifts to Minors Act of any state, or the Trustee may apply payments directly for the beneficiary's benefit. The Trustee, in the Trustee's discretion, may also make payments directly to a minor, if, in the Trustee's judgment, such minor is of sufficient age and maturity to spend the money properly.

10.6 Residence in Carmel. During the lifetime of RUTH G. WATSON, the Trustee shall not sell the trust's interest in the real property which is located in Carmel, California and which is the home in which RUTH G. WATSON now lives, without first obtaining her approval, if competent and available. If RUTH G. WATSON is not competent, then no such sale shall be made during her lifetime without the prior approval of FRANKLIN H. WATSON, III and JANET W. ADAMS or the one of them who is then living. From and after the death of RUTH G. WATSON, if the Trustee determines it is in the best interest of the beneficiaries of any trust continuing hereunder to sell the trust's interest in such residence, the Trustee shall first offer it to the beneficiaries of the trust or consider selling one trust's interest to another trust under this Agreement, it being the intention of RUTH G. WATSON that the Trustee retain the residence for the benefit of her family in one or more trusts continuing

under this instrument. Nevertheless, RUTH G. WATSON recognizes that circumstances existing from time to time may suggest that one or more trusts continuing under this Agreement after her death should not retain an ownership interest in such residence. Any such transaction between trusts under this instrument or between a trust under the Agreement and a beneficiary, in his or her individual capacity, shall not be void or voidable merely because of the fiduciary relationships involved, and some real or imaginary conflict of interest. RUTH G. WATSON obviously expects a Trustee to receive the fair market value for any interest in such residence which is sold.

10.7 Headings. The headings of articles and paragraphs appearing herein are for convenience of reference only and shall have no significance in the construction or interpretation of this agreement.

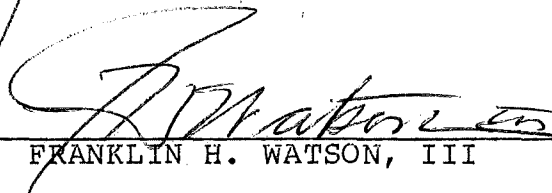


RUTH G. WATSON

TRUSTOR



JANET W. ADAMS



FRANKLIN H. WATSON, III

TRUSTEES

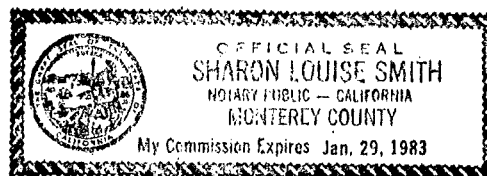
STATE OF CALIFORNIA
COUNTY OF Monterey

)
)
) SS.

On March 12, 1979, before me,
Sharon Louise Smith, a Notary Public in and
for the County of Monterey, State of California, duly
commissioned and sworn, personally appeared RUTH G. WATSON,
known to me to be the person whose name is subscribed to the
within instrument, and acknowledged to me that she executed the
same as Trustor.

IN WITNESS WHEREOF, I have hereunto set my hand and
affixed my official seal in the County of Monterey,
State of California, the day and year first above written.

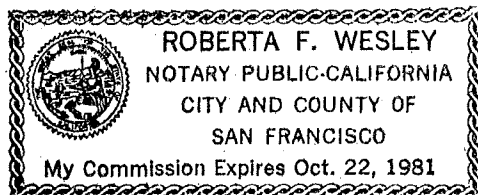
Sharon Louise Smith
Notary Public



STATE OF CALIFORNIA)
) ss
CITY AND COUNTY OF SAN FRANCISCO)

On March 22, 1979, before me, ROBERTA WESLEY,
a Notary Public in and for the County of San Francisco,
State of California, duly commissioned and sworn, personally
appeared FRANKLIN H. WATSON, III, known to me to be the
person whose name is subscribed to the within instrument,
and acknowledged to me that he executed the same as co-Trustee.

IN WITNESS WHEREOF, I have hereunto set my hand and
affixed my official seal in the County of San Francisco,
State of California, the day and year first above written.



Roberta F. Wesley

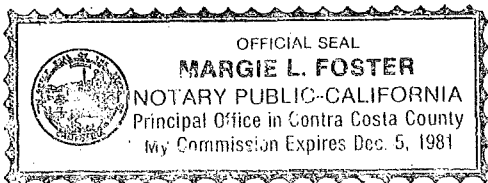
NOTARY PUBLIC

STATE OF CALIFORNIA
COUNTY OF CONTRA COSTA

)
) ss.
)

On MARCH 26,, 1979, before me,
MARGIE L. FOSTER, a Notary Public in and
for the County of CONTRA COSTA, State of
California, duly commissioned and sworn, personally appeared
JANET W. ADAMS, known to me to be the person whose name is
subscribed to the within instrument, and acknowledged to me
that she executed the same as co-Trustee.

IN WITNESS WHEREOF, I have hereunto set my hand
and affixed my official seal in the County of CONTRA
COSTA, State of California, the day and year first
above written.



Margie L. Foster
NOTARY PUBLIC

EXHIBIT 14

THE
JANET W. and RUSSELL B. ADAMS, JR.
LIVING TRUST AGREEMENT

This Living Trust Agreement is executed this 23rd day of April, 1991, by and between JANET W. ADAMS and RUSSELL B. ADAMS, JR., Settlor, and hereinafter referred to as "Trustors," and JANET W. ADAMS and RUSSELL B. ADAMS, JR., as Co-Trustees, sometimes hereinafter referred to collectively as "Trustee."

ARTICLE I. TRANSFER CREATING TRUST. The Trustors do hereby deliver and transfer to the Trustee all the property described in Exhibit "A", attached hereto and made a part hereof, which shall constitute and shall be referred to herein as the "trust estate", and shall be held, administered and distributed by the Trustee, as hereinafter set forth.

ARTICLE II. ACCEPTANCE OF TRUST BY TRUSTEE. The Trustee accepts such title to the trust estate as is conveyed or transferred to the Trustee hereunder, without liability or responsibility for the condition or validity of such title, with the understanding that the trust estate will be held for the uses and purposes and upon the trust herein provided.

ARTICLE III. CHARACTER OF THE TRUST ESTATE. It is the Trustors' intention that all community property trans-

ferred to the trust estate, together with the proceeds thereof, shall retain its character as community property during the joint lifetime of the Trustors, subject, however, to all the terms and conditions of this Agreement. Similarly, it is the Trustors' intention that all separate property of the Trustors, together with the proceeds thereof, shall also retain its character during the joint lifetime of the Trustors, subject also to all the terms and conditions of this Agreement.

ARTICLE IV. RIGHTS RESERVED BY THE TRUSTORS.

During the joint lifetime of the Trustors, they specifically reserve and the Trustee specifically grants to them the following rights and privileges:

A. DISTRIBUTION OF INCOME AND PRINCIPAL. The Trustee shall pay to or apply for the benefit of Trustors the net income of the community property transferred to the trust estate, quarter-annually or at more frequent intervals, together with such amounts of the principal of the community property held in the trust estate as Trustors may from time to time request. The Trustee shall pay to or apply for the benefit of the Trustor who transferred separate property to the trust estate, the net income of that property, quarter-annually or at more frequent intervals, together with such amounts of the principal of that property as that Trustor may from time to time request.

B. **POWER TO AMEND AND REVOKE.** This trust may be revoked as to all or any part of the community property held hereunder by an instrument in writing signed by both Trustors and delivered to the Trustee. This trust may be revoked as to any separate property held hereunder by an instrument in writing signed by the Trustor who transferred said property to the trust and delivered to the Trustee. In the event of such revocation, the community property held in the trust estate or the revoked portion thereof shall revert to the Trustors as their community property, and separate property held in the trust estate shall revert to the Trustor who transferred it to the trust as that Trustor's separate property as if this trust had not been created. This trust may not be amended during the lifetime of both Trustors without the written agreement of both of them. If both Trustors agree, they shall have the absolute power to alter or amend this instrument, in whole or in part, at any time, or from time to time, by an instrument in writing delivered to the Trustee; provided, however, that the duties, powers and responsibilities of the Trustee shall not be substantially altered or amended without the Trustee's written consent.

C. **POWERS TO DIRECT TRUSTEE.** As long as either Trustor is not under a disability that renders that Trustor unable to properly manage his or her own property, either Trustor may manage and control the community property in the trust as provided by California law existing from time

to time, and each Trustor shall retain full management and control of his or her separate property held hereunder, including in either case the right to possess any real property and tangible personal property constituting part of the trust estate. In addition, Trustors may use the trust property as collateral for any personal loan of the Trustors, and, in this connection, the Trustee shall execute, alone, or shall join with Trustors in the execution of any promissory notes, deeds of trust, mortgages, financing statements, escrow instructions, or other documents convenient or necessary in order to evidence the loan and the security for the loan, even though the lender shall deliver the loan proceeds directly to Trustors.

While this provision shall remain in effect, any provision of this instrument in conflict herewith shall yield to this provision and the duties of the Trustee shall be limited to the following: to hold title to real property and tangible personal property; to hold title, custody and possession of intangible personal property; to accept, receipt for and record payments of income and principal received by the Trustee and made in accordance with the terms of the investment on which paid; and to present for payment at maturity, or, when the Trustee has received actual notice of call before maturity, at the call date, coupons, bonds or other obligations; and to perform such other clerical services as may be necessary or convenient.

D. INCOMPETENCY OF A TRUSTOR. If either Trustor, in the absolute judgment of the Trustee, becomes mentally or physically incompetent (irrespective of whether legally so adjudicated), so that said Trustor would be unable to properly manage his or her own property, the Trustee shall assume full management of the trust estate, and the rights retained by that Trustor under Sections A through C of this Article shall cease to be effective during the period of such incompetency. If either Trustor becomes incompetent, the Trustee shall pay to or apply for the benefit of the Trustors, or either of them, as much of the net income and principal of the community property trust estate as the Trustee, in its discretion, deems necessary or advisable for the proper support, maintenance, and health of the Trustors. In addition, if a Trustor who transferred separate property to the trust estate becomes incompetent, the Trustee may pay to or apply for the benefit of either Trustor as much of the net income and principal of that Trustor's separate property included in the trust estate as the Trustee deems necessary to provide for the proper support, maintenance and health of the Trustors so long as Trustors are living together, and if Trustors are not living together, then such payments or applications of benefits shall be made to the Trustor who transferred the separate property to the trust estate. Any net income not distributed during a period of incompetency shall be accumulated and added to principal.

In determining whether or not either Trustor is incompetent, the Trustee may rely upon information believed by the Trustee to be correct. The Trustee shall be fully protected from acts done by the Trustee, or the Trustee's failure to take any action, in good faith reliance upon such information. Any person transacting business with the Trustee may conclusively rely upon the affidavit of the Trustee that the Trustee has authority to act under this provision.

ARTICLE V. DEATH OF A TRUSTOR. On and after the death of either Trustor leaving the other Trustor surviving him or her, Trustee shall divide the trust estate, including any addition made to the trust by reason of the death of the first Trustor to die, such as life insurance policies on the life of the first Trustor to die or assets added to the trust under any provision of the will of the first Trustor to die, into two separate trusts, designated the "Marital Deduction Trust" and the "Residuary Trust."

A. MARITAL DEDUCTION TRUST. The principal of the Marital Deduction Trust shall consist of the surviving spouse's interest in the community property included in the trust estate, the surviving spouse's separate property, if any, included in the trust estate, and the smallest fractional share of the rest of the trust estate necessary as a marital deduction to eliminate entirely (or to reduce to the maximum extent possible) any federal estate tax upon the

death of the deceased spouse, taking into account all deductions and credits available for estate tax purposes and the net value of all other property included in the deceased spouse's gross estate which passes or has passed, during his or her life or at death, under this Trust, his or her Will or otherwise, to or for the surviving spouse so as to qualify for the federal estate marital deduction.

For purposes of determining this fractional share, final federal estate tax values shall control, and account shall not be taken of any credit to the extent it would cause the marital deduction to be wholly or partially disallowed or of any item not deductible for estate tax purposes because claimed for income tax purposes. Assets may be allocated to this fractional share by either pro rata or non-pro rata division, in cash or in kind, including undivided interests, or in any combination of these ways. Only assets eligible for the federal estate tax marital deduction shall be used. Further, unless other property of the deceased spouse's estate is insufficient to fully fund the Marital Deduction Trust, no assets shall be allocated to the Marital Deduction Trust for which a foreign death tax credit is allowable.

B. RESIDUARY TRUST. The Residuary Trust shall consist of the remaining fractional share of the trust estate.

C. PAYMENT OF EXPENSES AND TAXES. On the death of the first of the Trustors to die, the Trustee, in the Trustee's sole discretion, shall pay either from the income or principal of the Residuary Trust, to the extent practicable, as the Trustee, in the Trustee's sole discretion, shall determine, the expenses of the deceased Trustor's last illness, funeral, burial and any inheritance, estate or death taxes that may be due by reason of the deceased Trustor's death unless the Trustee, in the Trustee's sole discretion, determines that other adequate provisions have been made for the payment of such expenses and/or taxes.

ARTICLE VI. ADMINISTRATION AND DISTRIBUTION OF TRUST AFTER DEATH OF FIRST TRUSTOR.

A. PAYMENT OF INCOME TO SURVIVING SPOUSE. Upon the death of the first Trustor to die, Trustee shall pay to or apply for the benefit of the surviving Trustor spouse the net income of the Marital Deduction Trust and the net income of the Residuary Trust in quarter-annually or at more frequent intervals. In the event Trustee shall deem such income insufficient, Trustee shall also pay to or apply for the benefit of the surviving Trustor such sums out of the principal of the trusts herein created as are necessary for the surviving Trustor spouse's reasonable health, education, support or maintenance, including but not by way of limitation, all medical, dental, hospital and nursing expenses.

Such payments shall be made first from the Marital Deduction Trust until it is exhausted. Thereafter, such payments shall be made from the Residuary Trust.

B. POWER OF APPOINTMENT. Upon the death of the surviving Trustor spouse, Trustee shall distribute the remaining balance of the Marital Deduction Trust, if any, including principal and accrued or undistributed income, to such persons and entities, including the surviving Trustor spouse's estate, and on such terms and conditions, either outright or in trust, and in such proportion, as the surviving Trustor shall appoint by a will or a codicil specifically referring to and exercising this power of appointment.

ARTICLE VII. ADMINISTRATION AND DISTRIBUTION OF TRUST AFTER DEATH OF SURVIVING SPOUSE.

A. PAYMENT OF EXPENSES. On the death of the surviving Trustor spouse and subject to any power of appointment exercised by the surviving Trustor spouse, the successor Trustee may, in the successor Trustee's sole discretion, pay out of the principal of the Marital Deduction Trust or, if it has been exhausted, out of the Residuary Trust, the surviving Trustor spouse's last illness and funeral expenses, attorney's fees, other costs incurred in administering the surviving Trustor spouse's probate estate, and estate and inheritance taxes, including interest and penalties arising on the death of the surviving Trustor spouse.

B. DISTRIBUTION UPON DEATH OF SURVIVING

SPOUSE. Upon the death of the surviving Trustor spouse, Trustee shall add to the Residuary Trust any portion of the Marital Deduction Trust, if any, not otherwise effectively disposed of as provided above, to follow the disposition of the trust estate in all respects as provided herein. After the payment of expenses, fees, costs, taxes and obligations, the trust shall be distributed in equal shares to Trustors' children, namely ELLEN LESLIE ADAMS and PAUL TAGGARD ADAMS, if then living. If ELLEN LESLIE ADAMS or PAUL TAGGARD ADAMS is then deceased, the share that would have gone to her or him had she or he so survived shall go to her or his respective issue then living, by right of representation; provided, however, if there are no such issue then to the other child of the Trustors, if then living, and if not, then to her or his issue then living, by right of representation.

C. AMENDMENT AND REVOCATION. Upon the death of the first Trustor to die, the surviving Trustor shall have the power to amend, revoke, or terminate the Marital Deduction Trust; However, the Residuary Trust may not be amended, revoked, or terminated. Upon revocation or termination of the Marital Deduction Trust, all of the assets of such trust shall be delivered to the surviving Trustor spouse. Upon the death of the surviving Trustor spouse, no trust created hereunder may be amended or revoked. Any such trust shall be terminated only as provided herein.

D. POWERS INCONSISTENT WITH MARITAL DEDUC-

TION. None of the powers or discretions granted in this agreement to Trustee shall be exercised in a manner inconsistent with the allowance of the federal estate tax marital deduction to which the estate of the first Trustor to die would otherwise be entitled.

ARTICLE VIII. PROVISIONS RELATING TO THE TRUSTEE.

The following provisions shall be applicable to the Trustee of each trust created herein.

A. EFFECT OF TRUSTEE'S ACTS. Any instrument executed by the Trustee shall be binding on all parties hereto and on all beneficiaries hereunder. No person paying money to the Trustee need see to the application of the money so paid.

B. COMPENSATION OF TRUSTEE. The Trustee shall be entitled to reasonable compensation for all services rendered by said Trustee and by counsel engaged by said Trustee, including services in connection with the termination or revocation, in whole or in part, of any trust hereunder.

C. WAIVER OF BOND. No bond shall be required of any Trustee named to act hereunder, whether acting jointly or individually in the performance of duties as a Trustee hereunder.

D. RELEASE OF FIDUCIARY POWERS. Any fiduciary power granted a Trustee herein may be released, in whole or in part, temporarily or permanently, by written

instrument delivered to each then living beneficiary of the trust.

E. SINGULAR NATURE OF AUTHORITY. During the joint lifetime of the Trustors and while both are acting as Co-Trustees, either one, alone, may sign and act for the trust, including specifically but not limited to, negotiating securities and making withdrawals from bank and savings accounts, and all third parties may rely upon such singular nature of that Co-Trustee's authority.

F. SUCCESSOR TRUSTEE. If either JANET W. ADAMS or RUSSELL B. ADAMS, JR. becomes unable or unwilling to continue to act as Trustee hereunder, then the other shall act as sole Trustee. If neither of them is able or willing to continue to act, then PAUL TAGGARD ADAMS shall act as successor Trustee, and if he is or becomes unable or unwilling to act, then ELLEN LESLIE ADAMS shall act as sole Trustee.

If the office of Trustee becomes vacant, and no successor Trustee is named herein, or the last successor Trustee so named is unwilling to act or to continue to act, the Trustors, or if only one of them is then living, then the surviving Trustor, shall appoint a successor Trustee. If neither of the Trustors is then living, a majority of the legally competent beneficiaries then entitled to receive income from the trust estate shall have the right to appoint a successor Trustee, which shall be a bank or trust company authorized to transact trust business under the laws of the

State of California. Any such appointment shall be made in writing and the predecessor Trustee shall be fully protected in delivering the trust estate to the successor Trustee designated in such writing. If there is no adult beneficiary in being entitled to receive income from the trust estate, then upon the petition of any interested party, a Superior Court of competent jurisdiction shall appoint as successor Trustee a bank or trust company as aforesaid.

A Trustee may at any time resign by depositing in the United States mail, postage prepaid, a notice of such resignation addressed to the person or persons then entitled to receive income payments hereunder at the addresses of such person or persons last known to the Trustee. If the last named successor Trustee resigns, such resignation shall not be effective until the person or persons having the right to designate a successor Trustee shall make such designation; provided, however, that if no such designation is made within thirty (30) days of the notice of resignation, the resigning Trustee may request the appointment of a successor Trustee by any court of competent jurisdiction.

No successor Trustee shall be liable or responsible in any way for any acts or defaults of a predecessor Trustee, or for any loss or expense from or occasioned by anything done or neglected to be done by a predecessor Trustee. A successor Trustee may accept the account rendered and the assets and properties delivered to it by a predeces-

sor Trustee as a full and complete discharge of the predecessor Trustee, and the successor Trustee shall incur no liability or responsibility to any beneficiary under this instrument by reason of so doing.

ARTICLE IX. TRUSTEE'S POWERS. The Trustee of each trust created herein shall have the following powers in addition to those granted by law from time to time.

A. MINORITY OR INCOMPETENCY. When any beneficiary entitled to receive payments is a minor, or, in the absolute judgment of the Trustee, is mentally or physically incompetent, the Trustee may, in the Trustee's discretion, expend or apply any such payments for the benefit of such beneficiary, or, in case of a minor beneficiary, to the person or persons with whom such beneficiary then resides, or to the minor beneficiary directly. Any assent, request or recommendation required by any beneficiary under the age of eighteen (18) may be given by a guardian, conservator, or like official. Furthermore, the Trustee is specifically authorized to withhold all or any part of otherwise mandatory income distributions from a beneficiary during any period of incompetency of that beneficiary.

B. RIGHT OF TRUSTEE TO SECURE RELEASES. The Trustee is hereby authorized to request from any beneficiary of the trust a full and complete release from any and all liabilities and all liabilities whatever attributable to any acts by the Trustee, or any decision by the Trustee to act or

to refrain from acting in any manner whatsoever, with respect to the investment of the assets of the trust estate, or the retention of any or all trust assets, and such release or approval shall be binding and conclusive upon said beneficiary and all of said beneficiary's descendants (including then unborn descendants) who may then have or thereafter acquire any interest in such trust.

C. **AUTHORITY TO MOVE TRUST ASSETS.** The Trustee may keep any or all of the trust property at any place or places in California or elsewhere in the United States or abroad, or with a depository or custodian at such place or places.

D. **NO PHYSICAL SEGREGATION.** The Trustee shall not be required to make a physical segregation or division of any trust or share hereunder except as may be required by termination of the trust.

E. **DIVISIONS AND DISTRIBUTIONS.** In any case in which the Trustee is required, pursuant to the provisions of this trust, to divide any trust property into parts or shares for the purpose of distribution, or otherwise, the Trustee is authorized, in the Trustee's absolute discretion, to make the division and distribution in kind, including undivided interests in any property, or partly in kind and partly in cash, and for this purpose to make such sales of the trust property as the Trustee may deem necessary and on such terms and conditions as the Trustee shall see fit. In

making distributions in kind or partly in kind, the Trustee may take into consideration the basis for income tax purposes of the property to be distributed to any beneficiary and the potential income tax burden to be borne by a beneficiary as a result of distribution in kind, but no beneficiary shall have the right to challenge the assets selected by the Trustee for distribution to any beneficiary. In addition, upon termination of any trust, distribution shall be made to the beneficiary or beneficiaries entitled thereto subject to the payment of all obligations of the trust and the Trustee, as such.

F. CONSOLIDATION OF SIMILAR TRUSTS. If the Trustee has been named or is acting as Trustee of any other trusts with terms and provisions substantially similar to this trust, under a Will or otherwise, the Trustee is empowered, in the Trustee's discretion, to consolidate the trusts herein created with any such other trusts, insofar as it is practicable, not in conflict with the terms of this trust or of such other trusts, and not in derogation of any marital deduction or other tax-saving provision of any applicable state or federal law. Variation in minor details as to the management and distribution of all trusts consolidated hereunder shall not be considered conflicting within the meaning of this Section F. The determination by the Trustee as to any consolidations hereunder shall be final and conclusive on all parties.

G. ADDITIONAL TRUSTEE'S POWERS. In addition to the powers granted to the Trustee by other provisions of this instrument, the Trustee hereunder shall have the following powers with respect to each trust established hereunder and the trust property, to be exercised from time to time in the Trustee's discretion without order of court:

1. To engage in business or businesses with the property of the trust as a sole proprietor, or as a general or limited partner, or as a minority or majority stockholder of a close corporation, with all the power customarily exercised by an individual so engaged in business, and may hold an undivided interest in any property as a tenant in common or a tenant in partnership and in connection therewith the Trustee shall have the power to enter into agreements with co-owners, partners, general partners, limited partners or co-stockholders, and into modifications of any such agreement or agreements.

2. To borrow money from any person, firm or corporation, including the Trustee hereunder, for any trust purposes, upon such terms and conditions as the Trustee may deem proper and to obligate the trust for repayment; to encumber or hypothecate any trust property by mortgage, deeds of trust, pledge or otherwise.

3. To invest and reinvest the trust estate in every kind of property, real, personal or mixed, and every kind of investment, specifically including, but not

by way of limitation, corporate obligations of every kind, stocks, preferred or common, shares of investment trusts, investment companies, and mutual funds, and mortgage participations, and limited partnership interests, all of which men of prudence, discretion and intelligence acquire for their own account, including any common trust fund administered by any Trustee acting hereunder; to purchase and sell such shares or investments (including short sales), or exercise, buy or sell stock options (including puts and calls), subscriptions or conversion rights; to buy and sell commodity futures; and with respect to all said securities and investments held in this trust, vote, give proxies, participate in voting trusts, pooling agreements, foreclosures, reorganizations, consolidations, mergers, acquisitions, liquidations or other like occurrences; to hold securities in a margin account with a brokerage firm and to borrow against the value of such securities to the extent permitted by law; to purchase bonds and to pay such premiums in connection with the purchase as the Trustee, in the Trustee's discretion, deems advisable.

4. To manage, control, sell, convey, exchange, lease and to make contracts concerning real or personal property, which leases and contracts may extend beyond the term of the trust, any of which may be done for cash or on deferred payments; to partition, divide, subdivide and improve trust property; to grant options therefor; to

execute deeds, transfers, leases and other instruments of any kind; to enter into agreements or leases of any kind for exploration for and removal of gas, oil and other minerals, and to enter into community oil leases, and pooling and unitization agreements.

5. To carry, at the expense of the trust, insurance of such kinds and in such amounts as the Trustee shall deem advisable to protect the trust estate and the Trustee against any hazard.

6. To commence or defend such litigation with respect to the trust or any property of the trust estate as the Trustee may deem advisable, at the expense of the trust.

7. To compromise or otherwise adjust any claims or litigation against or in favor of the trust.

8. To retain or include in the trust estate assets not producing income whenever the Trustee believes that such action will result in reduction in losses on disposition of such assets, or will result in increases in gains on such disposition, or believes that such assets can more advantageously be used for production of income at a later date, including within the meaning of the word "assets" as used in this subsection, cash, as well as other personal property and real property of all kinds.

9. To hold securities or other property, including any cash account, in the name of the trust, or in

the name of a nominee of the Trustee, with or without indication of fiduciary capacity.

10. To give general or special proxies or powers of attorney for voting or acting with respect to securities, which may be discretionary and with power of substitution; to deposit securities with, or transfer them to, protective committees or similar bodies; to join in any reorganization and to pay assessments or subscriptions called for in connection with securities held by the Trustee.

11. To employ investment counsel, custodians of trust property, brokers, accountants, attorneys and other agents in those instances where the Trustee in the exercise of discretion deems it necessary, and to pay reasonable fees in connection therewith.

H. TRUSTEE'S DISCRETION. All discretions granted to or vested in the Trustee by any provision of this instrument are to be exercised in the sole and absolute discretion of the Trustee.

ARTICLE X. GENERAL PROVISIONS. The following general provisions shall be applicable to each trust created herein.

A. ADDITIONAL PROPERTY. Additional property acceptable to the Trustee may be added to the trust from any source by inter vivos or testamentary transfer.

B. ACCRUED AND UNDISBURSED INCOME. In any situation hereunder where the Trustee is not required to dis-

tribute all of the trust income annually, the undistributed income at the end of each fiscal year of the trust shall be accumulated and added to principal. Any rule of law to the contrary notwithstanding, income of the trust estate, or any share thereof, accumulated or collected but not disbursed at the time of termination of any estate or interest herein shall be payable, or credited, as income, proportionately, to the beneficiary or the beneficiaries entitled to the next estate or interest in accordance with his, her, or their respective interest in such next estate or interest.

C. DETERMINATION OF WHAT IS PRINCIPAL AND WHAT IS INCOME. The determination of what is principal and what is income of the trust shall be made in accordance with the Revised Uniform Principal and Income Act of the State of California. As to any matter not specifically covered by said Act, the determination shall be made in accordance with generally accepted accounting principles.

D. DISCLAIMERS AND RENUNCIATIONS. Disclaimers of all or any interest in the trust may be made in accordance with the California Probate Code and shall be given effect as provided therein. Any person beneficially interested in this trust may at any time renounce the whole, or from time to time, any part of an interest in the trust, either as to income or principal, or both, by an instrument in writing delivered to the Trustee, and thereafter the trust or the part of the trust which shall have been renounced shall be

administered and distributed as if said person had died on the date of delivery of said written instrument, and as if said person had not exercised any testamentary power of appointment granted to said person.

E. PROHIBITION AGAINST TRANSFER. No interest in the principal or income of any trust created under this instrument shall be anticipated, assigned, encumbered, or subjected to creditor's claim or legal process before actual receipt by the beneficiary.

F. SEVERABILITY CLAUSE. If any provision of this trust instrument is unenforceable, the remaining provisions shall nevertheless be carried into effect.

G. CHOICE OF LAW. The validity, construction, interpretation, and administration of this trust shall be governed by the laws of the State of California in force at the date of the creation of this trust.

H. NO-CONTEST CLAUSE. In the event any beneficiary under this trust shall, singly or in conjunction with any other person or persons, contest in any court the validity of this trust or of a deceased Trustor's Will or shall seek to obtain an adjudication in any proceeding in any court that this trust or any of its provisions or that such Will or any of its provisions is void, or seek otherwise to void, nullify, or set aside this trust or any of its provisions, then the right of that person to take any interest given to him by this trust shall be determined as it would have been

determined had the person predeceased the execution of this trust agreement without surviving issue. The Trustee is hereby authorized to defend, at the expense of the trust estate, any contest or other attack of any nature on this trust or any of its provisions.

I. PERPETUITIES SAVING CLAUSE. Unless sooner terminated in accordance with other provisions of this instrument, all trusts created under this instrument shall terminate twenty-one (21) years after the death of the last survivor of the Trustors or of the Trustors' living issue living at the date of death of the first Trustor. The principal and undistributed income of a terminated trust shall be distributed to the then living income beneficiaries of that trust in the same proportions that the beneficiaries are entitled to receive income when the trust terminates. If at the time of such termination the rights to income are not fixed by the terms of the trust, distribution under this clause shall be made, by right of representation, to the persons who are entitled or authorized, in the Trustee's discretion, to receive trust payments.

ARTICLE XI. NUMBER AND GENDER; DEFINITIONS; HEADINGS. The singular and plural number, and the masculine, feminine and neuter gender, shall each include the others where the context permits. The term "issue" shall refer to lineal descendants of all degrees and shall include adopted persons. Whenever property passes under any trust created in

DECLARATION OF TRUSTORS

We hereby certify that we have read the foregoing Living Trust Agreement and that it correctly states the terms and conditions under which the Trust Estate is to be held, managed and disposed of by the Trustees. We approve the Living Trust Agreement in all particulars, and the Trustees have executed and accepted this trust at our request.

Executed at Rio Vista, California, this 23rd day of April, 1991.

Janet W. Adams
JANET W. ADAMS

Russell B. Adams, Jr.
RUSSELL B. ADAMS, JR.

GENERAL ACKNOWLEDGMENT

NO. 201

State of CALIFORNIA
County of SOLANO } SS.

On this the 23rd day of April, 1991, before me,

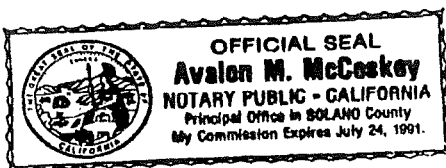
AVALON M. McCOSKEY

the undersigned Notary Public, personally appeared

RUSSELL B. ADAMS, JR. and JANET W. ADAMS

☒ personally known to me

☐ proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) are subscribed to the within Instrument, and acknowledged that they executed it. WITNESS my hand and official seal.



Avalon M. McCoskey
Notary's Signature

this document by right of representation, the descendants of the deceased person shall take the same share or right that such deceased person would have taken if living. The word "incompetent" as used herein shall be deemed to include not only persons who have been so declared by a court of competent jurisdiction, but also persons for whom a guardian or conservator or other fiduciary of the person or estate or both shall have been appointed by a court of competent jurisdiction. Headings for various Articles have been included solely for convenience of reference and those headings shall not be construed to affect the meaning or construction of the textual material following the heading.

Executed at Rio Vista, California, this 23rd day of April, 1991.

Janet W. Adams
JANET W. ADAMS

Russell B. Adams, Jr.
RUSSELL B. ADAMS, JR.

GENERAL ACKNOWLEDGMENT

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State of CALIFORNIA
County of SOLANO } SS.

On this the 23rd day of April, 1991, before me,

AVALON M. McCOSKEY

the undersigned Notary Public, personally appeared

RUSSELL B. ADAMS, JR. and JANET W. ADAMS

☒ personally known to me

☐ proved to me on the basis of satisfactory evidence

to be the person(s) whose name(s) are subscribed to the within instrument, and acknowledged that they executed it.

WITNESS my hand and official seal.

Avalon M. McCoskey

Notary's Signature

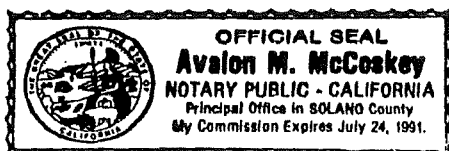


EXHIBIT "A"

Real property located at 3067 Bowling Green Drive,
Walnut Creek, Contra Costa County, California.

AMENDMENT NUMBER TWO TO THE
JANET W. AND RUSSELL B. ADAMS, JR.
LIVING TRUST AGREEMENT
DATED APRIL 23, 1991

Pursuant to ARTICLE IV., Section B, JANET W. ADAMS and RUSSELL B. ADAMS, JR., Trustors of the JANET W. and RUSSELL B. ADAMS, JR., LIVING TRUST AGREEMENT DATED APRIL 23, 1991 hereby amend said trust as follows:

1. ARTICLE V. is amended to read as follows:

ARTICLE V. DEATH OF A TRUSTOR. On the death of the first Trustor to die (hereinafter called the "predeceased spouse"), the Trustee may, in the Trustee's discretion, pay out of the trust estate the predeceased spouse's last illness and funeral expenses, attorneys' fees and other costs incurred in administering the predeceased spouse's probate estate, if any, any debts of the predeceased spouse, including obligations incurred for the predeceased spouse's support, and any estate or inheritance taxes, together with any interest and penalties thereon, arising by reason of the predeceased spouse's death. However, the Trustee is expressly directed to pay out of the trust estate that portion of any such inheritance taxes, if any, directly chargeable to assets which constitute part of the trust estate on the predeceased spouse's death. Without limiting the authority of the Trustee, the Trustee shall not be required to pay any such expenses or debts unless a written claim in a form satisfactory to the Trustee is filed with the Trustee. In no event, however, shall the Trustee pay any such debts, taxes, administration costs, fees or expenses from funds or property received by the Trustee from an employee's trust

forming part of a pension, stock bonus, or profit sharing plan, if such funds would otherwise be exempt from the federal estate tax.

2. ARTICLE VI. is amended to read as follows:

ARTICLE VI. ADMINISTRATION AND DISTRIBUTION OF TRUST AFTER DEATH OF PREDECEASED SPOUSE. After the death of the predeceased spouse, the trust shall be held, administered and distributed in accordance with this Article.

A. DISTRIBUTIONS OF INCOME AND PRINCIPAL TO SURVIVING TRUSTOR. The Trustee shall pay to or apply for the benefit of the surviving Trustor (hereinafter referred to as "the surviving Trustor spouse") the net income of the trust, quarter-annually or at more frequent intervals. In the event the Trustee, in the Trustee's absolute discretion, shall deem such income insufficient, the Trustee shall also pay to or apply for the benefit of the surviving Trustor spouse such sums out of the principal of the Trust as are necessary for the surviving Trustor spouse's reasonable health, education, support or maintenance including but not by way of limitation, all medical, dental, hospital and nursing expenses.

B. AMENDMENT AND REVOCATION. The surviving Trustor spouse shall have the power to amend, revoke or terminate the Trust. Upon revocation or termination of the Trust, all of the assets of the Trust shall be delivered to the surviving Trustor spouse. Upon the death of the surviving Trustor spouse, the Trust may not be amended or revoked and it shall only be terminated as provided herein.

C. PAYMENT OF EXPENSES, FEES, COSTS, TAXES AND OBLIGATIONS. Upon the death of the surviving Trustor spouse, the Trustee may, in the Trustee's discretion, pay out of the principal of the trust the surviving Trustor spouse's last illness

and funeral expenses, attorneys' fees and other costs incurred in administering the surviving Trustor spouse's probate estate, if any, any debts of the surviving Trustor spouse, including obligations incurred for the surviving Trustor spouse's support, and any estate or inheritance taxes, together with any interest and penalties thereon, arising by reason of the death of the surviving Trustor spouse. In no event, however, shall the Trustee pay any such debts, taxes, administration costs, or other expenses from funds or property received by the Trustee from an employee's trust forming part of a pension, stock bonus, or profit sharing plan, if such funds would otherwise be exempt from federal estate tax.

3. ARTICLE VII. is hereby amended to read as follows:

ARTICLE VII. ADMINISTRATION AND DISTRIBUTION OF TRUST AFTER DEATH OF SURVIVING SPOUSE. After the death of the surviving Trustor spouse and the payment of expenses, fees, costs, taxes and obligations, the remaining balance of the trust shall be divided into two (2) equal shares, and each share shall be distributed as follows:

1. One share to Trustors' daughter, LESLIE ADAMS, if living at the time of the death of the surviving Trustor spouse, and if not, then to her issue then living, by right of representation; provided, however, if there are no such issue, then to Trustors' son, PAUL ADAMS, if then living, and if not, then to his issue then living, by right of representation.
2. One share to Trustors' son, PAUL ADAMS, if living at the time of the death of the surviving Trustor spouse, and if not, then to his issue then living, by right of representation.

I. EXCEPT where inconsistent with this Amendment Number Two, in which case this amendment shall control, all of the terms and conditions contained in JANET W. AND RUSSELL B. ADAMS LIVING TRUST AGREEMENT DATED APRIL 23, 1991, as amended by Amendment No. 1 on May 21, 1992, shall remain in full force and effect.

Dated: December 17, 2013

Janet W. Adams
JANET W. ADAMS
TRUSTOR

Russell B. Adams Jr.
RUSSELL B. ADAMS, JR.
TRUSTOR

**CERTIFICATE OF ACKNOWLEDGMENT
OF NOTARY PUBLIC**

STATE OF CALIFORNIA

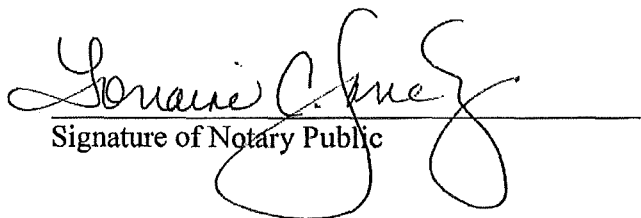
COUNTY OF SAN JOAQUIN

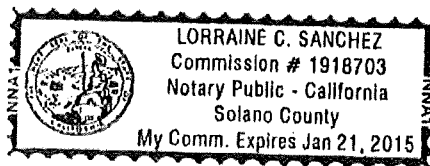
On December 17, 2013, before me, Loraine C. Sanchez, Notary Public, personally appeared JANET W. ADAMS and RUSSELL B. ADAMS, JR., who proved to me on the basis of satisfactory evidence to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacity, and that by their signatures on the instrument the persons, or the entity upon behalf of which the persons acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct

WITNESS my hand and official seal.

NOTARY SEAL


Signature of Notary Public



CONSENT OF TRUSTEE

We, JANET W. ADAMS and RUSSELL B. ADAMS, JR., Trustees of the JANET W. AND RUSSELL B. ADAMS LIVING TRUST AGREEMENT DATED APRIL 23, 1991, hereby certify that we have read the foregoing Amendment Number TWO to the JANET W. AND RUSSELL B. ADAMS LIVING TRUST AGREEMENT DATED APRIL 23, 1991 and hereby consent to the same.

Dated: December 17, 2013

Janet W. Adams
JANET W. ADAMS
TRUSTEE

Russell B. Adams Jr.
RUSSELL B. ADAMS, JR.
TRUSTEE

**CERTIFICATE OF ACKNOWLEDGMENT
OF NOTARY PUBLIC**

STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

On December 17, 2013, before me, Loraine C. Sanchez, Notary Public, personally appeared JANET W. ADAMS and RUSSELL B. ADAMS, JR., who proved to me on the basis of satisfactory evidence to be the persons whose names are subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacity, and that by their signatures on the instrument the persons, or the entity upon behalf of which the persons acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct

WITNESS my hand and official seal.

NOTARY SEAL

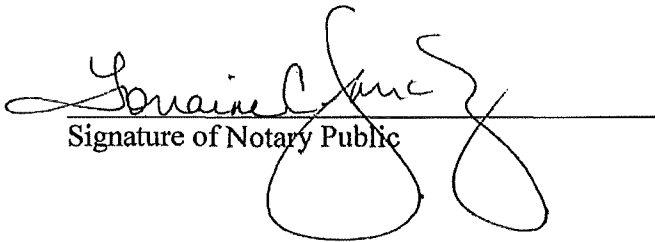

Signature of Notary Public

EXHIBIT 15

FRANKLIN AND MARILYN WATSON TRUSTArticle One

FRANKLIN H. WATSON and MARILYN C. WATSON, as Settlers and sometimes referred to as husband and wife, have transferred and delivered to the trustees, hereinafter named, without consideration, the property described in Schedule A attached to this instrument and incorporated by reference. Settlor, FRANKLIN H. WATSON, is sometimes known as FRANKLIN HASKELL WATSON, III, FRANKLIN H. WATSON, III, and as LINN WATSON. Settlor, MARILYN C. WATSON, is sometimes known as MARILYN CRAWFORD WATSON.

Article Two

All property subject to this instrument from time to time, including the property described in Schedule A, is referred to as the "trust estate", which shall be held, administered and distributed according to this instrument.

Settlers declare that all property described in Schedule A is either their community property or their respective separate property, and any community property or separate property transferred to the trust shall retain its character as such, notwithstanding the transfer to the trust. Any power reserved to Settlers to alter, amend, modify, or revoke this trust, in whole or in part, is held by the Settlers during their joint lifetimes in their capacity as managers of the community property, or managers of their respective separate property, subject to all restrictions imposed by law on their management of the community or separate property. In no event shall the powers granted to the trustees under this instrument during the joint lifetimes of Settlers be more extensive than those powers possessed by husband or wife under the provisions of California Civil Code sections 5125 and 5127. If the trust is revoked, the

community property shall be returned to Settlers as their community property and separate property shall be returned to the Settlor to whom it originally belonged.

Article Three

During the Settlers' joint lifetimes, the trustees shall pay to husband and wife for the account of the community, or shall apply for the Settlers' benefit the net income of the trust estate in quarter annual or in more frequent installments. Further, they shall accumulate and add to principal any undistributed net income.

If the trustees consider the net income insufficient, the trustees shall pay to husband and wife, or shall apply for their benefit as much of the principal of the trust estate as may be necessary in the trustees discretion for the Settlers' proper health, education, support, maintenance, comfort, and welfare, in accordance with their accustomed manner of living at the date of this instrument, without taking into consideration funds and assets available to them held free of this trust.

The spouse receiving payments shall have the same duty to use community income and principal received under this instrument for the Settlers' benefit as he or she has for any other community property. Any income or principal paid to or for the Settlers' benefit or withdrawn by them shall continue to retain its character as community property, or as either spouse's separate property, as the case may be.

Article Four

If at any time, as certified in writing by two licensed physicians not related by blood or marriage to either Settlor or any beneficiary of this trust, either spouse has become physically or mentally incapacitated, whether or not a court of competent jurisdiction has declared him or her incompetent or mentally ill or has appointed a conservator, the trustees shall pay to the other spouse,

or apply for the benefit of either Settlor, the amounts of net income and principal necessary in the trustees' discretion for the proper health, support, maintenance, comfort, and welfare of both Settlers in accordance with their accustomed manner of living at the date of this instrument, until the incapacitated Settlor, either in the trustees' discretion or as certified by two licensed physicians not related by blood or marriage to either Settlor or to any beneficiary of this trust, is again able to manage his or her own affairs, or until the earlier death of either Settlor.

Article Five

The Settlers may at any time direct the trustees in writing to pay single sums or periodic payments out of the trust estate to any other person or organization.

The Settlers power to so direct the trustees shall be personal to the Settlers', except that this power may be exercised by any conservator of either or both Settlers to the extent that payments to one or more persons of the conservatee's issue qualify for the annual federal gift tax exclusion.

Article Six

A. The first Settlor to die shall be called the deceased spouse, and the living spouse shall be called the surviving spouse. On the deceased spouse's death, the trustees shall divide the trust estate, including any additions made to the trust by reason of the deceased spouse's death, such as from the decedent's Will or life insurance policies on the decedent's life, into three separate trusts, designated the survivor's trust, the marital trust, and the exemption trust.

B. Whenever the trustees are directed to make a distribution of trust assets or a division of trust assets into separate trusts or shares on a Settlor's death, the trustees may, in the trustees' discretion, defer that distribution or division until six months after the Settlor's death.

When the trustees defer distribution or division of the trust assets, the deferred division or distribution shall be made as if it had taken place at the time prescribed in this instrument in the absence of this paragraph, and all rights given to the beneficiaries of those trust assets under other provisions of this instrument shall be considered to have accrued and vested as of that prescribed time.

C. The survivor's trust shall consist of the surviving spouse's separate property, if any, that is a part of the trust estate and the surviving spouse's interest in the Settlor's community estate included in or added to the trust estate in any manner, including any undistributed or accrued income on it.

D. The marital trust shall consist of the minimum pecuniary amount necessary to entirely eliminate (or to reduce to the maximum extent possible) any federal estate tax at the deceased spouse's death, taking into account:

(1) All deductions taken in determining the estate tax payable by reason of the deceased spouse's death;

(2) The net value of all other property, whether or not it is given under this instrument and whether it passes at the time of the deceased spouse's death to or in trust for the surviving spouse, so that it is included in the deceased spouse's gross estate and qualifies for the federal estate tax marital deduction; and

(3) All credits allowed for federal estate tax purposes, other than any credit allowable under Internal Revenue Code section 2011, to the extent the credit exceeds any state death taxes payable without regard to the availability of such credits, provided no credit shall be taken into account in determining the size of the survivor's trust if such credit shall result in the disallowance of the marital deduction.

E. The exemption trust shall consist of the balance of the trust estate. The trustees shall satisfy the amount so determined in cash or in kind, or partly in each, and shall allocate to the ~~survivor's~~ ^{marital} trust only assets of the deceased spouse contributed or added to the trust that are eligible for the federal estate tax marital deduction. Assets allocated in kind shall be deemed to satisfy this amount on the basis of their net fair market values as finally determined for federal estate tax purposes.

Assets qualifying for the federal estate tax marital deduction shall be transferred to the marital trust only to the extent that the transfer reduces the federal estate tax otherwise payable by reason of the deceased spouse's death. No assets for which a credit for foreign death taxes is allowed under the federal estate tax law applicable to the deceased spouse's estate shall be allocated to the survivor's trust, unless that estate contains insufficient other property to fully fund the survivor's trust. The trustees shall select property to satisfy the pecuniary amount constituting the marital trust so that any appreciation or depreciation that has occurred in the value of this property between the applicable valuation date and the date of allocation shall be fairly apportioned between the marital trust and the exemption trust.

F. It is the Settlers' intention that the trustees make maximum use of the marital deduction as set forth in the Internal Revenue Code and all the sections and regulations pertaining thereto so long as the marital deduction furthers the provisions of the trusts created herein. The trustees should take no action to impair the marital deduction and all provisions of the applicable trusts shall be interpreted to conform to this objective. Settlers direct the trustees and/or the executor, if applicable, to make a Q-tip election, if such election seems favorable to the trust estate in light of all the circumstances then in existence. Settlers also direct that such fiduciary not make such election if, in their discretion, such election would be deemed inappropriate to the trust estate in light of the circumstances then in existence.

Article Seven

A. On the deceased spouse's death, the trustees, in the trustees discretion, shall pay out of the trust estate the deceased spouse's debts outstanding at the time of his or her death and not barred by the statute of limitations, Statute of Frauds, or any

other provision of law, the federal or state estate and inheritance taxes, including interest and penalties attributable to the trust estate arising because of the deceased spouse's death; the last illness and funeral expenses of the deceased spouse; attorneys fees; and other costs incurred in administering the deceased spouse's probate estate. Any payments for estate or inheritance taxes shall be charged to the exemption trust without apportionment or charge against any beneficiary of the trust estate or any transferee of property passing outside of the trust estate. Payments for last illness, funeral, and other administration costs shall be charged to the exemption trust, and if the exemption trust is insufficient, to the marital trust, provided, however, administration costs allocable to the surviving spouse's share of the community property administered in the deceased spouse's estate shall be charged to the survivor's trust.

Payment of any of deceased spouse's debts shall be made proportionately from the property of the trust estate as such property shall be liable for the debts.

B. From the time of the deceased spouse's death, the trustees shall pay to or apply for the benefit of the surviving spouse the net income of the survivor's trust in quarter annual or more frequent installments.

If the trustees consider such income insufficient, the trustees shall also pay to or apply for the benefit of the surviving spouse any sums from the principal of the survivor's trust that the trustees, in the trustees' discretion, consider necessary for the surviving spouse's proper health, support, education and maintenance. In addition, the trustees shall pay the surviving spouse as much of the principal of the survivor's trust as he or she shall request in writing.

C. The surviving spouse shall have the power to compel the

trustees to dispose of any assets in the marital trust that fail to provide a reasonable income to the surviving spouse as the income beneficiary.

D. On the deceased spouse's death, the trustees shall pay to or apply for the benefit of the surviving spouse all of the net income of the marital trust and the exemption trust. Settlers direct that the trustees shall pay to or apply for the benefit of the surviving spouse so much of the principal of the marital trust and the exemption trust as the trustees, in their discretion, deem appropriate for the purposes described hereinabove.

Payments from principal to the surviving spouse shall be made first from the survivor's trust until it is exhausted and thereafter, from the marital trust and then the exemption trust, except that all or any part of those payments may be made from the exemption or the marital trusts without exhausting the survivor's trust if the trustees consider it advisable.

Article Eight

A. On the surviving spouse's death, the trustees shall distribute any remaining balance of the survivor's trust and the marital trust, including principal and accrued or undistributed income, to one or more persons and entities, including the surviving spouse's own estate, and on any terms and conditions, either outright or in trust, and in any proportion that the surviving spouse shall appoint by Will or Codicil specifically referring to and exercising this power of appointment.

B. On the surviving spouse's death, if and to the extent that the surviving spouse shall not have effectively disposed of all property of the trust estate of the survivor's trust and the marital trust through a valid and effective exercise of a power of appointment, all of the remaining assets of the trust shall be distributed to the then acting trustees of the exemption trust and to be thereafter held, administered, and distributed as a part of the exemption trust.

C. On the surviving spouse's death, and subject to any power

of appointment exercised by the survivor, the trustees may in the trustees' discretion pay out of the principal of the survivor's trust, or if it has been exhausted, of the marital trust, or if it has been exhausted, of the exemption trust, the surviving spouse's debts outstanding at the time of his or her death and not barred by the statute of limitations, Statute of Frauds, or any other provisions of law; last illness and funeral expenses; attorneys fees; other probate expenses and costs incurred in administering the surviving spouse's probate estate; and estate and inheritance taxes, including interest and penalties attributable to the survivor's trust arising on the surviving spouse's death.

D. On the surviving spouse's death, the trustees shall distribute the assets then remaining in the exemption trust (and the survivor's trust and the marital trust, if any assets remain) as follows:

The entire net trust estate shall be distributed outright, free and discharged of trust, equally, share and share alike among Settlers' five (5) adult children, namely,

LINDA WATSON, presently residing at Eupenerstr. 25, D-5100 Aachen B.R.D. Germany;

LISA WATSON, presently residing at 16 Scarlett Road, Carmel Valley, CA 93924;

LAUREN (Watson) CESARE, presently residing at 1521 Cherry Valley Dr., San Jose, CA 95125;

DOUGLAS C. WATSON, presently residing at 1200 Taylor St., #26, San Francisco, CA 94108; and

DAVID G. WATSON, presently residing at 709 Rock Creek Place, Pleasant Hill, CA 94523.

In the event any child of Settlers should predecease or should otherwise fail to survive outright distribution hereunder, then his or her share provided for herein shall pass to his or her then

living issue in equal shares, and such issue shall receive the share their parent would have otherwise received had he or she survived to take.

In the event any child of Settlers should predecease or should otherwise fail to survive outright distribution hereunder and leaves no living issue surviving him or her, then his or her share provided for herein shall go to augment equally the shares of the surviving children of Settlers.

Article Nine

A. During the Settlers' joint lifetimes, this trust may be revoked in whole or in part.

On revocation, the trustees shall promptly deliver to the Settlers all the trust assets or the designated portion of the trust assets.

All property delivered to the Settlers on revocation shall continue to be the community or separate property of the Settlers, as the case may be.

If this instrument is revoked with respect to all or a major portion of the assets subject to this instrument, the trustees shall be entitled to retain sufficient assets reasonable to secure the payment of liabilities the trustees have lawfully incurred in administering the trust as provided herein, unless the Settlers indemnify the trustees against loss or expenses.

B. The Settlers may at any time, during their joint lifetimes, amend any term of this trust by written instrument signed by both Settlers and delivered to the trustees.

C. On the deceased spouse's death, the surviving spouse may amend, revoke, or terminate the survivor's trust; but the exemption trust and the marital trust may not be amended, revoked, or terminated. On revocation or termination of the survivor's trust, all of its assets shall be delivered to the surviving spouse. The

trustees shall be entitled to retain sufficient assets reasonable to secure the payment of liabilities the trustees have lawfully incurred in administering the trust as provided herein, unless the surviving spouse indemnifies the trustees against loss or expenses.

D. On the surviving spouse's death, none of the trusts may be amended, revoked, or terminated, except upon termination events described herein.

Article Ten

To carry out the provisions of the trusts created by this instrument, the trustees shall have the following powers, besides those now or later conferred by Law:

A. To invest and reinvest all or any part of the trust estate in any common or preferred stocks, shares of investment trusts and investment companies, bonds, debentures, mortgages, deeds of trust, mortgage participations, notes, real estate, or other property the trustees in the trustees' discretion select; to buy stocks or other securities on margin; and to buy or sell options, puts, and calls. The trustees may continue to hold in the form in which received (or the form to which changed by reorganization, split-up stock dividend, or other like occurrence) any securities or other property the trustees may at any time acquire under this trust, it being the Settlor's express desire and intention that the trustees shall have full power to invest and reinvest the trust funds in an aggressive manner assuming greater than customary risks of loss in the manner that, under the circumstances then prevailing, specifically including, but not limited to, the general economic conditions and the anticipated needs of the trust and its beneficiaries, persons of skill, prudence, and diligence acting in a similar capacity and familiar with those matters would use in the conduct of an enterprise of a similar character and with similar aims, to attain the goals of the Settlor under this instrument, without being restricted to forms of investments that the trustees may otherwise be permitted to make by law; to consider individual investments as part of an overall investment strategy; and the investments need not be diversified if the trustees so chose.

B. To continue to hold any property, including any shares of the trustees' own stock, and to operate at the risk of the trust estate any business that the trustees receive or acquire under the trust as long as the trustees consider advisable.

C. To purchase bonds and to pay any premiums connected with the purchase that the trustees in the trustees' discretion consider advisable, provided, however, each premium is repaid periodically to principal from the interest on the bond in a reasonable manner as the trustees determine and, to the extent necessary, from the proceeds on the sale or other disposition of the bond.

D. To purchase bonds at a discount as the trustees in the trustees' discretion consider advisable. If, however, the trustees determine in the trustees' discretion that the current yield on the

bonds is materially less than the rate of return that the trust could otherwise obtain with equivalent safety, all or a portion of the discount shall be credited periodically to income of the trust in a reasonable manner as the trustees determine and, to the extent necessary, paid from the proceeds on the sale or other disposition of the bond or from principal.

E. To retain, purchase, or otherwise acquire unproductive property.

F. To have all the rights, powers, and privileges of an owner of the securities held in trust, including, but not limited to, the powers to vote, give proxies, and pay assessments; to participate in voting trusts, pooling agreements, foreclosures, reorganizations, consolidations, mergers, and liquidations and, incident to such participation, to deposit securities with and transfer title to any protective or other committee on any terms the trustees consider advisable; and to exercise or sell stock subscription or conversion rights.

G. To hold securities or other property in the trustees' names as trustees under this trust, in the trustees' own names or in a nominee's name, or to hold securities unregistered in such condition that ownership will pass by delivery.

H. To manage, control, grant options on, sell (for cash or on deferred payments), convey, exchange, partition, divide, improve, and repair trust property.

I. To lease trust property for terms within or beyond the term of the trust for any purpose, including exploration for and removal of gas, oil, and other minerals; and to enter into community oil leases, pooling, and unitization agreements.

J. To lend money to any person, including the probate estate of either Settlor, provided any such loan shall adequately be secured and shall bear a reasonable rate of interest.

K. To purchase property at its fair market value, as determined by the trustees in the trustees' discretion, from the probate estate of either Settlor.

L. To loan or advance the trustees' own funds to the trust for any trust purpose, with interest at current rates; to receive security for such loans in the form of a mortgage, pledge, deed of trust, or other encumbrance of any assets of the trust; to purchase assets of the trust at their fair market value as determined by an independent appraisal of those assets; and to sell property to the trust at a price not in excess of its fair market value as determined by an independent appraisal.

M. Each trustee shall have the power to release or to restrict the scope of any power that the trustee may hold in connection with the trust created in this instrument or implied by law. The trustee shall exercise this power in a written instrument specifying the powers to be released or restricted and the nature of any restriction. Any released power shall pass to and be exercised by the other acting trustee.

N. To take any action and to make any election, in the trustees' discretion, to minimize the tax liabilities of this trust and its beneficiaries. The trustees shall have the power to allocate the

benefits among the various beneficiaries, and shall have the power to make adjustments in the rights of any beneficiaries, or between the income and principal accounts to compensate for the consequences of any tax election that the trustees believe has had the effect of directly or indirectly preferring one beneficiary or group of beneficiaries over others.

O. To borrow money and to encumber trust property by mortgage, deeds of trust, pledge, or otherwise, for the debts of the trust or the joint debts of the trust and a co-owner of the property in which the trust has an interest, or for a Settlor's debts; to guarantee a Settlor's debts.

P. To initiate or defend, at the expense of the trust, any litigation relating to the trust or any property of the trust estate the trustees consider advisable, and to compromise or otherwise adjust any claims or litigation against or in favor of the trust.

Q. To carry insurance of the kinds and in the amounts the trustees consider advisable, at the expense of the trust, to protect the trust estate and the trustees personally against any hazard or liabilities.

R. To withhold from distribution, in the trustees' discretion, at the time for distribution of any property in any trust without the payment of interest, all or any part of the property, if the trustees determine in the trustees' discretion that the property may be subject to conflicting claims, to tax deficiencies, or to liabilities, contingent or otherwise.

S. To purchase in the trustees' discretion at less than par obligations of the United States of America that are redeemable at par in payment of any federal estate tax liability of either Settlor in the amounts the trustees consider advisable. For that purpose, the trustees may partition a portion of the community property of the trust estate and make the purchases from either or both portions. The trustees shall exercise the trustees' discretion and purchase these obligations if the trustees believe that either Settlor is in substantial danger of death, and may borrow funds and give security for that purpose. The trustees shall resolve any doubt concerning the desirability of making the purchase and its amount in favor of making the purchase and in purchasing a larger, even though somewhat excessive amount. The trustees shall not be liable to either Settlor, any heir of either Settlor, or any beneficiary of this trust for losses resulting from purchases made in good faith. Notwithstanding anything in this instrument to the contrary, the trustees are directed to pay the federal estate tax due on either Settlor's death in an amount not less than the par value plus accrued interest of the obligations that are eligible for redemption to pay the deceased Settlor's federal estate taxes, without apportionment or charge against any beneficiary of the trust estate or transferee of property passing outside the trust estate. The legal representative of the deceased Settlor's estate, or if none was appointed, the trustees acting under this instrument, shall select the redemption date of these obligations.

The direction to use accrued interest on Treasury bonds to pay death taxes shall not deprive the surviving spouse of any income to which the spouse may be entitled under the provisions of the marital deduction trust created under this instrument, and this income shall be considered in determining the amount of income allocable to that trust.

T. To partition, allot, and distribute the trust estate on any division or partial or final distribution of the trust estate, in undivided interests or in kind, or partly in money and partly in kind, at valuations determined by the trustees, and to sell any property the trustees consider necessary for division or distribution. In making any division or partial or final distribution of the trust estate, the trustees are not obligated to make a prorata division or to distribute the same assets to beneficiaries similarly situated. The trustees may, in the trustees' discretion, make a nonprorata division between trusts or shares and nonprorata distributions to the beneficiaries if the respective assets allocated to separate trusts or shares, or distributed to the beneficiaries, have equivalent or proportionate fair market value and income tax bases.

This subparagraph shall not apply to the division of the trust established by the marital trust.

U. If any principal is applied for the benefit of a surviving spouse and to the extent that a surviving spouse is a trustee, the other trustee shall have sole authority in this regard and that such interested trustee shall have no power or authority to determine or participate in the determination of whether such invasion or distribution shall be made.

V. Except as otherwise specifically provided in this instrument, or in either of the Settlor's Will, federal estate taxes imposed on or by reason of the inclusion of any portion of the trust estate and the gross taxable estate of either Settlor under the provisions of any federal tax law shall be paid by the trustees and charged, prorated among, or recovered from the trust estate or the persons entitled to the benefits under these trusts as and to the extent provided by any applicable tax law or any proration statute. Except whenever otherwise specifically provided, State death taxes shall be paid and charged to the trust estate or deducted and collect as provided by law.

W. Subject to the provisions of the paragraph pertaining to Treasury bonds, unless the surviving Settlor's Will directs otherwise, all estate and inheritance taxes payable at the surviving Settlor's death, that are attributable to any trust created under this instrument, shall be paid from the trust estate and charged to, or recovered from, the persons entitled to benefit under this instrument as provided by California Probate Code section 970 and related sections, or any successor statutes or amendments thereto, without giving effect to Internal Revenue Code section 2207A.

Article Eleven

A. Except as otherwise specifically provided in this instrument, the determination of all matters with respect to what is principal and income of the trust estate and the apportionment and allocation of receipts and expenses between these accounts shall be governed by the provisions of the California Revised Uniform Principal and Income Act from time to time existing. The trustees in the trustees' discretion shall determine any matter not provided for either in this instrument or in the California Revised Uniform Principal and Income Act.

Notwithstanding any other provision of this instrument or of the California Revised Uniform Principal and Income Act, the trustees may establish a reserve for depreciation of all income producing real and personal property and of capital improvements and extraordinary repairs. In addition:

A reasonable reserve for depletion of all depletable natural resources, including, but not limited to, oil, gas, and mineral and timber property, shall be charged to income from time to time;

Distributions by mutual funds and similar entities of gains from the sale or other disposition of property shall be credited to principal;

A reasonable reserve for amortization of all intangible property with a limited economic life including, but not limited to, patents and copyrights, shall be charged to income from time to time.

B. The trustees need not physically segregate or divide the various trusts, except when segregation or division is required because one of the trusts terminates, but the trustees shall keep separate accounts for the different trusts.

C. Income accrued or unpaid on trust property when received into the trust shall be treated as any other income. Income accrued or held undistributed by the trustees at the termination of any trust or any interest in a trust created under this instrument, other than any trust that may be a qualified terminable interest property trust, shall go to the next beneficiaries of that interest or trust in proportion to their interests in it. Income accrued or held in trust on the termination of a qualified terminable interest property trust shall go to the beneficiaries of that trust immediately before the termination or to his or her estate unless provided otherwise in this instrument.

This provision shall not apply to income accrued on Treasury bonds redeemed in payment of the Settlor's federal estate tax.

Article Twelve

A. Other property acceptable to the trustees may be added to these trusts by any person, by the Wills or Codicils of either Settlor, by the proceeds of any life insurance, or otherwise.

Unless otherwise specified in this instrument, or in any instrument of transfer, any addition to any trust that has been subdivided into multiple trusts shall augment proportionately the trusts into which such trust has been divided.

B. Unless the trustees have received actual written notice of the occurrence of an event affecting the beneficial interests of this trust, the trustees shall not be liable to any beneficiary of this trust for distribution made as though the event had not occurred, provided this clause shall not exculpate the trustees from liability arising from nonpayment of death or generation skipping taxes that may be payable by the trust on occurrence of an event affecting the beneficial interests of this trust.

C. No interest in the principal or income of any trust created under this instrument shall be anticipated, assigned, encumbered, or subjected to creditor's claim or legal process before actual receipt by the beneficiary.

D. The validity of this trust and the construction of its beneficial provisions shall be governed by the laws of the State of California in force from time to time. This paragraph shall apply regardless of any change of residence of a trustee or any beneficiary, or the appointment or substitution of a trustee residing or doing business in another state.

Notwithstanding the foregoing, the validity and construction of this trust in relation to any real property located in a jurisdiction outside the State of California shall be determined under the laws of such jurisdiction. If the situs or place of administration of the trust is changed to another state, the law of that state shall govern the administration of the trust.

E. In this instrument, in all matters of interpretation, whenever necessary to give effect to any provision of this instrument, the masculine shall include the feminine and neuter and vice versa, and the singular shall include the plural, and the plural shall include the singular.

F. All references to specific statutes, codes, or regulations shall include any successors. The term "Internal Revenue Code" shall refer to the Internal Revenue Code of 1954, as amended from time to time, and to any successor statute to it.

G. All references to trustees, special trustees, or any other fiduciary shall refer to the individuals or institutions serving from time to time in such capacity under this instrument.

H. The use of the word "shall" indicates a mandatory direction, while the use of the word "may" indicates a permissive, but not mandatory grant of authority.

I. In this instrument, the term "issue" refers to lawful lineal descendants of all degrees, and the terms "child", "children", and "issue" include adopted children.

The terms "issue", "child", and "children" include a child born out of wedlock if a parent-child relationship existed between the child and his or her deceased parent, determined under California law.

J. References in this trust to a person's spouse, husband, or wife shall mean any individual who is that person's then lawfully married spouse (determined by the laws of the jurisdiction in which the person then resides), except that an individual shall not be considered as a spouse, husband, or wife unless that individual shall be living with the person as husband and wife (disregarding temporary absences due to vacation, illness, or other emergency) at the time it is necessary to determine the individual's status as a spouse, husband, or wife. The term "spouse", "husband", or "wife" shall also include a widow or widower, if that individual was

residing at the time of the deceased person's death with the deceased as husband or wife (disregarding temporary absences due to vacation, illness, or other emergency). This determination shall be made in the discretion of the trustees.

K. Except as otherwise provided in this instrument, the Settlers have intentionally and with full knowledge omitted to provide for their heirs. If any beneficiary under this trust, singly or in conjunction with any other person or persons, contests in any court the validity of this trust or of a deceased Settlor's last Will or seeks to obtain an adjudication in any proceeding in any court that this trust or any of its provisions or that such Will or any of its provisions is void, or seeks otherwise to void, nullify, or set aside this trust or any of its provisions, then that person's right to take any interest given to him or her by this trust shall be determined as it would have been determined if the person had predeceased the execution of this declaration of trust without surviving issue.

The provisions of this paragraph shall not apply to any disclaimer by any person of any benefit under this trust or under any Will.

The trustees are hereby authorized to defend, at the expense of the trust estate, any contest or other attack of any nature on this trust or any of its provisions.

L. Except as otherwise specifically provided in this instrument, if any person named herein fails to survive a Settlor for thirty (30) days, for all purposes of this trust, the person shall be considered to have predeceased such Settlor.

M. Any beneficiary shall have the right to disclaim all or any part of any interest in property to which he or she may be entitled under this instrument. Except as otherwise provided herein, any interest so disclaimed shall be distributed as if the beneficiary

predeceased the Settlers. No other interest of the beneficiary shall be affected by the disclaimer, unless that interest also shall be disclaimed.

Article Thirteen

A. The trustees of the within trust shall be FRANKLIN H. WATSON and MARILYN C. WATSON so long as they are alive and competent to so act. If one of the above named trustees should die or become incompetent, or otherwise unable to act, then the surviving or competent trustee shall continue to act with LAUREN CESARE as co-trustees. If both Settlers as trustees are unable to act, or are deceased, then LAUREN CESARE shall serve as sole trustee.

B. No bond shall be required of any person named in this instrument as a trustee, or of any person appointed as the trustee in the manner specified in this instrument, for the faithful performance of his or her duties as trustee.

C. No trustee shall be liable or responsible for any act, omission, or default of any other trustee, provided the trustee has no knowledge of facts that might reasonably be expected to put the trustee on notice of it.

D. No successor trustee shall be liable for any act, omission, or default of a predecessor trustee. Unless requested in writing within sixty (60) days of appointment by an adult beneficiary of the trust, no successor trustee shall have any duty to investigate or review any action of a predecessor trustee. The successor trustee may accept the accounting records of the predecessor trustee showing assets on hand without further investigation and without incurring any liability to any person claiming or having an interest in the trust.

E. Any corporate trustee acting hereunder shall be entitled to reasonable compensation for its services. All trustees named herein shall be entitled to reimbursement for costs advanced.

F. The trustees shall have the power to employ investment counsel, consultants, accountants and/or attorneys to the extent the trustees deem advisable. Normal and usual compensation or fees of any such investment counsel, consultant, accountant or attorney shall be a proper charge against the trust.

G. Settlers direct that the individual trustees acting hereunder, or if a vacancy in trusteeship should occur, by designation of the majority of the beneficiaries of any trust provided for herein, shall have the right by an instrument in writing to designate and appoint a corporate trustee or co-trustee, which corporate trustee so appointed shall be a national bank or member of the Federal Reserve System with the further right from time to time to appoint a new corporate trustee or co-trustee similarly qualified in place of one theretofore appointed.

H. Unless terminated earlier in accordance with other provisions of this instrument, any trust created under this instrument shall terminate 21 years after the death of the last survivor of Settlers' children living on the date of death of the first Settlor to die.

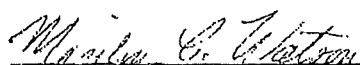
Article Fourteen

The trusts created in this instrument may be referred to collectively as the FRANKLIN AND MARILYN WATSON TRUST as established by FRANKLIN H. WATSON and MARILYN C. WATSON, and each separate trust created in this instrument may be referred to by adding the name of the beneficiary.

(signatures and notarial acknowledgment follow next page)

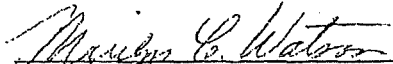
Executed on December 15, 1992, at Orinda, California.


FRANKLIN H. WATSON
Trustee


MARILYN C. WATSON
Trustee

We certify that we have read the foregoing declaration of trust and that it correctly states the terms and conditions under which the trust estate is to be held, managed, and disposed of by the trustees. We approve the declaration of trust in all particulars.

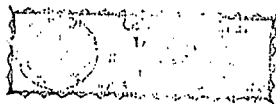

FRANKLIN H. WATSON
Settlor


MARILYN C. WATSON
Settlor

STATE OF CALIFORNIA)
COUNTY OF CONTRA COSTA) SS

On this 15 day of December, 1992, before me, the undersigned, a notary public in and for said County and State, personally appeared FRANKLIN H. WATSON and MARILYN C. WATSON, known to me (or proved to me on the basis of satisfactory evidence) to be the persons whose names are subscribed to the within instrument and acknowledgment to me that they executed the same.

WITNESS my hand and official seal.



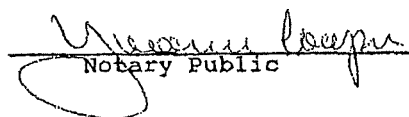

Notary Public

EXHIBIT 16

C O D I C I L
TO LAST WILL AND TESTAMENT OF
CHARLES W. GOMPERTZ

I, CHARLES W. GOMPERTZ, of the City of Oakland, County of Alameda, State of California, being of sound and disposing mind and memory, and not acting under duress, menace, fraud, or the undue influence of any person or persons whomsoever, do hereby make, publish and declare this to be a codicil to my last will and testament dated July 1, 1947, hereby republishing my said last will and testament dated July 1, 1947, in all respects, save and except as the same is changed by this my codicil to said last will and testament.

I

I hereby expressly cancel, annul and revoke paragraph Eleventh of my said last will and testament dated July 1, 1947, and in place and in lieu thereof, I hereby substitute the following provision:

ELEVENTH: Whenever the lawful issue of any person is referred to in this my last will and testament, the term "issue" shall be deemed to mean all of such person's lawful lineal descendants of the first degree, and of every other degree who have no living ancestor who is a lineal descendant of such person, and shall include persons legally adopted as well as issue of the body. Likewise, the term "heirs at law," as used in this my last will and testament, shall include persons legally adopted as well as issue of the body of the person or persons referred to.

PAGE ONE

EXHIBIT B

I hereby expressly insert and add the following additional provision in and to my said last will and testament dated July 1, 1947:

FIFTEENTH: In the event that my said wife, ANITA T. GOMPERTZ, should survive me, and notwithstanding any other provision contained in this my last will and testament, it is my intention by this my last will and testament to dispose of all my property, including my share only of the community property of my said wife and myself over which I have power of testamentary disposition, and including all of my separate property, but excluding any property held of record in joint tenancy with a person or persons living at the time of my death, and it is also my intention to exercise any testamentary power of appointment which I may own or have at the time of my death.

In the event that my said wife, ANITA T. GOMPERTZ, should survive me, then I hereby confirm unto my said wife her share of our community property, over which I do not have power of testamentary disposition, and she shall hold and own her said share of our community property, over which I do not have power of testamentary disposition, outright, free and clear of the provisions of any trust provided for in this my last will and testament.

In the event that my said wife, ANITA T. GOMPERTZ, should not survive me, it is my intention by this my last will and testament to dispose of all my property, excluding any property held of record in joint tenancy with a person or persons living at the time of my death, and to exercise any testamentary power of appointment which I may own or have at the time of my death.

III

Except as modified by this codicil, I hereby expressly confirm and ratify my said last will and testament dated July 1, 1947, and I hereby declare that my said last will and testament dated July 1, 1947, and this codicil shall constitute my last will and testament.

IN WITNESS WHEREOF, I have hereunto set my hand this 16th day of June, 1949.

Charles W. Gompertz

Witnesses:

Everett J. Brown Jr. Residing at 336 Sheridan Ave.
Redmont 11, Calif.

Helma F. Minko Residing at 2909 California St.
Oakland 2, Calif.

Marion M. Perrygo Residing at 1522 Sherman Ave.
San Leandro, Calif.

The foregoing instrument, consisting of three (3) pages, including this page, each written upon only one side thereof, was, at the date hereof, to wit, June 16th, 1949, subscribed by CHARLES W. GOMPERTZ, therein named as testator, in the presence of us, all being present at the same time, and was, at the time of his so subscribing the same, declared and acknowledged by him to be a codicil to his last will and testament dated July 1, 1947, and thereupon we, at his request, and in the presence of him and of one another, have signed our names as witnesses thereto at the end thereof, and have written, with our names, our respective places of residence.

Everett J. Brown Jr.
Helma F. Minko
Marion M. Perrygo

EXHIBIT 17

FILED

APR 11 1955

JACK G. BLUE, County Clerk

By [Signature] DEPUTY

LAST WILL AND TESTAMENT

OF

ANITA T. GOMPERTZ

169230

I, ANITA T. GOMPERTZ, a resident of the City of Oakland, County of Alameda, State of California, being of sound and disposing mind and memory, and not acting under duress, menace, fraud or the undue influence of any person whomsoever, do hereby make, publish and declare this to be my last will and testament in the manner following, that is to say:

FIRST: I hereby expressly revoke all former wills and testamentary dispositions heretofore by me made.

SECOND: I hereby declare that I am the widow of Charles W. Gompertz, who died on April 8, 1953, and that I have two (2) children, namely, a daughter, RUTH GOMPERTZ WATSON, and a son, JOHN L. GOMPERTZ, and that I have no deceased child or children.

THIRD: I hereby nominate and appoint my said son, JOHN L. GOMPERTZ, as executor of this my last will and testament, to act without bond. In the event of the refusal or inability for any reason whatsoever of said John L. Gompertz to act as such executor, then and in such event I hereby nominate and appoint CROCKER FIRST NATIONAL BANK OF SAN FRANCISCO, a national banking association, or its successor, as executor of this my last will and testament.

FOURTH: I hereby confer upon my said executor full power and authority to sell, lease, transfer and exchange, or otherwise dispose of, on such terms as he or it may see fit, at

Codicil
Will admitted to Probate.....
1 Jack G. Blue, County Clerk

PAGE ONE

public or private sale, with or without notice, any and all property of which I may die seised or possessed, without any authority of court therefor, so far as this may lawfully be done. Any lease or leases of property within my estate, or any part thereof, or extension or renewal of lease, or option therefor, may be for a term beyond and longer than the probate of my estate.

I hereby authorize my executor to compromise and settle on such terms as he or it, in his or its judgment and discretion, may determine to be proper and necessary, any claims and demands against my estate, or any litigation in which my estate may be involved.

FIFTH: I hereby give and bequeath to my daughter, RUTH O. WATSON, or, if she should predecease me, to my granddaughter, JANET ANITA WATSON, my clothing, jewelry and personal effects.

SIXTH: I hereby give and bequeath to the following persons the items set opposite their respective names:

(a) To my friend ELEANOR (MRS. J. F.) CHADDOCK, now residing at 1101 Green Street, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(b) To my cousin, EDNA H. OSFORN, now residing at 67 Glen Avenue, Oakland, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(c) To my niece, ELEANOR ANITA TAGGARD, now residing at 30. Mallugo Avenue, Pasadena, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(d) To my cousin, WYNONAH THAYER, whose present address is Box 62, R. 1, Carmel, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(e) To my friend, MABEL SARLE, now residing at

12 Palm Avenue, San Francisco, California, if she survives me, the sum of TWO THOUSAND DOLLARS (\$2,000.00);

(f) To my cousin, NORMA O. STAFFORD, now residing at 260 Purdue Avenue, Berkeley, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(g) To my friend, NANCY (MRS. ROBERT E.) FERGUSON, now residing at 2811-1/2 Benvenue Avenue, Berkeley, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(h) To my housekeeper, MALLIE PEACE, now residing at 3053 Stanton Street, Berkeley, California, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(i) To my grandson, CHARLES E. GOMPERTZ, if he survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(j) To my granddaughter, MARGARET BATES GOMPERTZ, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(k) To my granddaughter, JOANN GOMPERTZ, if she survives me, the sum of ONE THOUSAND DOLLARS (\$1,000.00);

(l) To my sister-in-law, LOUISE GOMPERTZ, of Berkeley, California, if she survives me, the sum of TWO THOUSAND DOLLARS (\$2,000.00);

(m) To my sister-in-law, DR. KATE GOMPERTZ, of Pacific Grove, California, if she survives me, the sum of THREE THOUSAND DOLLARS (\$3,000.00);

(n) To my sister-in-law, ALICE GOMPERTZ, of Berkeley, California, if she survives me, the sum of FIVE THOUSAND DOLLARS (\$5,000.00);

(o) To my sister-in-law, LESLIE GOMPERTZ, of New York City, New York, if she survives me, the sum of FIVE THOUSAND DOLLARS (\$5,000.00);

(p) To my brother-in-law, WALTER GOMPERTZ, SR., of Walnut Creek, California, if he survives me, the sum of TWO THOUSAND DOLLARS (\$2,000.00).

If at the time of my death I am the owner of 2-1/2% United States Treasury Bonds, my executor is hereby directed, in his discretion, to distribute any or all of such bonds of an equivalent face value to such of the legatees enumerated in (a) to (h), inclusive, of this paragraph SIXTH, in lieu of the cash bequests hereinabove set forth.

SEVENTH: I hereby give, devise and bequeath to my grandson, FRANKLIN HASKELL WATSON III, and to my granddaughter, JANET ANITA WATSON, share and share alike, or to the survivor of them, the real property and the residence situated thereon commonly known and designated as 5630 Broadway Terrace, Oakland, California, if owned by me at the date of my death, together with the furniture and furnishings therein contained.

If said residence is not owned by me at the date of my death, I hereby give and bequeath to my said grandson, FRANKLIN HASKELL WATSON III, and to my said granddaughter, JANET ANITA WATSON, share and share alike, or to the survivor of them, a sum equivalent to the net proceeds of the sale of said real property and said residence situated thereon.

EIGHTH: I hereby give, devise and bequeath all of the rest, residue and remainder of my estate, of every kind and character, and wheresoever situate, together with all property over which I may have power of testamentary disposition at the time of my death pursuant to power of appointment, to my son, JOHN L. GOMPERTZ, and to my daughter, RUTH G. WATSON, share and share alike.

In the event my said son, John L. Gompertz, should predecease me, the share of said rest, residue and remainder of my estate which my said son would have taken if living is hereby given, devised and bequeathed to my daughter, RUTH G.

WATSON, or, if she also be then deceased, to the lawful living issue of my said daughter, share and share alike, but by right of representation.

In the event my said daughter, Ruth G. Watson, should predecease me leaving lawful issue living at the time of my death, said lawful issue shall take, share and share alike, but by right of representation, the share which my said daughter would have taken if living, or in default of such issue, the share is hereby given, devised and bequeathed to my son, JOHN L. GOMPERTZ.

NINTH: In the event there is not living at the time of my death my said daughter, Ruth G. Watson, or my said son, John L. Gompertz, or any lawful issue of my said daughter, then and in such event I hereby give, devise and bequeath my entire estate, of every character and description, and wheresoever situate, together with all property over which I may have power of testamentary disposition at the time of my death pursuant to power of appointment, to my heirs at law living at the date of my death, such determination to be made as of the date of my death in accordance with the laws of succession of the State of California then in force.

TENTH: I direct that my executor pay out of the residue of my estate, before distribution thereof, all transfer, inheritance, succession, estate and similar taxes levied or imposed upon the gift and devise to my grandson, Franklin Haskell Watson III, and to my granddaughter, Janet Anita Watson, in paragraph SEVENTH of this my last will and testament.

ELEVENTH: I have intentionally made no greater provisions in this my last will and testament for the lawful issue of my said son, John L. Gompertz, for the reason that from other

sources they are already well provided for.

TWELFTH: I hereby declare that except as otherwise provided in this will I have intentionally omitted to provide herein for any of my heirs living at the time of my death. If any heir, or any person who would be entitled to any part of my estate if I died intestate, shall directly or indirectly, singly, or in conjunction with another person or other persons, seek to establish or assert any claim to my estate, or any part thereof, except under this will, or attack or oppose or seek to set aside the probate of this will, or impair, invalidate or set aside the provisions hereof, or endeavor to secure or procure any part of my estate other than through or under this will, then and in any of such events I hereby give and bequeath to such heir or person the sum of ONE DOLLAR (\$1.00), and no more, in lieu of any other share or interest in my estate. All of the rest of the interest, share or property which otherwise would have gone to such person by devise or inheritance, or which such heir or person might be entitled to take under any provision of law, shall become, and it is hereby given, devised and bequeathed as a part of the residue and remainder of my estate and disposed of in accordance with the provisions of this will relating to such residue and remainder.

Notwithstanding anything herein contained to the contrary, no person shall be under any restriction relating to his or her claim for and receipt of reimbursement for moneys paid out for my account for taxes and expenses of my last illness and for my funeral.

THIRTEENTH: Whenever the lawful issue of any person is referred to in this my last will and testament, the term "lawful issue" shall be deemed to mean all of such person's lawful lineal descendants of the first degree, and of every other degree who have no living ancestor who is a lineal descendant of such

person, and shall include persons legally adopted as well as issue of the body. Likewise, the term "heirs at law", as used in this my last will and testament, shall include persons legally adopted as well as issue of the body.

IN WITNESS WHEREOF, I have hereunto set my hand this

14th day of April, 1954.

Anita T. Compertz

Witnesses:

Elmer F. Malynn Residing at 9500 Moraga Blvd

Paul L. May Residing at Lafayette Calif
1134 Niagara St
Lafayette Calif

The foregoing instrument, consisting of seven (7) pages, including this page, each written upon only one side thereof, was at the date hereof, to wit, April 14, 1954, subscribed by ANITA T. COMPERTZ, therein named as testatrix, in the presence of us, all being present at the same time, and was, at the time of her so subscribing the same, declared and acknowledged by her to be her last will and testament, and thereupon we, at her request, and in the presence of her and of one another, have subscribed our names as witnesses thereto at the end thereof, and have written with our names our respective places of residence.

Elmer F. Malynn
Paul L. May

Entry Date MAY 4 - 1965
Vol. 117 Page 1 (Read)
Jack G. Blue, County Clerk
By E. Y. Halpin
Deputy

FILED

APR 1 1955
JACK C. CHIA, County Clerk
DEPUTY

C O D I C I L
TO LAST WILL AND TESTAMENT OF
ANITA T. GOMPERTZ

160290

I, ANITA T. GOMPERTZ, a resident of the County of Alameda, State of California, being of sound and disposing mind and memory, and not acting under duress, menace, fraud, or the undue influence of any person whomsoever, do hereby make, publish and declare this to be a codicil to my last will and testament dated April 14, 1954, in the manner following, that is to say:

I

I hereby revoke and annul paragraph THIRD of my said last will and testament dated April 14, 1954, and in lieu thereof I hereby make the following directions:

"THIRD: I hereby nominate and appoint my grandsons, FRANKLIN H. WATSON III and CHARLES B. GOMPERTZ, as executors of this my last will and testament. In the event either of my said grandsons should be unwilling or unable for any reason whatsoever to act as such co-executor with the other of my said grandsons, then I hereby nominate and appoint whichever one of my said grandsons who is willing and able so to act as sole executor of this my last will and testament, or, in the event both of my said grandsons should be unwilling or unable to act as co-executor or sole executor, as the case may be, then I hereby nominate and appoint my daughter, RUTH GOMPERTZ WATSON, as executrix of this my last will and testament.

"I hereby direct that no bond, security or under-

takings of any kind be required of said Franklin H.

2
HUBBARD E. SPENCER
ATTORNEY AT LAW
CENTRAL BUILDING
OAKLAND 19, CALIF.
TELEPHONE 5-6031

PAGE ONE

Watson III, or of said Charles B. Gompertz, or of said Ruth Gompertz Watson in his or her capacity as co-executor, sole executor, or executrix, as the case may be, of this my last will and testament."

I hereby confer upon my said executors, executor or executrix, as the case may be, all of the powers as set forth in paragraph FOURTH of my said last will and testament dated April 14, 1954.

II

I hereby revoke and annul paragraphs SEVENTH, EIGHTH, NINTH and TENTH of my said last will and testament dated April 14, 1954, and in lieu thereof I hereby make the following directions:

"I hereby give, devise and bequeath all of the rest, residue and remainder of my estate to my grandchildren, FRANKLIN H. WATSON III and JANET WATSON ADAMS, share and share alike, or all to the survivor of them; provided, however, that should either of my said grandchildren predecease me leaving lawful issue living at the time of my death, such lawful issue shall take, share and share alike, but by right of representation, the share which such deceased grandchild of mine would have taken in living.

"In the event there is not living at the time of my death either of my said grandchildren, Franklin H. Watson III and Janet Watson Adams, or any lawful issue of either of my said grandchildren, then and in such event I hereby give, devise and bequeath said rest, residue and remainder of my estate to my daughter, RUTH GOMPERTZ WATSON, or, if my said

daughter also has predeceased me, to the lawful issue of my son, JOHN L. GOMPERTZ, living at the time of my death, share and share alike, but by right of representation."

III

In all other respects I hereby republish, ratify and confirm my said last will and testament dated April 14, 1954.

IN WITNESS WHEREOF, I have hereunto set my hand this

17th day of February, 1960.

Anita T. Gompertz

Witnesses:

Wm. F. Morgan

Residing at 3500 Morgan Blvd.

Lafayette, Calif.

Paul L. May

Residing at 1.4 Haggard St.

Lafayette, Calif.

The foregoing instrument, consisting of three (3) pages, including this page, each written upon only one side thereof, was at the date hereof, to wit, February 17, 1960, subscribed by ANITA T. GOMPERTZ, therein named as testatrix, in the presence of us, all being present at the same time, and was at the time of her so subscribing the same declared and acknowledged by her to be a codicil to her last will and testament dated April 14, 1954, and thereupon we, at her request, and in the presence of her and of one another, have signed our names as witnesses thereto at the end thereof, and have written with our names our respective places of residence.

Wm. F. Morgan

Paul L. May

EXHIBIT 18

FILED

1966 APR 19 AM 10:54

[Signature]
CLERK

APR 19 1966

Entry Date

Vol. 136 Page 47 (Real)

Jack G. Blue, County Clerk

By *[Signature]*
Deputy

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8 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA, IN AND FOR THE
9 COUNTY OF ALAMEDA

10 In the Matter of the Estate of *

11 ANITA T. GOMPERTZ *

NO. 169290

12 also known as ANITA TAGGARD
13 GOMPERTZ and ANITA GOMPERTZ, *

14 Deceased. *

15

DECREE OF FINAL DISTRIBUTION

16

17 FRANKLIN H. WATSON, III, and CHARLES B. GOMPERTZ, as
18 Co-Executors of the Will of ANITA T. GOMPERTZ, deceased, having
19 heretofore filed a Waiver of Accounting and Petition for Final
20 Distribution, and the Petition coming on this day regularly for
21 hearing, the Court finds:

22

23 Due notice of the hearing of the Petition has been
24 regularly given as required by law.

25

26 All the allegations of the Petition are true.

27

28 ANITA T. GOMPERTZ died on March 11, 1965, in the City
29 of Oakland, County of Alameda, State of California, being at the
30 time of her death a resident thereof.

31

32 On May 6, 1965, FRANKLIN H. WATSON, III, and CHARLES B.
GOMPERTZ qualified as and were appointed Co-Executors of de-
cedent's estate, and ever since have been and now are Co-Executors
of said estate.

1 Notice to Creditors has been duly given as required by
2 law, the time for filing or presenting claims has expired, and
3 the estate now is in a condition to be closed. All claims filed
4 or presented against the estate have been allowed by the Co-Execu-
5 tors, and approved by this Court and paid.

6 All inheritance taxes and personal property taxes due
7 and payable by this estate have been paid.

8 The Co-Executors have paid the California inheritance
9 tax from the assets of the decedent's estate. The tax so paid
10 should be charged to the persons named and in the amounts set
11 forth as follows:

12	ELEANOR CHADDOCK	\$ 109.48
13	WYNONAH THAYER	35.00
14	MABEL SARLE	195.00
15	DR. KATE GOMPERTZ	295.00
16	ALICE GOMPERTZ	495.00
17	LESLIE GOMPERTZ	495.00
18	WALTER GOMPERTZ, SR.	195.00
19	FRANKLIN H. WATSON, III	325.07
20	JANET W. ADAMS	<u>332.39</u>
21	TOTAL	\$2,476.94

22 A Federal Estate Tax Return has been filed and the tax
23 due from the estate shown therein has been paid. The Return has
24 not yet been audited.

25 The Co-Executors have paid Federal Estate Taxes in the
26 amount of \$803.57, which should be prorated and apportioned as
27 provided by law. The prorated amounts should be charged against
28 the interest in the estate of the persons against whom the charge
29 is made. The sum have been charged against the interest of said
30 persons as follows:

31

32

1	ELEANOR CHADDOCK	\$ 7.43
2	ELEANOR ANITA TAGGARD	8.38
3	WYNONAH THAYER	6.50
4	MABEL SARLE	13.00
5	SCOTT STAFFORD	3.25
6	JOAN STAFFORD POWERS	3.25
7	CHARLES B. GOMPERTZ	6.50
8	MARGARET G. HUNTINGTON	6.50
9	JOANN G. MELVIN	6.50
10	DR. KATE GOMPERTZ	19.49
11	ALICE GOMPERTZ	32.49
12	LESLIE GOMPERTZ	32.49
13	WALTER GOMPERTZ	13.00
14	FRANKLIN H. WATSON, III	321.20
15	JANET W. ADAMS	<u>323.59</u>
16	TOTAL	803.57

17 All California State and Federal income taxes due and
18 payable by the estate have been paid.

19 FRANKLIN H. WATSON, III, has waived all right to com-
20 missions for his services as Co-Executor rendered herein. The
21 Co-Executor should be authorized to pay to CHARLES B. GOMPERTZ
22 one-half (1/2) of the statutory commission as hereafter specified
23 in discharge of his statutory commission for services rendered
24 herein as Co-Executor.

25 The Co-Executors should be authorized and directed to
26 pay to their attorneys, Hardin, Fletcher, Cook and Hayes, the sum
27 hereafter specified as their statutory fees for services rendered
28 in the administration of this estate.

29 All the assets of the estate are the separate property
30 of the decedent.

31 Distribution should be ordered as hereafter specified.

32

1 NOW, THEREFORE, IT IS HEREBY ORDERED AND ADJUDGED THAT:

2 (1) The Co-Executors are authorized and directed to pay
3 to Hardin, Fletcher, Cook and Hayes, their attorneys, the sum of
4 \$2,147.52, as their statutory attorneys' fees.

5 (2) The Co-Executors are authorized and directed to pay
6 to CHARLES B. GOMPERTZ the sum of \$1,073.76 as his one-half (1/2)
7 of the statutory commission as Co-Executor.

8 (3) The following described property is distributed as
9 follows:

10 a. To RUTH G. WATSON, all the clothing, jewelry
11 and personal effects of decedent.

12 b. To ELEANOR CHADDOCK, after deduction for
13 Federal and State taxes, the sum of \$883.09 in cash.

14 c. To ELEANOR ANITA TAGGARD, after deduction for
15 Federal and State taxes, the sum of \$991.62 in cash.

16 d. To WYNONAH THAYER, after deduction for Federal
17 and State taxes, the sum of \$958.50 in cash.

18 e. To MABEL SARLE, after deduction for Federal and
19 State taxes, the sum of \$1,792.00 in cash.

20 f. To SCOTT STAFFORD, after deduction for Federal
21 and State taxes, the sum of \$496.75 in cash.

22 g. To JOAN STAFFORD POWERS, after deduction for
23 Federal and State taxes, the sum of \$496.75 in cash.

24 h. To CHARLES B. GOMPERTZ, after deduction for
25 Federal and State taxes, the sum of \$993.50 in cash.

26 i. To MARGARET G. HUNTINGTON, after deduction for
27 Federal and State taxes, the sum of \$993.50 in cash.

28 j. To JOANN G. MELVIN, after deduction for Federal
29 and State taxes, the sum of \$993.50 in cash.

30 k. To DR. KATE GOMPERTZ, after deduction for
31 Federal and State taxes, the sum of \$2685.51 in cash.

32

1 1. To ALICE GOMPERTZ, after deduction for Federal
2 and State taxes, the sum of \$4472.51 in cash.

3 m. To LESLIE GOMPERTZ, after deduction for Federal
4 and State taxes, the sum of \$4472.51 in cash.

5 n. To WALTER GOMPERTZ, SR., after deduction for
6 Federal and State taxes, the sum of \$1792.00 in cash.

7 o. To FRANKLIN H. WATSON, III, after deduction for
8 Federal and State taxes, an undivided one-half (1/2) interest in
9 all the assets listed in Exhibit "A", attached hereto and incor-
10 porated herein.

11 p. To JANET W. ADAMS, after deduction for Federal
12 and State taxes, an undivided one-half (1/2) interest in all the
13 assets listed in Exhibit "A", attached hereto and incorporated
14 herein.

15 (4) All other property, not now known, or which is
16 hereafter discovered which belongs to said estate, be and the
17 same is hereby distributed as follows:

18 a. One-half (1/2) to FRANKLIN H. WATSON, III.

19 b. One-half (1/2) to JANET W. ADAMS.

20 Dated: This 18th day of April, 1966.

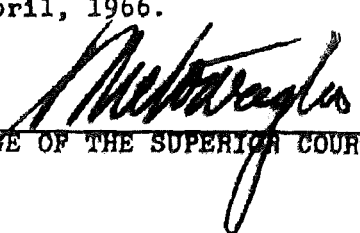
21
22
23 
24 JUDGE OF THE SUPERIOR COURT
25
26
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30
31
32

EXHIBIT "A"

ASSETS IN WHICH FRANKLIN H. WATSON, III,
AND JANET W. ADAMS HAVE UNDIVIDED
ONE-HALF (1/2) INTEREST

1. Bonds:

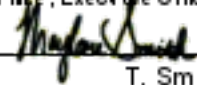
- (a) \$5,000.00 P.V. Acalanes Union High School,
2-1/2% Due 6/1/66
- (b) \$5,000.00 P.V. Davis Joint Unified School,
4% Due 2/1/68
- (c) \$5,000.00 P.V. San Carlos School District,
2-3/4% Due 3/1/67
- (d) \$3,000.00 P.V. U.S. Treasury, 3% Due 1995
- (e) \$5,000.00 P.V. Union Oil Co. of California,
4-1/4% Due 6/1/91
- (f) \$5,000.00 P.V. Utah State University,
3-1/2% Due 4/1/66

2. Stock:

<u>Shares</u>	<u>Class</u>	<u>Corporation</u>
24	Common	Alexander & Baldwin, Inc.
108	Common	Franklin National Bank
100	Common	Freeport Sulphur Co.
15	Common	Socony Mobil Oil Co. Inc.

3. Cash\$ 599.52

4. Tax Refund from State Controller.....\$ 116.90

FILED
Superior Court of California
County of Alameda
08/04/2025
Clad File, Executive Officer / Clerk of the Court
By:  Deputy
T. Smith

Thomas B. Worth (State Bar No. 73232)
FRIEDMAN McCUBBIN LAW GROUP LLP
425 California Street, 25th Floor
San Francisco, California 94104
Telephone: (415) 434-2226
tom@fomlaw.com

Attorneys for Petitioner
17th and Peralta, LLC

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ALAMEDA

In the Matter of the Estate of

CHARLES W. GOMPERTZ,
also known as CHARLES WILLIAM
GOMPERTZ, AND C.W. GOMPERTZ,
Deceased.

Case No. ~~123,339~~ 24PR094104

ORDER ESTABLISHING ESTATE'S CLAIM
OF OWNERSHIP TO PROPERTY,
DIRECTING ITS TRANSFER TO ESTATE,
DISTRIBUTING PROPERTY TO
TESTAMENTARY TRUST, AND
DISTRIBUTING PROPERTY FROM SUCH
TRUST

Date: ~~November 25, 2024~~ 08/04/2025
Time: 3:00 p.m.
Dept: 103

Petitioner, 17th and Peralta, LLC, ("Petitioner") an interested party in the estate, filed a
Petition by Interested Party to Establish Estate's Claim of Ownership to Property and for Order
Directing Its Transfer to Estate, for Order Distributing Property to Testamentary Trust, and for Order
Distributing Property From Such Trust ("Petition") on October 4, 2024. The Petition came on
regularly this date for hearing in the above-named Court. On proof being made to the satisfaction of
the Court, the Court now makes the following findings.

////

////

ORDER ESTABLISHING ESTATE'S CLAIM OF OWNERSHIP TO PROPERTY, ETC.

1 1. Decedent Charles W. Gompertz died on April 8, 1953, and his estate was subject to a
2 probate proceeding in this Court. Decedent's Will and codicil were admitted to probate, and John L.
3 Gompertz and Crocker First National Bank of San Francisco were appointed as executors.

4 2. A Decree of Settlement of First and Final Account and Report of Executors, Order
5 Allocating Statutory Fees of Executors, Allowing Compensation for Extraordinary Services of
6 Executors and Allocating Such Compensation, and of Final Distribution ("Estate Decree of
7 Distribution") was issued by this court on September 22, 1954.

8 3. Pursuant to the Estate Decree of Distribution, all of the residuary assets of Charles'
9 estate were all distributed to Crocker First National Bank of San Francisco, as trustee of a trust under
10 Article Seventh of the decedent's Will for the benefit of his surviving wife, Anita T. Gompertz
11 ("Trust for Anita"). As described further below, such trust was later distributed following Anita's
12 death in 1956 to the two children of Charles and Anita, namely John L. Gompertz and Ruth
13 Gompertz Watson. At the later deaths of such two beneficiaries, their estates were in turn distributed
14 to their own descendants (as described further below), seven of whom, namely Leslie Ellen Adams,
15 Paul Taggard Adams, Lauren Watson Cesare, Linda Watson, Lisa C. Watson, Douglas C. Watson
16 and David G. Watson (the "Beneficiaries") have now discovered that a parcel of undeveloped real
17 property in San Francisco was erroneously not inventoried as part of the estate and therefore not
18 distributed to such trust upon distribution of the estate.

19 4. The parcel that is the subject of this petition is now known as Mission Block 139,
20 Assessor's Parcel Number 3639-036A (the "Property" or "Parcel 36A"), which is more particularly
21 described in the Petition and in the Order, below.

22 5. The Beneficiaries have each entered into a Purchase and Sale Agreement for their
23 interests in the Property with petitioner 17th and Peralta, LLC, so that petitioner is an interested party
24 to the estate, and has an interest in having this court confirm that the Property is indeed an asset of the
25 estate.

26 6. Pursuant to California Probate Code section 850 (a)(2)(D), the court has the authority,
27 upon petition by an interested party, to confirm title to an asset in which a decedent had a claim.

28 ////

1 **FACTS SHOWING THAT PROPERTY IS PART OF ESTATE**

2 7. The Property is identified as an asset owned by The John Center Company in a
3 Findings of Fact, Conclusions of Law and Decree (“1912 Decree”) issued by the Superior Court of
4 California for the City and County of San Francisco dated March 8, 1912, Case No. 19,851.

5 8. The 1912 Decree was the result of a lawsuit by the Southern Pacific Railroad
6 Company, as plaintiff, to determine its rights to certain real property in San Francisco County,
7 including the Property which is the subject of this petition.

8 9. The 1912 Decree on page 356 references as “Parcel 28” the following land:

9 **Parcel 28:**

10 Commencing at the intersection of the Southerly line of Twenty-second
11 Street with the center line of Southern Pacific Railroad Company’s
12 constructed railroad main line, and running thence Westerly and along
13 the said Southerly line of Twenty-second Street to a point distant thirty
14 (30) feet from the aforesaid center line measured radially in a
15 Northwesterly direction therefrom; thence Southwesterly parallel to and
16 uniformly distant thirty (30) feet from said center line to an intersection
17 with the Easterly line of Treat Avenue; thence Southerly and along the
18 said Easterly line of Treat Avenue, crossing the said center line, to a
19 point distant thirty (30) feet from the said center line measured radially
20 in a Southeasterly direction therefrom; thence Northwesterly parallel to
21 an uniformly distant thirty (30) feet from said center line to an
22 intersection with the Westerly line of Harrison Street; thence Northerly
23 and along the said Westerly line of Harrison Street to the Southerly line
24 of Twenty-second Street; thence Westerly and along the said Southerly
25 line of Twenty-second Street to the point of commencement, being a
26 portion of Mission Block Number One Hundred and Thirty-nine (139).

27 10. Attached as Exhibit 7 to the Petition is a Declaration of Charles Whitecotton, a
28 professional title consultant, stating that he has reviewed the 1912 Decree and has concluded that the
Property is indeed described as part of what was then referred to as “Parcel 28” in the 1912 Decree.

 11. The 1912 Decree expressly confirms that Parcel 28, and therefore the Property, was
owned by The John Center Company, subject to a right of way to the Southern Pacific Railroad
Company for railroad purposes, “provided that in the event the use of said land as a right of way for
said railroad should at any time be abandoned or should at any time be discontinued for a period of

1 six months, the title and right to possess thereof should revert to [The John Center Company]...” See
2 the 1912 Decree at page 356.

3 12. The Property was owned by The John Center Company, subject to the right of way to
4 Southern Pacific Railroad, until 1934, when The John Center Company transferred all its assets to the
5 decedent herein, Charles W. Gompertz, as described further below.

6 13. Petitioner has exhaustively researched the records of the San Francisco Recorder’s
7 office, and determined that there were no documents recorded that transferred title for the Property
8 from The John Center Company to any other party during the period from 1912 to 1934. A
9 declaration of Joanne Parrent, a professional researcher and California licensed private investigator,
10 attached to the Petition as Exhibit 8 documents the review she made of such records, concluding that
11 there was no recorded transfer that includes the Property during such period. Petitioner believes that
12 the Property was still owned by The John Center Company in 1934.

13 14. In an Indenture dated February 15, 1934 (the “1934 Indenture”) recorded with the San
14 Francisco Recorder’s office on February 28, 1934, as Document No. I-34749, The John Center
15 Company transferred all its assets to Charles W. Gompertz upon dissolution of the Company. The
16 above-mentioned Declaration of Joanne Parrent confirms that she obtained the copy of the 1934
17 Indenture in her review of the files of the San Francisco Recorder’s office.

18 15. The 1934 Indenture references thirteen specific parcels of real property as part of such
19 transfer to the decedent (none of which include the Property), and then further includes in the sale
20 “all other property, both real and personal, of every kind, nature and description belonging to The
21 John Center Company, or in which it has any interest and wheresoever situate,... together with the
22 tenements, hereditaments and appurtenances thereto belonging or appertaining, and the reversion and
23 reversions, remainder and remainders, rents, issues and profits thereof.” The 1934 Indenture
24 confirms all such assets to Charles W. Gompertz, “... to have and to hold the said premises, together
25 with the appurtenances, unto [Charles W. Gompertz], and to his heirs and assigns forever.”

26 16. Attached as Exhibit 10 to the Petition is a Title Guarantee dated July 19, 2024 issued
27 by Chicago Title Company (the “Title Report”) specifically for the Property (i.e., Parcel 36A), and
28 listing all recorded documents relating to the Property. The property description attached to The Title

1 Report as Exhibit “A” is identical to the description of the Property attached to the petition as Exhibit
2 2.

3 17. The Title Report, in its Schedule B, lists just eight recorded documents relating to the
4 Property. Document #3 is the 1912 Decree, and Document #4 is the 1934 Indenture. The Title
5 Report confirms that there were no recorded transfers of the Property between 1912 and 1934.

6 18. Documents #1 and #2, recorded in 1908 and 1909, respectively, predate the 1912
7 Decree and affirm ownership of the Property by court orders issued pursuant to the McEnerney Act,
8 which allowed land owners to confirm title to their land following the loss of the City’s records in the
9 1906 fire. Those deeds are superseded by the 1912 Decree.

10 19. Documents #5 and #7, which both post date the acquisition of the Property by the
11 decedent, are purported transfers by George Center to the Heinzer family and to their revocable trust,
12 but such transfers are moot because the Property was not owned by George Center; it was already
13 owned by the decedent. In any case, Document #8, executed in 2023, is a quitclaim of any interest of
14 the Heinzers to 17th and Peralta, LLC, thus extinguishing any interest of the Heinzers in the Property.

15 20. In the above-mentioned Declaration of Charles Whitecotton, he confirms that he has
16 reviewed the Title Report and has concluded that the Property was owned by The John Center
17 Company in 1934 and was part of the assets transferred to Charles Gompertz pursuant to the
18 “omnibus” clause in the 1934 Indenture that includes in the transfer “all other property” of The John
19 Center Company.

20 21. Petitioner believes that the Property was not expressly listed in the 1934 Indenture
21 because the parties at that time erroneously assumed that because Southern Pacific Railroad was still
22 using the property in its business, there was not a conveyable interest to be included in the sale to
23 decedent.

24 **OWNERSHIP BY DECEDENT FOLLOWING PURCHASE**

25 22. Petitioner has researched the ownership of the Property from the time of its purchase
26 by decedent in 1934 until the decedent’s death on April 8, 1953. As documented in the above
27 referenced Declaration of Joanne Parrent, she reviewed the records of the San Francisco Recorder’s
28 office for that period, and found no deeds or other transfers of land that include the Property. That

1 conclusion is confirmed by the Title Report, which shows no transfer of the Property during such
2 time period.

3 23. Petitioner therefore believes that the Property was an asset owned by decedent at the
4 time of his death, and should therefore be confirmed by this Court as an asset of his estate.

5 **TERMINATION OF SOUTHERN PACIFIC RIGHT OF WAY**

6 24. Attached as Exhibit 11 to the Petition is a Disclaimer and Release of Interest In Real
7 Property and Withdrawal of Notice of Pending Action ("Release") executed by Southern Pacific
8 Transportation Company on October 22, 1996 and recorded on November 8, 1996, which Release is
9 listed as Document #6 in the Title Report. As explained in the Declaration of Charles A.
10 Whitecotton, he has reviewed the Release and the legal description of the property covered by the
11 Release, and has concluded that Southern Pacific thereby released all their interest in Parcel 36A. As
12 a result, their easement for a right of way terminated and reverted to the fee owner, and they no
13 longer have any interest in the Property.

14 **DISTRIBUTION TO TRUST FOR ANITA**

15 25. As set forth in the Estate Decree of Distribution, the assets of decedent's residuary
16 estate were distributed to the Trust For Anita, which is also subject to the jurisdiction of this Court in
17 the same proceeding as the decedent's estate.

18 26. The Petitioner therefore believes that decedent's interest in the Property should be
19 confirmed as an asset of the Trust For Anita, subject to the provisions of that trust.

20 27. The Trust for Anita, which was initially funded pursuant to the Estate Decree of
21 Distribution, remained in effect for the lifetime of Anita T. Gompertz. The trustee of that trust,
22 Crocker First National Bank of San Francisco, filed periodic accountings with this Court in the same
23 proceeding as for the decedent's estate. The final such accounting was the Eleventh and Final
24 Account and Report, which was filed on April 23, 1965 by the trustee following the death of Anita T.
25 Gompertz, covering the period from September 22, 1964 to March 11, 1965. In the Order Settling
26 and Approving Eleventh and Final Account and Report of Crocker-Citizens National Bank, as
27 Trustee, Allowing Trustee's Fees and Attorney's Fees, and of Final Distribution of Trust Assets
28

1 (“Trust Decree of Distribution”), all the assets of the trust were distributed in equal shares outright to
2 John L. Gompertz and Ruth Gompertz Watson, both of whom were then living.

3 28. Accordingly, decedent’s interest in the Property should have been distributed 50% to
4 John L. Gompertz and 50% to Ruth Gompertz Watson from the Trust for Anita, and Petitioner seeks
5 an order of this court confirming such distribution.

6 29. Both John L. Gompertz and Ruth Gompertz Watson have since died.

7 30. Ruth Gompertz Watson had two children, Janet Watson Adams and Franklin H.
8 Watson III. Janet Watson Adams died in 2021, leaving two children, namely Leslie Ellen Adams and
9 Paul Taggard Adams, who are two of the Beneficiaries. Franklin H. Watson III died in 2017, leaving
10 five children, all of whom are now living, namely Lauren Watson Cesare, Linda Watson, Lisa C.
11 Watson, Douglas C. Watson and David G. Watson, who are the remaining Beneficiaries.

12 31. Attached as Exhibit 13 to the Petition is a true and correct copy of the Amended Trust
13 Agreement dated March 12, 1979, for which Ruth G. Watson was Trustor, confirming that she left
14 her assets in equal shares for the benefit of her two children, Janet Watson Adams and Franklin H.
15 Watson III.

16 32. Attached as Exhibit 14 to the Petition is a true and correct copy of the Janet W. and
17 Russell B. Adams, Jr. Living Trust Agreement dated April 23, 1991, along with Amendment Number
18 Two to said Agreement, which together confirm that Janet Watson Adams’ assets were distributed
19 after the deaths of Janet Watson Adams and her husband to their two children, Leslie Adams and
20 Paul Adams.

21 33. Attached as Exhibit 15 to the Petition is a true and correct copy of the Franklin and
22 Marilyn Watson Trust dated December 15, 1992, confirming that his assets were distributed
23 following the deaths of Franklin Watson and his wife to their five children, namely Linda Watson,
24 Lisa Watson, Lauren Watson Cesare, Douglas C. Watson and David G. Watson.

25 34. Petitioner intends to file separate actions in the proceedings for the estates of Ruth
26 Gompertz Watson, Janet Watson Adams and Franklin H. Watson III to confirm the interests of their
27 successor beneficiaries. Petitioner believes that the copies of their respective revocable trusts are
28 sufficient for this court to respect the potential interests of the Beneficiaries for purposes of allowing

1 petitioner to be an interested party and thereby proceed with this petition to determine ownership of
2 the Property. Petitioner is not asking the court to opine on the validity of the trusts for those three
3 deceased individuals, but offers the copies of the trust instruments to allow the court to make a ruling
4 as to the interests of Charles W. Gompertz and the Trust For Anita in the Property.

6 **COMMUNITY PROPERTY INTEREST OF ANITA**

7 35. In the Codicil of Charles W. Gompertz dated June 16, 1949 (which is attached as an
8 Exhibit to the Petition), he confirmed that any community property of his wife Anita T. Gompertz
9 was confirmed to her as her property.

10 36. To the extent Anita Gompertz had a community property interest in the Property, it
11 would have been subject to disposition under her own Will. Attached as Exhibit 17 to the Petition is
12 a copy of the Last Will and Testament of Anita T. Gompertz dated April 14, 1954, and the Codicil to
13 such Will dated February 17, 1960. Attached as Exhibit 18 to the Petition is a copy of the Decree of
14 Final Distribution dated April 18, 1966.

15 37. Pursuant to the Codicil of Anita T. Gompertz, all her assets were distributed in equal
16 shares to her grandchildren Franklin H. Watson III and Janet Watson Adams. Both such persons
17 have since died, and all their assets have been distributed to their own children, who are the seven
18 beneficiaries identified above. Thus, any community property interest of Anita T. Gompertz will
19 pass to beneficiaries who are also among the beneficiaries of the Trust For Anita.

20 38. Petitioner does not in this petition seek a specific confirmation of the distribution of
21 any such community property interest. The above explanation is included to demonstrate the
22 interests of the Beneficiaries in the Property.

23 NOW, THEREFORE, IT IS HEREBY ORDERED, ADJUDGED AND DECREED:

24 1. Charles W. Gompertz was the true owner of the real property located at Mission
25 Block 139, Assessor's Parcel Number 3639-036A, and such property is an asset of Charles W.
26 Gompertz's estate.

27 2. The real property located at Mission Block 139, Assessor's Parcel Number 3639-
28 036A was distributed from Charles W. Gompertz's estate, pursuant to the Estate Decree of

1 Distribution, to the trust under Article Seventh of decedent's Will for benefit of Anita T. Gompertz as
2 an asset of such trust.

3 3. The real property located at Mission Block 139, Assessor's Parcel Number 3639-036A
4 is an asset of such Trust, and was distributed pursuant to the Trust Decree of Distribution in equal
5 shares to the two residuary beneficiaries of such trust, namely John L. Gompertz, and Ruth Gompertz
6 Watson.

7 4. The real property located at Mission Block 139, Assessor's Parcel Number 3639-
8 036A, is legally described as follows

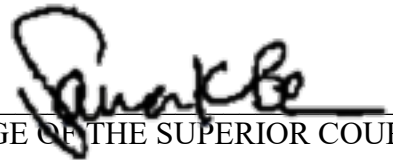
9 All that certain real property, situate in the City and County of San
10 Francisco, State of California, over a portion of the former SPRR
11 Right of Way per Judgement 19851 Recorded March 8, 1912 as
12 shown on Final Map No. 10057 filed on November 25, 2020 in
13 Book 1 of Final Maps at pages 126-129, San Francisco County
Records, as shown on Exhibit "B" made a part hereof, more
particularly described as follows:

14 Commencing at a point on the southerly corner of Lot 1 of said
15 Final Map No. 10057, said point being on the easterly line of Treat
16 Avenue (60 feet wide) as shown on said map (the bearing of Treat
17 Avenue taken as North 00°00'00" East for the purpose of this
description), said point also being the beginning of a non-tangent
18 curve to the left with a radius of 925.37 feet; thence leaving said
easterly line of Treat Avenue, from a tangent bearing North
19 43°38'21" East, along the southeasterly line of said Lot 1 and
along said curve, through a central angle of 1°33'58", distance of
20 25.29 feet to the Point of Beginning; thence continuing along last
said curve through a central angle of 5°59'06", a distance of 96.66
21 feet to the most easterly corner of said Lot 1, said point also being
the southwesterly corner of Parcel Three as described in that
22 certain Correction Grant Deed recorded September 20, 2023 in
Document No. 2023067950 of Official Records of San Francisco
23 County, thence along the southerly line of said parcel, South
24 90°00'00" East, 9.26 feet to the southeasterly corner of said parcel,
thence along the easterly line of said parcel, North 33°32'33" East,
25 71.99 feet to the most northerly corner of said parcel, thence along
the northerly line of said parcel, North 90°00'00" West, 8.79 feet
26 to the northwesterly line of said former SPRR Right of Way; said
27 point also being the beginning of a non-tangent curve to the left
28 with a radius of 925.37 feet; thence along said curve, from a

1 tangent bearing North 31°36'49" East, through a central angle of
2 8°42'52", a distance of 140.74 feet to the southerly line of 22nd
3 Street (64 feet wide) as shown on said map, along said southerly
4 line of 22nd Street, North 90°00'00" East, 62.25 to the westerly
5 line of Harrison Street (82.50 feet wide) as shown on said map;
6 thence along last said line, South 00°00'00" East, 6.39 feet to the
7 southeasterly line of said former SPRR Right of Way, said point
8 also being the beginning of a non-tangent curve to the right with a
9 radius of 985.37 feet; thence along said curve, from a tangent
10 bearing South 21°49'59" West, through a central angle of
11 11°45'04", a distance of 202.09 feet to northwesterly corner of Lot
12 1 of Final Map No. 7452 filed on October 4, 2013 in Book 122 of
13 Condominium Maps at pages 39-40, San Francisco County
14 Records; thence along the westerly projection of the northerly line
15 of said Lot 1, North 90°00'0" West, 28.70 feet to the intersection
16 with the northly projection of the westerly line of said Lot 1;
17 thence along said prolongation, South 00°00'00" East, 40.92 feet
18 to said southeasterly line of former SPRR Right of Way, said point
19 also being the beginning of a non-tangent curve to the right with a
20 radius of 985.37 feet; thence along said curve, from a tangent
21 bearing South 36°29'27" West, through a central angle of
22 2°30'22", a distance of 43.10 feet; thence leaving last said line,
23 North 90°00'00" West, 78.92 feet to the Point of Beginning.

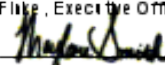
24
25
26
27
28
Containing 17, 277 square feet, more or less.

Dated: 08/04/2025, 2024


JUDGE OF THE SUPERIOR COURT

Sandra Bean / Judge

40042750.DOCX

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	FILED Superior Court of California County of Alameda 08/04/2025
PLAINTIFF/PETITIONER: 17th and Peralta	Chad Finke, Executive Officer / Clerk of the Court By:  Deputy
DEFENDANT/RESPONDENT:	T. Smith
CERTIFICATE OF ELECTRONIC SERVICE CODE OF CIVIL PROCEDURE 1010.6	CASE NUMBER: 24PR094104

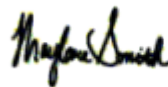
I, the below named Executive Officer/Clerk of Court of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served one copy of the Order re: To Establish Estate's Claim entered herein upon each party or counsel of record in the above entitled action, by electronically serving the document(s) from my place of business, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
tom@fomlaw.com

Dated: 08/04/2025

Chad Finke, Executive Officer / Clerk of the Court

By:



T. Smith, Deputy Clerk

1 Thomas B. Worth (State Bar No. 73232)
2 FRIEDMAN McCUBBIN LAW GROUP LLP
3 425 California Street, 25th Floor
4 San Francisco, California 94104
Telephone: (415) 434-2226
tom@fomlaw.com

5 Attorneys for Petitioner
6 17th and Peralta, LLC

ELECTRONICALLY FILED

Superior Court of California,
County of Alameda

10/30/2024 at 09:08:51 AM

By: Xian-xi Bowie,
Deputy Clerk

8 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

9 IN AND FOR THE COUNTY OF ALAMEDA

10
11 In the Matter of the Estate of
12 CHARLES W. GOMPERTZ,
13 also known as CHARLES WILLIAM
14 GOMPERTZ, AND C.W. GOMPERTZ,
15 Deceased.

Case No. 123,339

SUPPLEMENT TO PETITION BY
INTERESTED PARTY

Date: November 25, 2024

Time: 3:00 pm

Dept: 103

16
17
18
19 The undersigned THOMAS B. WORTH declares as follows:

20 1. I am the attorney for 17th and Peralta, LLC, the petitioner in the above matter.

21 2. I am filing this Supplement to provide information concerning potential beneficiaries
22 of the Estate of Charles W. Gompertz who were not specifically mentioned in the petition.

23 3. As explained in the petition, the assets of the estate of Charles W. Gompertz were
24 distributed to a trust for the benefit of his surviving wife, Anita T. Gompertz. At her later death, the
25 assets of that trust were distributed to their two children, Ruth Gompertz Watson and John L.
26 Gompertz.

27 4. The petition identifies the seven now living descendants of Ruth Gompertz Watson,
28 since they are the parties with whom 17th and Peralta LLC has a contractual relationship to purchase

SUPPLEMENT TO PETITION BY INTERESTED PARTY

1 their interests in the property in question. Notice of the hearing of the petition has been given to
2 those seven persons.

3 5. The petitioner does not at this time have a similar contractual relationship with the
4 descendants of John L. Gompertz, but since they are potential beneficiaries of the assets in the
5 Charles W. Gompertz estate, the petitioner has given notice to them as well.

6 6. John L. Gompertz, who is now deceased, had three children, namely Charles Bates
7 Gompertz, who is now deceased, Joann G. Martin (now living) and Margaret Gompertz-Huntington
8 (also now living).

9 7. Charles Bates Gompertz left four children; his children Margaret Gompertz, Ross
10 Gompertz and John Gompertz are now living. His fourth child, Pam G. Schmitz, is deceased, leaving
11 two children, Leslie Schmitz and Mary Charlotte Schmitz, both of whom are now living.

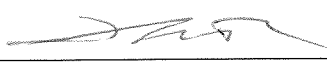
12 8. There are therefore now seven living descendants of John L. Gompertz, and notice of
13 the hearing has been set to them as well.

14 9. I am informed and believe that the assets of John L. Gompertz passed at his death to
15 his three children; that the interest of his deceased son Charles Bates Gompertz passed to his four
16 children; and that the interest of his deceased daughter Pam G. Schmitz passed to her two children.
17 The petition is not intended to ask for the court's findings of those inheritances; they are identified
18 only so that notice can be given to them as heirs of Charles W. Gompertz.

19 I declare under penalty of perjury that the foregoing is true and correct to the best of
20 my knowledge.

21 This Declaration is executed by me at San Francisco, California, on this 30th day of
22 October, 2024.

23
24 FRIEDMAN MCCUBBIN LAW GROUP LLP

25 
26 Thomas B. Worth,
27 Attorneys for Petitioner 17th and Peralta, LLC
28

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: THOMAS B. WORTH, ESQ. FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California St., 25th Fl. CITY: San Francisco STATE: CA ZIP CODE: 94104 TELEPHONE NO.: (415)434-2226 FAX NO.: EMAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC (Petitioner)	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 10/30/2024 at 01:54:18 PM By: Senaah Adams, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 661 Washington Street MAILING ADDRESS: CITY AND ZIP CODE: Oakland, CA 94607 BRANCH NAME: Wiley W. Manuel Courthouse	
☒ ESTATE OF (name): ☐ IN THE MATTER OF (name): Charles W. Gompertz aka Charles William Gompertz and C. W. Gompertz ☒ DECEDENT ☐ TRUST ☐ CONSERVATEE ☐ MINOR	
NOTICE OF HEARING ON PETITION TO DETERMINE CLAIM TO PROPERTY	CASE NUMBER: 24PR094104

A petition has been filed asking the court to determine a claim to the property identified in 3, and a hearing on the petition has been set. Please refer to the petition for more information.

If you have a claim to the property described in 3, you may attend the hearing and object or respond to the petition. If you do not want to attend the hearing, you may also file a written response before the hearing.

If you do not respond to the petition or attend the hearing, the court may make orders affecting ownership of the property without your input.

1. NOTICE is given that (name): 17TH AND PERALTA, LLC
 (fiduciary or representative capacity, if any):
 has filed a petition entitled (state complete title): Petition by Interested Party to Establish Estate's Claim of Ownership to Property under Probate Code section 850 asking for a court order determining a claim or claims to the property described in 3.

2. A HEARING on the petition will be held as follows:

Hearing Date	→	Date: Nov 25, 2024 Dept.: 103	Time: 3:00 p.m. Room:	Name and address of court if different from above:
--	---	----------------------------------	--------------------------	--

3. The property that is the subject of the petition is (describe each item of real or personal property; for real property—i.e., land or buildings—give the street address or, if none, describe the property's location and give the assessor's parcel number):
 Real property located in the City and County of San Francisco known as Mission Block 139, Assessor's Parcel Number 3639-036A.

☐ Continued on Attachment 3.

Check 4 only if the petition seeks the additional relief described.

4. ☐ In addition to seeking to recover the property described in 3, the petition also alleges and seeks relief for bad faith conduct, undue influence in bad faith, or elder or dependent adult financial abuse. The petition describes these allegations in detail. Based on the allegations, the petition seeks to recover twice the value of the property described in 3
☐ and requests that the court award attorney's fees and costs to the petitioner. (Prob. Code, § 859.)



Requests for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms for Request for Accommodations by Persons With Disabilities and Response (form MC-410). (Civ. Code, § 54.8.)

☒ ESTATE OF (name): ☐ IN THE MATTER OF (name): Charles W. Gompertz aka Charles William Gompertz and C. W. Gompertz	CASE NUMBER: 24PR094104
☒ DECEDENT ☐ TRUST ☐ CONSERVATEE ☐ MINOR	

PROOF OF SERVICE BY MAIL*

1. I am over the age of 18 and not a party to this cause. I am a resident of or employed in the county where the mailing occurred.
2. My residence or business address is (specify):
 425 California Street, 25th Fl.
 San Francisco, CA 94104
3. I served the foregoing *Notice of Hearing on Petition to Determine Claim to Property* on each person named below by enclosing a copy in an envelope addressed as shown below AND
 - a. ☐ **depositing** the sealed envelope on the date and at the place shown in item 4 with the U.S. Postal Service with the postage fully prepaid.
 - b. ☒ **placing** the envelope for collection and mailing on the date and at the place shown in item 4 following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the U.S. Postal Service in a sealed envelope with postage fully prepaid.
4. a. Date mailed: October 30, 2024
 b. Place mailed (city, state): San Francisco, CA
5. ☒ I served with the *Notice of Hearing on Petition to Determine Claim to Property* a copy of the petition referred to in the Notice.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: October 30, 2024

Christine mustin

(TYPE OR PRINT NAME)

Christine Mustin

(SIGNATURE)

NAME AND ADDRESS OF EACH PERSON TO WHOM NOTICE WAS MAILED

	Name	Address (street & number, city, state, zip code)
1.	SEE ATTACHED SERVICE LIST	
2.		
3.		
4.		
5.		
6.		

☐ Continued on an attachment. (You may use Attachment to Notice of Hearing Proof of Service by Mail, form DE-120(MA)/GC-020(MA), for this purpose.)

* Do **not** use this form to prove personal or electronic service. You may use form DE-120(P) or GC-020(P) to prove personal service.

SERVICE LIST

Leslie Ellen Adams 1288 Pine Creek Way, Apt. C Concord, CA 94520	Ross Gompertz P.O. Box 713 Nicasio, CA 94946
Paul Taggard Adams 5108 Turnberry Court Elk Grove, CA 95758	Margaret Gompertz 930 George Street, #14 Novato, CA 94945
Lauren Watson Cesare 1521 Cherry Valley Drive San Jose, CA 95125	John Gompertz 543 Tarragon Drive San Rafael, CA 94903
Linda Watson 25743 Flanders Place Carmel, CA 93923-8303	Joanne Gompertz Martin 913 So. Eliseo Drive Greenbrae, CA 94904
Lisa C. Watson 25743 Flanders Place Carmel, CA 93923-8303	Leslie Schmitz 163 Moffitt Street San Francisco, CA 94131
Douglas C. Watson 333 Gladys Drive Pleasant Hill, CA 94523	Mary Charlotte Schmitz 119 28 th Street San Francisco, CA 94131
David G. Watson 14 Cardiff Place Alamo, CA 94507	
Elizabeth "Liz" Huntington 324 San Francisco Boulevard San Anselmo, CA 94960	

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA		Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607		FILED Superior Court of California County of Alameda 11/20/2024 Chad Finke, Executive Officer / Clerk of the Court By: <u><i>A. Rios</i></u> Deputy A. Rios
PLAINTIFF: 17th and Peralta		
DEFENDANT:		
NOTICE OF CASE RESCHEDULING OR RELOCATION		CASE NUMBER: 24PR094104

TO THE PARTIES:

You are hereby notified that the above-entitled matter, previously set for

Initial Petition for Trust Petition to Confirm Trust Assets as follows:

Wiley W. Manuel Courthouse on 11/25/2024 at 3:00 PM in Department 103

has been rescheduled, or relocated, as follows:

Wiley W. Manuel Courthouse on 02/26/2025 at 3:00 PM in Department 103

Chad Finke, Executive Officer / Clerk of the Court

Dated: 11/20/2024

By A. Rios
Deputy Clerk

NOTICE OF CASE RESCHEDULING OR RELOCATION

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp FILED Superior Court of California County of Alameda 11/20/2024 Chad Finke, Executive Officer / Clerk of the Court By: <u><i>sefu</i></u> Deputy A. Rios
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	
PLAINTIFF/PETITIONER: 17th and Peralta	
DEFENDANT/RESPONDENT:	CASE NUMBER: 24PR094104
CERTIFICATE OF MAILING	

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the attached document upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Oakland, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
425 California Street 25th Floor
San Francisco, CA 94104

Dated: 11/20/2024

Chad Finke, Executive Officer / Clerk of the Court

By:

sefu

A. Rios, Deputy Clerk

CERTIFICATE OF MAILING

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp FILED Superior Court of California County of Alameda 01/17/2025 Chad Finke, Executive Officer / Clerk of the Court By: <u><i>A. Rios</i></u> Deputy A. Rios
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	
PLAINTIFF: 17th and Peralta DEFENDANT:	
NOTICE OF CASE RESCHEDULING OR RELOCATION	CASE NUMBER: 24PR094104

TO THE PARTIES:

You are hereby notified that the above-entitled matter, previously set for

Initial Petition for Trust Petition to Confirm Trust Assets as follows:

Wiley W. Manuel Courthouse on 02/26/2025 at 3:00 PM in Department 103

has been rescheduled, or relocated, as follows:

Wiley W. Manuel Courthouse on 04/15/2025 at 3:00 PM in Department 103

Chad Finke, Executive Officer / Clerk of the Court

Dated: 01/17/2025

By A. Rios
Deputy Clerk

NOTICE OF CASE RESCHEDULING OR RELOCATION

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	FILED Superior Court of California County of Alameda 01/17/2025
PLAINTIFF/PETITIONER: 17th and Peralta	Chad Finke, Executive Officer / Clerk of the Court By: <u><i>sefu</i></u> Deputy
DEFENDANT/RESPONDENT:	A. Rios
CERTIFICATE OF MAILING	CASE NUMBER: 24PR094104

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the attached document upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Oakland, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
425 California Street 25th Floor
San Francisco, CA 94104

Chad Finke, Executive Officer / Clerk of the Court

Dated: 01/17/2025

By:

sefu

A. Rios, Deputy Clerk

CERTIFICATE OF MAILING

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	FILED Superior Court of California County of Alameda 01/17/2025
PLAINTIFF/PETITIONER: 17th and Peralta	Chad Finke, Executive Officer / Clerk of the Court By: <u><i>sefu</i></u> Deputy
DEFENDANT/RESPONDENT:	A. Rios
CERTIFICATE OF ELECTRONIC SERVICE CODE OF CIVIL PROCEDURE 1010.6	CASE NUMBER: 24PR094104

I, the below named Executive Officer/Clerk of Court of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served one copy of the Notice of Case Rescheduling or Relocation entered herein upon each party or counsel of record in the above entitled action, by electronically serving the document(s) from my place of business, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
tom@fomlaw.com

Dated: 01/17/2025

Chad Finke, Executive Officer / Clerk of the Court

By:

sefu

A. Rios, Deputy Clerk

1 THOMAS B. WORTH, SBN 73232
2 FRIEDMAN McCUBBIN LAW GROUP LLP
3 425 California Street, 25th Floor
4 San Francisco, CA 94104
5 Telephone: (415) 434-2226
6 Tom@fomlaw.com

7 Attorneys for 17th and Peralta, LLC

ELECTRONICALLY FILED

Superior Court of California,
County of Alameda

01/31/2025 at 01:20:51 PM

By: Xian-xii Bowie,
Deputy Clerk

8 SUPERIOR COURT OF THE STATE OF CALIFORNIA
9 COUNTY OF ALAMEDA

10 In the Matter of the Estate of:

11 CHARLES W. GOMPERTZ,

12 Also known as CHARLES WILLIAM
13 GOMPERTZ, and C.W. GOMPERTZ
14 Deceased.

) Case No.: 24PR094104

)
) EX PARTE REQUEST TO CONTINUE
) HEARING DATE

) Hearing Date: April 15, 2025

) Department: 103

) Time: 3:00 p.m.

15
16
17 The undersigned respectfully alleges:

18 1. I am the attorney for Petitioner 17th and Peralta, LLC ("Petitioner").

19 2. On October 4, 2024 I filed a Petition by Interested Party to Establish Estate's
20 Claim of Ownership to Property and for Order Directing Its Transfer to Estate, for Order
21 Distributing Property to Testamentary Trust, and for Order Distributing Property From Such
22 Trust ("the Petition") on behalf of Petitioner. The originally scheduled hearing date for the
23 Petition was November 25, 2024.

24 3. On November 20, 2024, the Court filed a Notice of Case Rescheduling or
25 Relocation, providing notification that the hearing had been rescheduled from November 25,
26 2024 to February 26, 2025.

27 4. On January 17, 2025, the Court filed a Notice of Case Rescheduling or
28

1 Relocation, providing notification that the hearing had been rescheduled from February 26,
2 2025 to April 15, 2025.

3 5. I will be out of the country on April 15, 2025 and therefore request that the
4 hearing be rescheduled to the earliest available date after April 21, 2025.

5 I declare under Penalty of Perjury under the laws of the State of California that the
6 foregoing is true and correct.

7 Executed this 31st day of January, 2025 at San Francisco, California.

8
9 FRIEDMAN McCUBBIN LAW GROUP, LLP

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11 
12 THOMAS B. WORTH, ESQ. Attorneys for
13 Petitioner, 17th and Peralta, LLC
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SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA		Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607		FILED Superior Court of California County of Alameda 01/31/2025 Chad Finke, Executive Officer / Clerk of the Court By: <u><i>A. Rios</i></u> Deputy A. Rios
PLAINTIFF: 17th and Peralta		
DEFENDANT:		
NOTICE OF CASE RESCHEDULING OR RELOCATION		CASE NUMBER: 24PR094104

TO THE PARTIES:

You are hereby notified that the above-entitled matter, previously set for

Initial Petition for Trust Petition to Confirm Trust Assets as follows:

Wiley W. Manuel Courthouse on 04/15/2025 at 3:00 PM in Department 103

has been rescheduled, or relocated, as follows:

Wiley W. Manuel Courthouse on 06/10/2025 at 3:00 PM in Department 103

Ex Parte Granted: This matter has been continued to the Courts next available date.

Chad Finke, Executive Officer / Clerk of the Court

Dated: 01/31/2025

By A. Rios
Deputy Clerk

NOTICE OF CASE RESCHEDULING OR RELOCATION

SUPERIOR COURT OF CALIFORNIA COUNTY OF ALAMEDA	Reserved for Clerk's File Stamp
COURTHOUSE ADDRESS: Wiley W. Manuel Courthouse 661 Washington Street, Oakland, CA 94607	FILED Superior Court of California County of Alameda 01/31/2025
PLAINTIFF/PETITIONER: 17th and Peralta	Chad Finke, Executive Officer / Clerk of the Court By: <u><i>sefu</i></u> Deputy
DEFENDANT/RESPONDENT:	A. Rios
CERTIFICATE OF MAILING	CASE NUMBER: 24PR094104

I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the attached document upon each party or counsel named below by placing the document for collection and mailing so as to cause it to be deposited in the United States mail at the courthouse in Oakland, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with the postage thereon fully prepaid, in accordance with standard court practices.

Thomas B. Worth
Friedman McCubbin Law Group LLP
425 California Street 25th Floor
San Francisco, CA 94104

Chad Finke, Executive Officer / Clerk of the Court

Dated: 01/31/2025

By:

sefu

A. Rios, Deputy Clerk

CERTIFICATE OF MAILING

[] Ex Parte Date: 05/09/2025 By: CC

Case Number: 24PR094104

Case Title: IN RE: CHARLES W. GOMPERTZ

Petition: PETITION BY INTERESTED PARTY TO ESTABLISH ESTATE'S CLAIM OF OWNERSHIP TO PROPERTY AND FOR ORDER DIRECTING ITS

Date Filed: 10/04/2024

Petitioner: 17th and Peralta, LLC

Attorney for Petitioner: Thomas B. Worth

Hearing: 06/10/2025 3:00 PM

STANDING OF PETITIONER(S) (17200):

Petitioner, 17th and Peralta, LLC, is alleged to be an interested party.

PROPER VENUE (17005):

COURT REVIEW:

Per item 1, it is alleged that the estate of Charles W. Gompertz was subject to probate proceeding in this Court. (Attached as Exhibit 1 is a copy of the Estate Decree of Distribution issued by this court on 9/22/54, case #123,339). Per item 25, it is also alleged the testamentary trust for Anita T. Gompertz, as set forth in the estate Decree of Distribution, is subject to the jurisdiction of this Court.

NOTICE:

Notice (DE-115) was filed on 10/30/2024; served on 10/30/2024 for hearing on 11/25/24.

ISSUE 1 - Examiner cannot review if all persons entitled to notice were served; Petition omits names and addresses of persons entitled to notice (see related issue noted below).

ISSUE 2 - Ross Gompertz needs to be Noticed at a street address, and not a Post Office Box, or a Declaration provided. See PC 1215(d)

NAMES AND ADDRESSES OF EACH PERSON ENTITLED TO NOTICE LISTED IN THE PETITION (17201):

NO

ISSUE 3 - Names and addresses of each person entitled to notice is omitted from petition.

PETITION REQUESTS FOR THE FOLLOWING ORDERS:

WHEREFORE, petitioner requests the court to determine as follows:

1. That the decedent was the true owner of the Property and to order that the Property be considered an asset of the decedent's estate;
2. That the Property was distributed from decedent's estate, pursuant to the Estate Decree

of Distribution, to the trust under Article Seventh of decedent's Will for benefit of Anita T. Gompertz as an asset of such trust;

3. That the Property, as an asset of such Trust, was distributed pursuant to the Trust Decree of Distribution in equal shares to the two residuary beneficiaries of such trust, namely John L. Gompertz, and Ruth Gompertz Watson; and

4, For such other orders as the court may find appropriate.

SUMMARY OF SUPPORTING FACTS:

For Court Review.

PROBATE CODE 16061.7 NOTICE:

Not addressed; appears not applicable.

BANK STATEMENTS OR DEEDS:

Deeds and other documents regarding title history are attached.

ADDITIONAL NOTES:

ORDER:

Proposed Order submitted on 11/05/2024 appears proper.

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA
BEFORE THE HONORABLE SANDRA BEAN, JUDGE PRESIDING
DEPARTMENT NUMBER 103
---oOo---
IN RE:)
Case No. 24PR094104
CHARLES W. GUMPERTZ)
_____)
)

**CERTIFIED
TRANSCRIPT**

REPORTER'S TRANSCRIPT OF PROCEEDINGS
Wiley W. Manuel Courthouse
Oakland, California
TUESDAY, JUNE 10, 2025

A P P E A R A N C E S
For the Petitioner: THOMAS B. WORTH
Attorney at Law

Reported by: Catherine C. Luy, CSR #14040

1 TUESDAY, JUNE 10, 2025 3:33 p.m.

2

3 P R O C E E D I N G S

4 ---000---

5

6 THE COURT: Calling the matter of the Charles W. Gumpertz
7 matter. This is petition by interested party to establish a
8 estate's claim of ownership to property and for order directing
9 its -- something.

10 Counsel, you want to state your appearance?

11 MR. WORTH: Thomas Worth attorney for 17th and Peralta,
12 petitioner.

13 THE COURT: So we do have some procedural issues. Did
14 you see these?

15 MR. WORTH: I did, Your Honor, and I wanted to respond,
16 if I could?

17 THE COURT: So that needs to be a declaration under
18 penalty of perjury in regard to these issues, and notice is
19 huge, as you know, because that's where we get our jurisdiction.

20 MR. WORTH: So, Your Honor, we did give notice to all of
21 the beneficiaries, and there's a proof of notice on file.

22 THE COURT: Okay. Let me look.

23 MR. WORTH: Examiner was also concerned that the names of
24 the various parties to the trust were not in the petition, but
25 we did file a supplement that had all of those names in it. So
26 there's a petition and a supplement that does have all the
27 names.

28 THE COURT: Okay. Let me look at that. The names and

1 the addresses?

2 MR. WORTH: The addresses are in the proof of service.

3 THE COURT: So the point is that we have to have a
4 document under penalty of perjury, so you have a verified
5 petition that says who are the people that need to get notice
6 and their addresses, and so then that's verified under penalty
7 of perjury. It's a double-check to make sure that we have
8 everybody noticed because of the in rem jurisdiction that we
9 have. So that's important, not just to tell us who they are,
10 but also the names and addresses.

11 MR. WORTH: Okay, Your Honor.

12 THE COURT: It's a technical issue that probate follows.

13 MR. WORTH: So we would take the names and addresses that
14 are in the proof of service and put those into a separate
15 declaration that would be filed with the court?

16 THE COURT: Right, and then you had somebody that didn't
17 have a street address?

18 MR. WORTH: That's right. There was one person who uses
19 a post office box.

20 THE COURT: We have to have a physical address.

21 MR. WORTH: So, Your Honor, the examiner cited probate
22 code section 1215(d). I could not find that section in the
23 code.

24 THE COURT: Let's see what they were talking about. It's
25 true that we need a physical address, and if it's a situation
26 where it's a rural area and they only have a post office box and
27 the mail doesn't get delivered, then you can do a declaration,
28 but typically that is something that we require.

1 MR. WORTH: Okay. Your Honor, I didn't find that in the
2 statute. Is that in the local rules then?

3 THE COURT: No, it's not local rules. Let me just see.

4 MR. WORTH: The beneficiary does live in Nicasio, which I
5 believe is rural, but I don't have a declaration to that effect.

6 THE COURT: You're right. They've cited the wrong code
7 section because there is not a (d).

8 MR. WORTH: That's correct. The 1215 is, of course, the
9 notice section, but I didn't find anything that talked about the
10 need for a street address.

11 THE COURT: Right. So if you look at 1215(a)(3), the
12 notice or other papers shall be addressed to the person at the
13 person's place of business or place of residence, and it's been
14 the practice of this probate court to always require an address,
15 not a post office box. And there are circumstances that people
16 will do declarations that the person absolutely doesn't have a
17 physical address and we can accept that, but because of the
18 nature of these types of hearings, the notice is absolutely
19 critical. So then the examiner can't review and file a person
20 entitled to notice who are served. The petitioner omits names
21 and addresses. And then you did supplement with the names, but
22 not addresses. So we double check it.

23 MR. WORTH: Your Honor, do you feel we need to give
24 notice again, since they've already received notice?

25 THE COURT: I think you need to deal with the post office
26 box, and I think you need to do a declaration under penalty of
27 perjury, not just the proof of service, that those are the
28 people entitled to notice and that this is where they live.

1 MR. WORTH: Very good, Your Honor. I can try to find out
2 whether this gentleman, Ross Gumpertz, has a street address.

3 THE COURT: And you can do that declaration, if you need
4 to.

5 MR. WORTH: Okay. Thank you, Your Honor.

6 THE COURT: Madam Clerk, can we get a continuance?

7 THE COURTROOM CLERK: August 4th, at 3:30.

8 THE COURT: How about August the 4th at 3:30?

9 MR. WORTH: Let me take a look, Your Honor.

10 Okay. That would be fine. That's a Monday?

11 THE COURT: It is.

12 MR. WORTH: Okay.

13 THE COURT: Thank you.

14 MR. WORTH: Your Honor, I understand we do not need to
15 notice the people again. We're simply filing the declaration
16 with the names and addresses and then dealing with the post
17 office box?

18 THE COURT: Well, assuming that the post office box is
19 the only address; otherwise, you need to re-notice. In every
20 probate petition -- I don't know if you normally practice
21 probate. In every probate petition, we require that all the
22 heirs be listed in the petition's body with the address under
23 penalty of perjury.

24 MR. WORTH: Okay, Your Honor.

25 THE COURT: Okay. Thank you.

26 MR. WORTH: Thanks.

27 (Whereupon, proceedings concluded at 3:41 P.M.)

28 ---o0o---

1 STATE OF CALIFORNIA)
2 COUNTY OF ALAMEDA) ss
3

4 I, CATHERINE C. LUY, Certified Shorthand Reporter do
5 hereby certify:

6 That I am an official court reporter of the Superior Court
7 of the State of California, and that as such I reported the
8 proceedings had in the above-entitled matter at the time and
9 place set forth herein;

10 That my stenograph notes were thereafter transcribed into
11 typewriting under my direction, and that the foregoing pages
12 constitute a full, true, and correct transcription of my said
13 notes.

14
15 DATED: 24TH day of October, 2025
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18 *Catherine C. Luy*
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21 CATHERINE C. LUY, CSR No. 14040
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	attorney 2:11	delivered 3:27	interested 2:7
(	August 5:7,8	directing 2:8	issue 3:12
(d) 4:7	B	document 3:4	issues 2:13,18
-	beneficiaries 2:21	double 4:22	J
---ooo--- 2:4 5:28	beneficiary 4:4	E	JUNE 2:1
1	body 5:22	effect 4:5	jurisdiction 2:19 3:8
10 2:1	box 3:19,26 4:15,26 5:17,18	entitled 4:20,28	L
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17th 2:11	Charles 2:6	F	M
2	check 4:22	feel 4:23	Madam 5:6
2025 2:1	circumstances 4:15	file 2:21,25 4:19	mail 3:27
3	cited 3:21 4:6	filed 3:15	make 3:7
3:30 5:7,8	claim 2:8	filing 5:15	matter 2:6,7
3:33 2:1	Clerk 5:6,7	find 3:22 4:1,9 5:1	Monday 5:10
3:41 5:27	code 3:22,23 4:6	fine 5:10	N
4	concerned 2:23	G	names 2:23,25,27,28 3:10,13 4:20,21 5:16
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A	continuance 5:6	give 2:20 4:23	Nicasio 4:4
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accept 4:17	Counsel 2:10	Gumpertz 2:6 5:2	noticed 3:8
address 3:17,20,25 4:10,14,17 5:2,19,22	court 2:6,13,17,22,28 3:3,12,15,16,20,24 4:3, 6,11,14,25 5:3,6,8,11, 13,18,25	H	O
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assuming 5:18	dealing 5:16	I	
	declaration 2:17 3:15, 27 4:5,26 5:3,15	important 3:9	
	declarations 4:16		

P	residence 4:13 respond 2:15 review 4:19 Ross 5:2 rules 4:2,3 rural 3:26 4:5	W
p.m. 2:1 5:27 papers 4:12 parties 2:24 party 2:7 penalty 2:18 3:4,6 4:26 5:23 people 3:5 4:15,28 5:15 Peralta 2:11 perjury 2:18 3:4,7 4:27 5:23 person 3:18 4:12,16,19 person's 4:13 petition 2:7,24,26 3:5 5:20,21 petition's 5:22 petitioner 2:12 4:20 physical 3:20,25 4:17 place 4:13 point 3:3 post 3:19,26 4:15,25 5:16,18 practice 4:14 5:20 probate 3:12,21 4:14 5:20,21 procedural 2:13 proceedings 5:27 proof 2:21 3:2,14 4:27 property 2:8 put 3:14	S section 3:22 4:7,9 separate 3:14 served 4:20 service 3:2,14 4:27 simply 5:15 situation 3:25 state 2:10 statute 4:2 street 3:17 4:10 5:2 supplement 2:25,26 4:21	wanted 2:15 Worth 2:11,15,20,23 3:2,11,13,18,21 4:1,4,8, 23 5:1,5,9,12,14,24,26 wrong 4:6
R	T	
re-notice 5:19 received 4:24 regard 2:18 rem 3:8 require 3:28 4:14 5:21	talked 4:9 talking 3:24 technical 3:12 Thomas 2:11 true 3:25 trust 2:24 TUESDAY 2:1 types 4:18 typically 3:28	
	U	
	understand 5:14	
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	verified 3:4,6	

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

Wiley W. Manuel Courthouse, Department 103

JUDICIAL OFFICER: HONORABLE SANDRA BEAN

Courtroom Clerk: Valentina Garcia

CSR: Kate Luy CSR# 14040

24PR094104

June 10, 2025

3:00 PM

IN RE: CHARLES W. GOMPERTZ

MINUTES

APPEARANCES:

Petitioner 17th and Peralta represented by Thomas B. Worth.

NATURE OF PROCEEDINGS: Initial Petition for Trust Petition to Confirm Trust Assets filed by 17th and Peralta (Petitioner) on

The matter has come on calendar for Initial Petition for Trust Petition to Confirm Trust Assets set for 3:00 PM in Dept. 103 at the Wiley W. Manuel Courthouse, the Honorable Sandra Bean presiding.

Matter is continued for petitioner to cure procedural issues.

The Initial Petition for Trust Petition to Confirm Trust Assets scheduled for 06/10/2025 is continued to 08/04/2025 at 03:30 PM in Department 103 at Wiley W. Manuel Courthouse .

By: 
V. Garcia, Deputy Clerk
Minutes of: 06/10/2025
Entered on: 06/10/2025

[] Ex Parte Date: 06/11/2025 By: CC
Case Number: 24PR094104
Case Title: IN RE: CHARLES W. GOMPERTZ
Petition: PETITION BY INTERESTED PARTY TO ESTABLISH ESTATE'S CLAIM
OF OWNERSHIP TO PROPERTY AND FOR ORDER DIRECTING ITS
Date Filed: 10/04/2024
Petitioner: 17th and Peralta, LLC
Attorney for Petitioner: Thomas B. Worth
Hearing: 08/04/2025 3:30 PM

STANDING OF PETITIONER(S) (17200):

Petitioner, 17th and Peralta, LLC, is alleged to be an interested party.

PROPER VENUE (17005):

COURT REVIEW:

Per item 1, it is alleged that the estate of Charles W. Gompertz was subject to probate proceeding in this Court. (Attached as Exhibit 1 is a copy of the Estate Decree of Distribution issued by this court on 9/22/54, case #123,339). Per item 25, it is also alleged the testamentary trust for Anita T. Gompertz, as set forth in the estate Decree of Distribution, is subject to the jurisdiction of this Court.

NOTICE:

Notice (DE-115) was filed on 10/30/2024; served on 10/30/2024 for hearing on 11/25/24.

ISSUE 1 - Examiner cannot review if all persons entitled to notice were served; Petition omits names and addresses of persons entitled to notice (see related issue noted below).

ISSUE 2 - Ross Gompertz needs to be Noticed at a street address, and not a Post Office Box, or a Declaration provided. See PC 1215(a)(3)

NAMES AND ADDRESSES OF EACH PERSON ENTITLED TO NOTICE LISTED IN THE PETITION (17201):

NO

ISSUE 3 - Names and addresses of each person entitled to notice is omitted from petition.

PETITION REQUESTS FOR THE FOLLOWING ORDERS:

WHEREFORE, petitioner requests the court to determine as follows:

1. That the decedent was the true owner of the Property and to order that the Property be considered an asset of the decedent's estate;
2. That the Property was distributed from decedent's estate, pursuant to the Estate Decree

of Distribution, to the trust under Article Seventh of decedent's Will for benefit of Anita T. Gompertz as an asset of such trust;

3. That the Property, as an asset of such Trust, was distributed pursuant to the Trust Decree of Distribution in equal shares to the two residuary beneficiaries of such trust, namely John L. Gompertz, and Ruth Gompertz Watson; and

4, For such other orders as the court may find appropriate.

SUMMARY OF SUPPORTING FACTS:

For Court Review.

PROBATE CODE 16061.7 NOTICE:

Not addressed; appears not applicable.

BANK STATEMENTS OR DEEDS:

Deeds and other documents regarding title history are attached.

ADDITIONAL NOTES:

ORDER:

Proposed Order submitted on 11/05/2024 appears proper.

1 Thomas B. Worth (State Bar No. 73232)
2 FRIEDMAN McCUBBIN LAW GROUP LLP
3 425 California Street, 25th Floor
4 San Francisco, California 94104
5 Telephone: (415) 434-2226
6 tom@fomlaw.com

7
8 Attorneys for Petitioner
9 17th and Peralta, LLC
10

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12 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
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14 IN AND FOR THE COUNTY OF ALAMEDA
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16 In the Matter of the Estate of
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18 CHARLES W. GOMPERTZ,
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20 also known as CHARLES WILLIAM
21 GOMPERTZ and C.W. GOMPERTZ,
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23 Deceased.
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Case No. 24PR094104

SUPPLEMENT TO PETITION BY
INTERESTED PARTY

Date: August 4, 2025

Time: 2:30 pm

Dept: 103

19 The undersigned THOMAS B. WORTH declares as follows:

- 20 1. I am the attorney for 17th and Peralta, LLC, the petitioner in the above matter.
- 21 2. I am filing this Supplement to provide information concerning potential beneficiaries
- 22 of the Estate of Charles W. Gompertz.
- 23 3. As explained in the petition, the assets of the estate of Charles W. Gompertz were
- 24 distributed to a trust for the benefit of his surviving wife, Anita T. Gompertz. At her later death, the
- 25 assets of that trust were distributed to their two children, Ruth Gompertz Watson and John L.
- 26 Gompertz, both of whom are now deceased.

1 4. As set forth in a Supplement filed in this matter on October 30, 2024, there are now
2 fourteen living descendants of Ruth Gompertz Watson and John L. Gompertz.

3 5. Notice has been sent to all fourteen beneficiaries, whose names and addresses are
4 listed below, of the continued hearing on August 4, 2025, as confirmed in the Notice of Hearing and
5 Proof of Service by Mail which is filed at the same time as this Supplement.

6 6. Notice to Ross Gompertz has now been sent to his street address, as required by the
7 court.

8 7. The names and addresses of such beneficiaries are as follows:

Leslie Ellen Adams 1288 Pine Creek Way, Apt. C Concord, CA 94520	Margaret Gompertz-Huntington 324 San Francisco Boulevard San Anselmo, CA 94960
Paul Taggard Adams 5108 Turnberry Court Elk Grove, CA 95758	Ross Gompertz 6050 Lucas Valley Road Nicasio, CA 94946
Lauren Watson Cesare 1521 Cherry Valley Drive San Jose, CA 95125	Margaret Gompertz 930 George Street, #14 Novato, CA 94945
Linda Watson 25743 Flanders Place Carmel, CA 93923-8303	John Gompertz 543 Tarragon Drive San Rafael, CA 94903
Lisa C. Watson 25743 Flanders Place Carmel, CA 93923-8303	Joanne Gompertz Martin 913 So. Eliseo Drive Greenbrae, CA 94904
Douglas C. Watson 333 Gladys Drive Pleasant Hill, CA 94523	Leslie Schmitz 163 Moffitt Street San Francisco, CA 94131
David G. Watson 14 Cardiff Place Alamo, CA 94507	Mary Charlotte Schmitz 119 28 th Street San Francisco, CA 94131

1 I declare under penalty of perjury that the foregoing is true and correct to the best of
2 my knowledge.

3 This Declaration is executed by me at San Francisco, California, on this 1st day of
4 July, 2025.

5
6 FRIEDMAN MCCUBBIN LAW GROUP LLP

7 
8 _____
9 Thomas B. Worth,
10 Attorneys for Petitioner 17th and Peralta, LLC
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ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: THOMAS B. WORTH, ESQ. FIRM NAME: Friedman McCubbin Law Group LLP STREET ADDRESS: 425 California Street, 25th Floor CITY: San Francisco TELEPHONE NO.: (415) 434-2226 EMAIL ADDRESS: tom@fomlaw.com ATTORNEY FOR (name): 17th and Peralta, LLC (Petitioner)	STATE BAR NUMBER: 73232 STATE: CA ZIP CODE: 94104 FAX NO.: (415) 242-8687	FOR COURT USE ONLY ELECTRONICALLY FILED Superior Court of California, County of Alameda 07/03/2025 at 10:19:10 AM By: Senaah Adams, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA STREET ADDRESS: 661 Washington Street MAILING ADDRESS: 661 Washington Street CITY AND ZIP CODE: Oakland, CA 94607 BRANCH NAME: Wiley W. Manuel Courthouse		CASE NUMBER: 24PRO94104
☒ ESTATE OF (name): ☐ IN THE MATTER OF (name): Charles W. Gompertz aka Charles William Gompertz and C. W. Gompertz, ☒ DECEDENT ☐ TRUST ☐ CONSERVATEE ☐ MINOR		
NOTICE OF HEARING ON PETITION TO DETERMINE CLAIM TO PROPERTY		

A petition has been filed asking the court to determine a claim to the property identified in 3, and a hearing on the petition has been set. Please refer to the petition for more information.

If you have a claim to the property described in 3, you may attend the hearing and object or respond to the petition. If you do not want to attend the hearing, you may also file a written response before the hearing.

If you do not respond to the petition or attend the hearing, the court may make orders affecting ownership of the property without your input.

1. NOTICE is given that (name): 17TH AND PERALTA, LLC
 (fiduciary or representative capacity, if any):
 has filed a petition entitled (state complete title):
 under Probate Code section 850 asking for a court order determining a claim or claims to the property described in 3.
2. A HEARING on the petition will be held as follows:

Hearing Date	→ Date: August 4, 2025 Time: 2:30 p.m. Dept.: 103 Room:	Name and address of court if different from above:
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3. The property that is the subject of the petition is (describe each item of real or personal property; for real property—i.e., land or buildings—give the street address or, if none, describe the property's location and give the assessor's parcel number):

☐ Continued on Attachment 3.

Check 4 only if the petition seeks the additional relief described.

4. ☐ In addition to seeking to recover the property described in 3, the petition also alleges and seeks relief for bad faith conduct, undue influence in bad faith, or elder or dependent adult financial abuse. The petition describes these allegations in detail. Based on the allegations, the petition seeks to recover twice the value of the property described in 3
☐ and requests that the court award attorney's fees and costs to the petitioner. (Prob. Code, § 859.)



Requests for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms for Request for Accommodations by Persons With Disabilities and Response (form MC-410). (Civ. Code, § 54.8.)

☒ ESTATE OF ☐ IN THE MATTER OF (name): Charles W. Gompertz aka Charles William Gompertz and C. W. Gompertz, ☒ DECEDENT ☐ TRUST ☐ CONSERVATEE ☐ MINOR	CASE NUMBER: 24PRO94104
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PROOF OF SERVICE BY MAIL*

1. I am over the age of 18 and not a party to this cause. I am a resident of or employed in the county where the mailing occurred.
2. My residence or business address is (specify):
 425 California Street, 25th Fl.
 San Francisco, CA 94104
3. I served the foregoing *Notice of Hearing on Petition to Determine Claim to Property* on each person named below by enclosing a copy in an envelope addressed as shown below AND
 - a. ☐ **depositing** the sealed envelope on the date and at the place shown in item 4 with the U.S. Postal Service with the postage fully prepaid.
 - b. ☒ **placing** the envelope for collection and mailing on the date and at the place shown in item 4 following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the U.S. Postal Service in a sealed envelope with postage fully prepaid.
4. a. Date mailed: July 1, 2025
 b. Place mailed (city, state): San Francisco, CA
5. ☐ I served with the *Notice of Hearing on Petition to Determine Claim to Property* a copy of the petition referred to in the Notice.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: July 3, 2025

 Christine Mustin
 (TYPE OR PRINT NAME)


 (SIGNATURE)

NAME AND ADDRESS OF EACH PERSON TO WHOM NOTICE WAS MAILED

	Name	Address (street & number, city, state, zip code)
1.	SEE ATTACHED SERVICE LIST	
2.		
3.		
4.		
5.		
6.		

☐ Continued on an attachment. (You may use Attachment to Notice of Hearing Proof of Service by Mail, form DE-120(MA)/GC-020(MA), for this purpose.)

* Do **not** use this form to prove personal or electronic service. You may use form DE-120(P) or GC-020(P) to prove personal service.

17th and PERALTA, LLC

SERVICE LIST

Leslie Ellen Adams
1288 Pine Creek Way, Apt. C
Concord, CA 94520

Paul Taggard Adams
5108 Turnsberry Court
Elk Grove, CA 95758

Lauren Watson Cesare
1521 Cherry Valley Drive
San Jose, CA 95125

Linda Watson
25743 Flanders Place
Carmel, CA 93923-8303

Lisa C. Watson
25743 Flanders Place
Carmel, CA 93923-8303

Douglas C. Watson
333 Gladys Drive
Pleasant Hill, CA 94523

David G. Watson
14 Cardiff Place
Alamo, CA 94507

Margaret Gompertz-Huntington
324 San Francisco Boulevard
San Anselmo, CA 94960

Ross Gompertz
6050 Lucas Valley Road
Nicasio, CA 94946

Margaret Gompertz
930 George Street, #14
Novato, CA 94945

John Gompertz
543 Tarragon Drive
San Rafael, CA 94903

Joanne Gompertz Martin
913 So. Eliseo Drive
Greenbrae, CA 94904

Leslie Schmitz
163 Moffitt Street
San Francisco, CA 94131

Mary Charlotte Schmitz
119 28th Street
San Francisco, CA 94131

[] Ex Parte	Date: 07/30/2025 By: CC
Case Number:	24PR094104
Case Title:	IN RE: CHARLES W. GOMPERTZ
Petition:	PETITION BY INTERESTED PARTY TO ESTABLISH ESTATE'S CLAIM OF OWNERSHIP TO PROPERTY AND FOR ORDER DIRECTING ITS
Date Filed:	10/04/2024
Petitioner:	17th and Peralta, LLC
Attorney for Petitioner:	Thomas B. Worth
Hearing:	08/04/2025 3:30 PM

STANDING OF PETITIONER(S) (17200):

Petitioner, 17th and Peralta, LLC, is alleged to be an interested party.

PROPER VENUE (17005):

COURT REVIEW:

Per item 1, it is alleged that the estate of Charles W. Gompertz was subject to probate proceeding in this Court. (Attached as Exhibit 1 is a copy of the Estate Decree of Distribution issued by this court on 9/22/54, case #123,339). Per item 25, it is also alleged the testamentary trust for Anita T. Gompertz, as set forth in the estate Decree of Distribution, is subject to the jurisdiction of this Court.

NOTICE:

Notice (DE-115) was filed on 7/3/25; served on 7/1/2025 for hearing on 8/04/25.

ISSUE 1 - Notice filed on 7/3/25 sets forth incorrect time of the hearing.

NAMES AND ADDRESSES OF EACH PERSON ENTITLED TO NOTICE LISTED IN THE PETITION (17201):

YES. Names and addresses of each person entitled to notice is listed in Supplement to Petition filed on 7/3/25.

PETITION REQUESTS FOR THE FOLLOWING ORDERS:

WHEREFORE, petitioner requests the court to determine as follows:

1. That the decedent was the true owner of the Property and to order that the Property be considered an asset of the decedent's estate;
2. That the Property was distributed from decedent's estate, pursuant to the Estate Decree of Distribution, to the trust under Article Seventh of decedent's Will for benefit of Anita T. Gompertz as an asset of such trust;
3. That the Property, as an asset of such Trust, was distributed pursuant to the Trust Decree of Distribution in equal shares to the two residuary beneficiaries of such trust, namely John L. Gompertz, and Ruth Gompertz Watson; and

4, For such other orders as the court may find appropriate.

SUMMARY OF SUPPORTING FACTS:

For Court Review.

PROBATE CODE 16061.7 NOTICE:

Not addressed; appears not applicable.

BANK STATEMENTS OR DEEDS:

Deeds and other documents regarding title history are attached.

ADDITIONAL NOTES:

ORDER:

Proposed Order submitted on 11/05/2024 appears proper.

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**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ALAMEDA
WILEY MANUEL COURTHOUSE
BEFORE THE HONORABLE SANDRA BEAN, JUDGE
DEPARTMENT NO. 103
- - - o o o - - -**

**IN RE: CASE NO. 24PR094104
CHARLES W. GOMPERTZ,
_____ /**

**REPORTER'S TRANSCRIPT OF PROCEEDINGS
INITIAL PETITION FOR TRUST PETITION TO CONFIRM TRUST ASSETS
MONDAY, AUGUST 4, 2025, P.M. SESSION**

**CERTIFIED
TRANSCRIPT**

(NO APPEARANCES WERE MADE)

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**REPORTED BY:
PRISCILLA S. JENNING,
CSR NO. 9416**

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P R O C E E D I N G S

MONDAY, AUGUST 4, 2025 P.M. SESSION

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THE COURT: We're back on the record in Department 103 of the Alameda County Superior Court. I'll be calling the 3:30 calendar.

Calling the matter of Charles W. Gompertz, G-o-m-p-e-r-t-z. This matter is on for Petition to Confirm Trust Assets.

And is counsel in that matter present?

I'm not hearing any response.

There are no procedural issues in regard to this request. And the Court notes that the notice was for 2:30. However, the Court believes that that was adequate notice.

And under the circumstances, Madam Clerk, can you put that order in my work queue?

THE CLERK: Yes.

Is it the one filed November 5th?

THE COURT: It is, yes.

THE CLERK: Okay. It's there.

THE COURT: Thank you.

Is there anyone present who objects to the Court signing the order establishing Estate's claim of ownership to property in the Charles William Gompertz, G-o-m-p-e-r-t-z, Trust, and the Court would be confirming a real property Parcel 28 in San Francisco, California?

Is there any objection?

1 All right. I'm not hearing any objection. I'm going to
2 change the date on the pet -- on the order to today's date.

3 All right. That order is signed, and it will be
4 available on eCourt forthwith.

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6 (At 3:37 p.m. the foregoing proceedings were concluded.)

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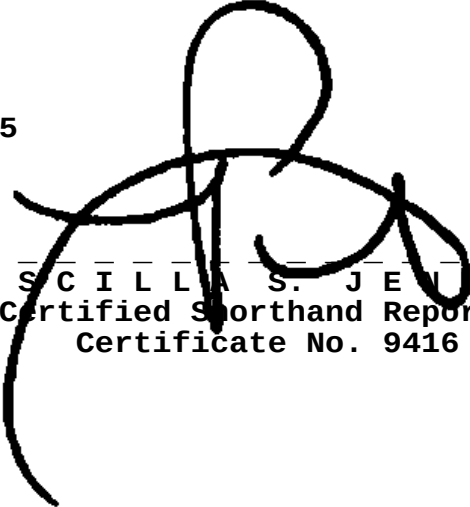
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1 STATE OF CALIFORNIA)
)
2 COUNTY OF ALAMEDA) ss.
3

4 I, PRISCILLA S. JENNING, a Certified Shorthand Reporter
5 in and for the State of California, do hereby certify:

6 That said proceedings were taken before me as a Certified
7 Shorthand Reporter at said time and place, and were taken down
8 in shorthand by me, a Certified Shorthand Reporter of the
9 State of California, and was thereafter transcribed into
10 typewriting, and that the foregoing transcript constitutes a
11 full, true, and correct report of said proceedings which took
12 place.

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14 DATED: October 22, 2025

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P R I S C I L L A S. J E N N I N G
18 Certified Shorthand Reporter
Certificate No. 9416
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1	claim 2:24	M	response 2:12
103 2:5	Clerk 2:16,18,21		S
2	concluded 3:6	Madam 2:16	San 2:27
2025 2:2	Confirm 2:9	matter 2:8,9,11	SESSION 2:2
28 2:26	confirming 2:26	MONDAY 2:2	signed 3:3
2:30 2:14	counsel 2:11	N	signing 2:23
3	County 2:6		Superior 2:6
3:30 2:6	Court 2:5,6,14,15,20,22,23,26	notes 2:14	T
3:37 3:6	D	notice 2:14,15	today's 3:2
4	date 3:2	November 2:19	Trust 2:10,25
4 2:2	Department 2:5	O	W
5	E	objection 2:28 3:1	William 2:25
5th 2:19	ecourt 3:4	objects 2:23	work 2:17
A	establishing 2:24	order 2:17,24 3:2,3	
adequate 2:15	Estate's 2:24	ownership 2:24	
Alameda 2:6	F	p.m. 2:2 3:6	
Assets 2:10	filed 2:19	Parcel 2:26	
AUGUST 2:2	foregoing 3:6	pet 3:2	
B	forthwith 3:4	Petition 2:9	
back 2:5	Francisco 2:27	present 2:11,23	
believes 2:15	G	procedural 2:13	
C	G-O-M-P-E-R-T-Z 2:9,25	proceedings 3:6	
calendar 2:7	Gompertz 2:8,25	property 2:24,26	
California 2:27	H	put 2:16	
calling 2:6,8	hearing 2:12 3:1	Q	
change 3:2	I	queue 2:17	
Charles 2:8,25	issues 2:13	R	
circumstances 2:16		real 2:26	
		record 2:5	
		regard 2:13	
		request 2:13	

SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

Wiley W. Manuel Courthouse, Department 103

JUDICIAL OFFICER: HONORABLE SANDRA BEAN

Courtroom Clerk: Thaylore Smith

CSR: Priscilla Jennings CSR 9416

24PR094104

August 4, 2025

3:30 PM

IN RE: CHARLES W. GOMPERTZ

MINUTES

APPEARANCES:

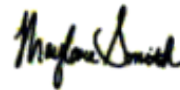
Petitioner 17th and Peralta represented by Thomas B. Worth.

NATURE OF PROCEEDINGS: Initial Petition for Trust Petition to Confirm Trust Assets filed by 17th and Peralta (Petitioner) on 10/04/2024

The 10/04/2024 Petition to Confirm Trust Assets (PrC 850(a)(3)(b)) (Heggstad) is Granted.

The Court reviews and has signed the ORDER ESTABLISHING ESTATE'S CLAIM OF OWNERSHIP TO PROPERTY, DIRECTING ITS TRANSFER TO ESTATE, DISTRIBUTING PROPERTY TO TESTAMENTARY TRUST, AND DISTRIBUTING PROPERTY FROM SUCH TRUST

The Order is available via the Court's public portal.



By:

T. Smith, Deputy Clerk

Minutes of: 08/04/2025

Entered on: 08/04/2025